



LEASE CONTRACT

CERTIFIED LEASE WASHINGTON

PARTIES AND LEASED PREMISES

Owner Star Apartments LLC DBA The Star Apartments	Address 170 11th Avenue, Seattle, WA 98122	Phone (206) 652-0658
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Residential Community Star

Street Address 170 11th Avenue	City Seattle	State WA	ZIP 98122	County King
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Residents Lionel (Casey) C. Allard, IV and Rachel F. Bennett	Leased Premises 202
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Street Address 170 11th Avenue	City Seattle	State WA	ZIP 98122	County King
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LEASE TERM

Type ☐ Move-In ☒ Renewal	Length One year	Start Date 2/1/2020	End Date 1/31/2021	Date Signed February 17, 2020
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RENT

Payable To Star Apartments LLC DBA The Star Apartments	Address 170 11th Avenue, Seattle, WA 98122	Phone (206) 652-0658
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Office Hours Monday - Saturday 9:30 a.m. - 5:30 p.m.	Due On 1st	Late On 6th	Fax (206) 382-1804
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CHARGES

Legal Notice or Invoice Preparation, Distribution and Administrative Fee	\$30.00	Renters' Insurance Non-compliance (Forced Place) Fee	\$20.00	Month-to-Month Charge	\$200.00
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Online Payment Chargeback	\$50.00	Late Payment (Daily)	\$5.00	Lease Buy-Out	\$2,081.00
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Late Payment	\$50.00	Dishonored Payment	\$50.00		
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MONTHLY PAYMENTS

Base Rent	\$2,000.00
water/sewer/trash 2 people 2x2	\$81.00
TOTAL MONTHLY PAYMENT	\$2,081.00

DEPOSITS

Security Deposit	\$350.00
TOTAL DEPOSIT	\$350.00

ONE-TIME FEES

Application Fee(s)	\$0.00
Paid \$88.00	
TOTAL ONE-TIME FEES	\$0.00

THIS RESIDENTIAL LEASE CONTRACT (this "Agreement") is entered into this 17th day of February, 2020, between Owner of Residential Community ("Owner") and Lionel (Casey) C. Allard, IV and Rachel F. Bennett, jointly and severally (individually and collectively "Residents"). Residents hereby agree to lease the premises at 170 11th Avenue #202, Seattle, WA 98122 (the "Leased Premises"), which is located within Star (the "Residential Community"), for use exclusively as a residential premises and not for any other purpose. Owner's representatives, agents, affiliates, successors, assigns, employees, officers, and directors are hereby incorporated by reference to benefit from any and all waivers, releases, and limitations of liability made by Residents hereunder.

- OCCUPANCY OF THE LEASED PREMISES.** The Leased Premises may be occupied solely by Residents. If any person other than the Resident or Occupant occupies the Leased Premises for more than six (6) consecutive days or twice that many days in any twelve (12) month period without Owner's prior written consent, then such person shall be deemed to reside in the Leased Premises in violation of this Agreement.

All changes in occupancy require Owner's prior written consent. If Owner consents to an occupancy change during the term of this Agreement, a new Residential Lease Contract or an amendment to this Agreement must be executed. Any

assignment or subletting without Owner's prior written consent shall be void and may, at Owner's sole discretion, terminate this Agreement. Owner's acceptance of rent from any person, not identified as a Resident or an authorized occupant, shall be deemed to be the payment of rent on behalf of Residents and shall not constitute Owner's consent for said person to occupy or reside in the Leased Premises.

2. **LEASE TERM.** This Agreement will be for a period of **one year**, with the initial term commencing on **February 1, 2020** and expiring at **11:59pm** on **January 31, 2021** ("Initial Term"), unless sooner terminated as provided in this Agreement or as allowed by applicable law. Residents acknowledge that, upon expiration of the Initial Term, this Agreement may automatically renew as a month-to-month tenancy, under the same terms and conditions. Either party may opt-out of this automatic renewal if: a) either party gives at least twenty (20) days written notice of termination or intent to move-out, prior to the commencement date of the new term; or b) the parties agree otherwise in writing. If Residents fail to give Owner proper written notice of intent to move-out prior to the commencement date of the new term, Owner shall consider such failure as an agreement by Residents to enter into the automatic renewal. If this Agreement is renewed as a month-to-month tenancy, either party must give at least twenty (20) days written notice before the end of the monthly rental period.

2.1. Month-to-Month Terms. In the event that this Agreement continues month-to-month, Residents shall pay Owner a month-to-month charge of **\$200.00**. This charge is due to Owner every month along with the monthly rent payment, and is subject to increase upon written notice to Residents. For purposes of this Agreement, any unpaid month-to-month charges are deemed additional rent.

3. **SECURITY DEPOSIT.** Residents agree to pay to Owner, as a security deposit, the sum of **\$350.00**, due on or prior to the commencement date of the lease term. Unless modified by an installment payment agreement, included with and attached to this Agreement, this is the total security deposit at the time of execution of this Agreement. The security deposit will be available to Owner in the event Residents become liable for any damage or other losses during the tenancy. If the security deposit does not cover the total amount of damage or other losses suffered by Owner, Residents will be responsible for paying the remaining balance due to Owner. Residents' Security Deposit will be held at: **Northwest Bank, 925 4th Ave Suite 100 Seattle, WA 98104**. In the event Owner sells the Residential Community, Owner will transfer the security deposit to new owner, who will then be responsible for providing Resident's with all required statutory notices.

3.1. Deposit Deductions. Owner may recover amounts owed by Residents from the security deposit for any lawful reason including, but not limited to, the following: any damages or loss caused by Residents' default or breach of this Agreement; delinquent or unpaid rent; late fees; electricity, gas, water, sewer, stormwater, or other utility charges; damages to the Lease Premises caused by simple negligence, intentional act, accident or inaction; the replacement cost of fixtures or other items contained in the Leased Premises that are damaged or destroyed; service charges; batteries for smoke detectors or other safety devices; unreturned, damaged or missing keys or entry devices; replacement light bulbs; reletting expenses; delinquent fees or unpaid deposits; the costs of rekeying or disabling unauthorized security systems and alarms; pet charges; government assessments against the Owner caused by Residents, Occupants or guests; trash removal; all costs associated with illegally parked vehicles, including removal; returned check fees; removal and storage of items left in the Leased Premises; all costs, including attorneys' fees, related to eviction proceedings or the enforcement of this Agreement; and any other amounts owing from Residents to Owner. If the security deposit does not cover all of Owner's loss, Residents are liable for any unsatisfied amounts.

4. **RENT.** Residents agree to pay to Owner, as rent for the Leased Premises, the sum of **\$2,081.00** per month. Unless modified by addenda, this is the total monthly rent at the time of execution of this Agreement. Rent must be paid in full, in advance and without demand, on or before the **1st** day of each month with no grace period. Payments must be made in the form of **online payment, debit, personal check, money order or certified check**. Rent, and all other payments due to Owner, shall be made payable to **Star Apartments LLC DBA The Star Apartments, 170 11th Avenue, Seattle, WA 98122, (206) 652-0658**. The usual days and hours when payments may be made personally are: **Monday - Saturday 9:30 a.m. - 5:30 p.m., 170 11th Avenue, Seattle, WA 98122**. The Residential Community may contain a drop-box for payments and notices, however the drop-box is provided only as a convenience to Residents and does not guarantee delivery to Owner. The sole risk of loss or theft of any payments or notices is assumed by Residents and Residents agree to immediately replace rent payment that is lost or stolen prior to receipt by Owner. Residents are encouraged to make all payments and obtain receipts directly from Owner.

Residents must not withhold or offset rent unless specifically authorized by law. Owner reserves the right to refuse any payment that does not pay the full balance of sums owed or does not include all sums due to Owner. Owner, in its sole discretion, may require at any time, with or without cause, that Residents make payments in the form of **certified check or money order**. Residents acknowledge and agree that failure to pay rent on time will be deemed a violation of this Agreement, and all remedies available to Owner under this Agreement and applicable law for such violation will be authorized.

4.2. Online Payments. Residents are permitted to make rent payments via an online web-based service. Payment of rent online, while such service is provided by Owner, is for Residents' convenience - the risk of receipt of funds by Owner when such service is used is Residents', and not Owner's, risk. Furthermore, Residents hereby agree not to chargeback any rent payments made by credit card, debit card, EFT, ACH or any other electronic means to Owner. Residents shall pay Owner a sum of **\$50.00** for each chargeback, as a liquidated damage. In the event of a chargeback, Residents may, at Owner's option, be required to pay the rent and applicable late charges by **certified check or money order**. If **two (2)** or more payments submitted by Residents are chargedback in any **twelve (12)** month period, Residents shall be required to pay all future rent and other charges by **certified check or money order**.

- 5. PAYMENTS AND CHARGES.** Owner and Residents agree that when Residents fail to pay rent on time, or when Residents make a payment that is subsequently dishonored by the financial institution upon which it is drawn, the actual cost to Owner is extremely difficult or impractical to ascertain, but the parties agree that Owner does, in the event of a late or dishonored payment, incur certain costs, including but not limited to, additional bookkeeping and administrative charges, bank charges, lost opportunity costs of the late payment. Residents agree that the late and dishonored payment charges represent a fair and reasonable approximation of the actual cost Owner is likely to suffer, and are intended to be liquidated damages. At any time that Residents are in default under the terms and conditions of this Agreement, Owner reserves the right to terminate Residents' ability to pay online and Owner may terminate access to the online payment portal.

5.1. Late Payments. Resident shall pay the total amount of rent owed before the **1st** day of the month. If Residents fail to timely pay all rent, Owner is entitled to a late fee of **\$50.00** on the **6th** day of the month and an additional late fee of **\$5.00** for each day thereafter until rent and all other fees are paid. Residents acknowledge that payment of late charges does not constitute a license to pay rent late. Residents understand that if Residents are given a notice to pay or comply or vacate and choose to vacate the Leased Premises during the period of the notice, that Residents shall remain liable for the rent through the end of the lease term or the next month in the case of a month-to-month tenancy. Any payment after the issuance of any such notice shall be by **certified check or money order** only.

5.2. Dishonored Payments. If Residents make a payment that is, for any reason whatsoever, dishonored by the financial institution upon which it is drawn, Residents agree to pay to Owner, as a dishonored payment charge, the sum of **\$50.00** for each dishonored payment, plus any applicable late charges, until Owner receives acceptable payment. Owner reserves the right after a single dishonored payment to require that all future payments be made by **certified check or money order**. If **two (2)** or more payments submitted by Residents are, for any reason whatsoever, dishonored by the financial institution upon which it is drawn in any **twelve (12)** month period, Residents shall be required to pay all future rent and other charges by **certified check or money order** plus any and all costs required in the collection of said payments.

- 6. PAYMENTS.** Owner is not obligated to accept any payment for rent or other charge after it is due. Except for rent, all charges are due immediately and to be paid upon Owner's demand.
- 7. RENT INCREASES AND CHANGES TO THIS AGREEMENT.** Owner may notify Residents, in writing at least sixty (60) days before the last day of this Agreement or before the last day of any month in a month-to-month tenancy, of: 1) any increase in rent; and 2) any increase in other periodic or monthly housing costs to be charged to Residents of ten percent (10%) or more above the periodic or monthly rental rate charged to Residents for the same housing unit and same services for any period or month during the preceding 12-month period. Owner may notify Residents, in writing, at least thirty (30) days before the last day of this Agreement or before the last day of any month in a month-to-month tenancy, of any other changes to the terms of this Agreement. The new rent amount or changes to this Agreement shall take effect on the date stated in the notice (not earlier than the last day of the original term for periodic tenancies) without additional notice or signature of Residents.
- 8. COMMUNITY POLICIES AND CONDUCT.** Residents acknowledge receipt of and agree to the terms and conditions of Owner's written policies and rules (the "Community Policies"). The Community Policies are hereby incorporated into and made a part of this Agreement. Residents are responsible for informing and ensuring the compliance of all Occupants and guests to this Agreement and the Community Policies. Upon thirty (30) days written notice, Owner may make changes to the Community Policies, which will go into effect upon completion of the then current term of this Agreement. The new Community Policies will take effect after the current lease term expires, or in a month-to-month tenancy, at the end of the next calendar month after notice is given. Residents agree to keep the Leased Premises in a clean and sanitary condition and use the common areas and recreational facilities in accordance with this Agreement, the Community Policy, and posted signs.

Residents agree not to harass, annoy, or endanger any other resident or person, or create or maintain a nuisance, or disturb the peace or solitude of any other resident, or commit waste in or about the Leased Premises. Residents are responsible for the conduct of any members of their household, Occupants, or guests while present at the Residential Community. Residents further agree not to harass, verbally abuse, denigrate or otherwise disrespect Owner's employees,

agents and/or contractors or interfere with Owner's business operations. Failure to abide by this policy may result in the termination of this Agreement.

8.1. Exclusion from the Residential Community. Owner has the right to exclude guests and other non-Residents who refuse to identify themselves as a guest of a specific Resident or who, in Owner's judgment, are disruptive, have violated the law, or violated this Agreement or the Community Policies.

- 9. MULTIPLE RESIDENTS OR OCCUPANTS.** Residents will be in material breach of this Agreement if any Resident, Occupant, or guest (whether invited or uninvited) violate any of the terms of this Agreement or the Rules. Residents are jointly and severally liable for all obligations arising under this Agreement whether or not they remain in actual possession of the Leased Premises. Notices or demands from Owner that are served upon any Resident, Occupant or guest are deemed validly served upon all Residents. Each Resident agrees and is deemed to be an agent for service of process for all other Residents in eviction proceedings. Security deposit deduction itemizations may be sent to one Resident, and shall constitute notice to all Residents. Owner may satisfy the duty to refund the security deposit by sending the total amount owed to one Resident.

9.1. Replacements and Subletting. Without the prior written approval of Owner, replacing Residents or subletting the Leased Premises is strictly prohibited. A replacement of Residents or sublease will be subject to the Owner's policies and underwriting requirements, reimbursement of Owner's expenses in connection with the replacement or sublease, and final approval by the Owner of the Residents' replacement or sublessee. Residents who are replaced or sublet the Leased Premises will continue to be liable for all of Residents' obligations of this Agreement. Replaced Residents' and Sublessors relinquish their rights to a refund of the security deposit, and their right to possess or otherwise occupy the Leased Premises. Any attempt to replace any Residents or sublet the Leased Premises without Owners' prior written consent will be void. Residents shall not assign this Agreement.

9.2. Short Term Rentals. Residents are prohibited from offering all or part of the Leased Premises for short-term rental, such as through AirBNB, VRBO or other such sites. Use of short term rentals includes advertising, and any and all other activities involved in locating short term renters and or disseminating information of, and regarding, the possible availability of the Residential Community for any apartment for rental by short-term or transient occupants on sites such as Expedia, Priceline, hotels.com, booking.com, AirBNB or other similar locator websites, or web-based, electronic media, or private websites for individuals or companies. Any person who is not a Resident or a member of their household, who occupies any portion of the Leased Premises, for any period of time whatsoever, for any compensation or consideration whatsoever (including, without limitation, the payment of money and/or trade and/or barter of other goods, services, or property occupancy rights) is not an occupant, guest, or invitee. This constitutes attempted subletting or assignment under this Agreement.

- 10. USE OF LEASED PREMISES AND COMMON AREAS.** Residents shall not do or permit anything to be done in or about the Leased Premises that will in any way obstruct or interfere with the rights of other residents or occupants of the Residential Community or injure or annoy them or use or allow the Leased Premises to be used for any improper, unlawful, or objectionable purpose. Further, Residents shall not cause, maintain, or permit any nuisance in, on, or about the Leased Premises, or commit any waste in or on the Leased Premises, and shall promptly notify Owner in writing of any defective or potentially defective conditions, in the Leased Premises, or in the Residential Community. Finally, Residents shall not put the Leased Premises to any use that violates local zoning ordinances or any other law applicable to the Leased Premises. Residents agree to reimburse and indemnify Owner for all fines or other penalties incurred by Owner as a result of the violation of any statute, ordinance, regulation or other governmental restriction by Residents or any members of their household, Occupants, or guests. Nothing set forth herein shall be deemed as disallowing any use of the Leased Premises that cannot legally be prohibited.

Residents further agree to the following: 1) Residents must keep the Leased Premises and areas reserved for private use clean and sanitary; 2) trash must be disposed of at least weekly in appropriate receptacles; 3) passageways may be used only for entry or exit; 4) amenity areas must be used with care in accordance with the Rules and posted signs; 5) glass is prohibited in all common areas; 6) conducting business of any kind in the Leased Premises or the Residential Community is prohibited without Owner's prior written consent--any lawful business conducted at home by computer, mail, or telephone is permissible if permitted by local zoning ordinance and customers, clients, patients, or other business associates do not come to the Leased Premises for business purposes; 7) businesses allowed in a home by state or local statute or ordinance will be permitted with proper licensing and notification provided to the Owner in advance of the operation of the business; 8) Owner may exclude from the Residential Community guests or others, who in Owner's judgment, have been violating the law, violating this Agreement or any community rules, which includes anyone who is disturbing other residents, neighbors, visitors, or Owner's representatives; 9) Owner may also exclude from any outside area or common area anyone who refuses to show identification or identify themselves as a guest, occupant or resident in the Residential Community; and 10) Residents agree to notify Owner if Residents or any occupants are convicted of a felony, offense involving a controlled substance, violence to another or destruction of property or if any of the above register as a sex offender in any state. Any violation of these provisions shall be deemed a material and incurable breach

of this Agreement and shall entitle Owner to serve Residents with notice terminating the tenancy.

10.1. Facilities. Residents agree that access or use of any amenities or facilities within the Residential Community provided by Owner, whether for cost or without cost, are not considered by either party to be a material provision of this Agreement. As such, Owner reserves the right to change or limit the operating or access hours of any such facility or amenity, or to remove or eliminate access or use of the facility or amenity at any time, and for any length of time, without prior notice to Residents. Any such action by Owner shall not serve as a basis for a claim by Residents for diminished rental value or the basis for a claim of default by Owner under the terms of this Agreement.

- 11. THE LEASED PREMISES AND FURNISHINGS.** Owner will provide Residents with a move-in checklist on or before the commencement of this Agreement that specifically describes the condition and cleanliness of or existing damages to the Leased Premises and furnishings. Residents agree to sign and return a copy of the checklist to Owner upon commencement of the tenancy. Residents agree to maintain in a clean and sanitary condition the part or parts of the Leased Premises occupied or controlled by the Residents and Occupants and to exercise reasonable care in the use and operation of electrical and plumbing fixtures and to maintain all sanitary facilities, fixtures, and equipment in a clean and sanitary condition. Residents promise to return the Leased Premises and all furniture, furnishings, fixtures, equipment and appliances to Owner in the same condition at the time Residents vacate the Leased Premises as when first rented, less normal wear and tear. Residents further acknowledge that the smoke detector and/or carbon monoxide detector is operable and it is the responsibility of Residents to maintain the smoke detector and/or carbon monoxide detector in accordance with State law and the manufacturer's recommendations. Residents must promptly report non-functional smoke and/or carbon monoxide alarms to Owner so repairs can be made.

All appliances are installed per manufacturers' specification and may be anchored. Residents shall not move, unhook, or relocate any appliance connected to a gas/water source or floor drain connection at any time. Residents agree to promptly notify in writing (service request form) or by electronic notification to Owner of any defects, dilapidations, dangerous conditions, or other needed repairs as said conditions become evident. Residents agree to immediately reimburse Owner for any sums incurred by Owner to repair the Leased Premises or any item, fixture, appliance or appurtenance damaged by the misuse or neglect of Residents or any members of their household, Occupants or guests. This Agreement may not be terminated due to interruption of any service, including necessary repairs, beyond the control of the Owner, unless otherwise required by law.

11.1. Keys and Access Devices. Residents are not permitted to make duplicate copies of keys or access devices without Owner's prior written consent. If any keys or access devices are lost, stolen or damaged, Owner may charge Residents the cost of replacing each key or access device. If any keys or access devices are returned damaged or not returned at move-out, Owner will deduct the cost of each damaged or missing key or access device, and the cost of any necessary rekeying, from the security deposit.

11.2. Smoke and Carbon Monoxide Detectors. Residents acknowledge that the Leased Premises is equipped with a smoke detector and carbon monoxide detector. Residents will not interfere with the presence or functionality of any smoke and carbon monoxide detectors in the Leased Premises. Residents will report immediately and in writing any defects in the condition of any smoke and carbon monoxide detectors. Residents assume the responsibility for ensuring the smoke and carbon monoxide detectors are in operating condition at all times and for replacing batteries as needed. Owner may replace the batteries in any smoke and carbon monoxide detectors in the Leased Premises at any time at cost to Residents. Owner shall give advance notice of entry except in event of emergency. Residents will be liable for any damages that result from Residents' failure to maintain any smoke and carbon monoxide detector in the Leased Premises and any fines and penalties for the failure comply with RCW 43.44.110.

By initialing below, Residents hereby confirm that the smoke detector and carbon monoxide detector was operational as of the date of Residents' inspection of the Leased Premises.

Initial:

11.3. Freezing Weather Conditions. For the purpose of preventing broken pipes and other damages, Residents agree that for the duration of any freezing weather conditions, Residents will maintain the temperature of the Leased Premises at **fifty (50)** degrees Fahrenheit, leave all closet and cupboard doors open (which allows more heat to reach pipes), and set all water faucets to drip. Residents will be liable for any damages that result from Residents' failure to perform the responsibilities listed in this Section.

11.4. Crime or Emergency. In the event of a crime or emergency, call 911, then contact Owner or Owner's representative. Except to the extent required by law, Owner makes no warranties or guarantees, express or implied, concerning security measures implemented by Owner. All warranties and guarantees not specified in this Agreement are expressly disclaimed. Owner is not required to obtain a criminal history report on any residents, occupants, guests, visitors, or contractors to the Residential Community. Residents, Occupants, or guests affected by crime must make a written report and deliver it to Owner or Owner's representative and the appropriate law enforcement agency. Upon

request, Residents must provide Owner with any law enforcement agency's report related to Residents' tenancy or the Residential Community.

- 12. UTILITIES.** Owner will furnish the following utilities to the Leased Premises: **N/A**. Residents agree to pay all charges (including utility deposits) not supplied by Owner, assessed by the utility provider (or Owner, or Owner's designated Billing Party) in connection with Residents' use of utilities during the term of this Agreement, or the period of occupancy by the Residents, whichever is longer. Residents agree to pay the utility bills for which they are responsible and ensure that utilities remain connected for the duration of the Initial Term or any renewal period. Residents shall properly use all electrical, gas and plumbing fixtures and appliances only for their intended purposes. Residents shall not install or operate any additional equipment or appliances, including, but not limited to, portable generators, additional refrigerators and freezers, a dishwasher, washing machine, clothes dryer or an air conditioning unit in the Leased Premises unless supplied by Owner or with Owner's prior written approval. Residents will pay for the following utilities, including any related deposits, fees, charges, or services on such utilities: **HEAT, ELECTRICAL, PHONE, CABLE, WATER, SEWER, and TRASH.**

Owner may modify the method by which the utilities are furnished to the Leased Premises or billed to Residents during the term of this Agreement. In the event of interruption or failure of utility services that Owner is required to furnish, Owner shall use reasonable diligence in its efforts to restore such services. Owner shall not be liable for any damages directly or proximately caused by interruption or failure of utility service unless such interruption or failure of utility service is solely due to Owner's failure to pay to the service provider for the provision of such services to the Leased Premises. Residents acknowledge and agree that utilities provided under this Agreement are for normal household use and must not be wasted. Owner will attach an addendum to this Agreement if a utility is sub-metered or pro-rated by an allocation formula. Where applicable. Residents will be charged recycling related fines assessed on the Residential Community. Owner may change or install utility lines or equipment affecting the Leased Premises if the work does not substantially increase Residents' utility costs. Owner has the right to turn off or interrupt utilities as necessary for installation, maintenance, repairs, or to avoid damage to property.

Owner reserves the right, at any time a past due balance is owing on the utilities, to apply any and all funds received from the Residents, including funds paid as rent, first to the past due balance and then any remaining funds will be applied to rent. Residents agree to this allocation of funds despite any limiting or restrictive endorsement contained on the payment. Further, if Residents fail to pay any utility charges that are to be paid by Residents, Owner may, at its option, pay such charges in full to retain continuing utility services and bill Residents such charges as additional rent together with the next regular monthly rental payment which is due following the date of such utility billing. When the Residents move from the Leased Premises, the utility charges will be charged to and deducted from the security deposit. It is understood and agreed between Owner and Residents that in the event sub-metered or allocation payments are not made when due, it shall be considered a default under this Agreement.

12.1. Connecting Utilities. If a utility is individually metered, it must be connected in Residents' names and Residents must notify the utility provider of Residents' move out date so the meter can be timely read. If Residents delay getting it turned on in Residents' name by lease commencement or cause it to be transferred back into Owner's name before Residents surrender or abandon the Leased Premises, Residents will be liable for a **\$25.00** charge, plus the actual or estimated cost of the utilities used while the utility should have been connected in Residents' names. If Residents are in an area open to competition and the Leased Premises is individually metered, Residents may choose or change Residents' retail electric provider at any time. If Residents qualify, Residents' provider will be the same as Owner's, unless Residents choose a different provider. If Residents choose or change Residents' provider, Residents' must give Owner written notice. Residents must pay all applicable provider fees, including any fees to change service back into Owner's name after Residents move out.

- 13. REQUESTS, REPAIRS, AND DAMAGES.** Except in cases of emergencies or Fair Housing accommodations, all notices from Residents or Occupants to Owner regarding repairs, services, or security must be signed by Residents or Occupants and provided to owner in written or electronic form only, as specified by Owner. Verbal requests from Residents, as well as written notes by Owner, Owner's employees, or agents will not be considered proper notice under this provision, and Owner's compliance with Residents' verbal requests does not constitute waiver of the strict requirements of this Section. Incidents constituting emergencies include situations where persons or property are in danger of imminent harm, such as fire, smoke, flooding water or active criminal activity. Resident's must immediately notify Owner of any repairs, service issues, or security issues in the Leased Premises or at the Residential Community.

Residents must notify Owner in writing as soon as possible about any condition that may pose a hazard to the health and safety of individuals or property. If Owner reasonably believes that damage from a fire or other catastrophe is substantial, or that performance of necessary repairs may pose a danger to Residents, Owner may terminate this Agreement with reasonable notice. In such event, Owner will refund the prorated rents and deposits, less any lawful deductions. Owner may terminate this Agreement upon reasonable notice to Residents if the Leased Premises are substantially damaged or the performance of services or repairs creates a danger to Residents, and Owner may remove Residents' personal

property if it poses a safety or health hazard. Owner may temporarily interrupt services as needed to prevent property damage or perform repairs, which will not constitute a reduction in services entitling Residents' to an abatement of rent, unless required by law.

- 14. LIABILITY INSURANCE.** Residents shall bear the risk of loss of any and all of Residents' personal property whether located in the Leased Premises, in garage/carport, designated storage areas or anywhere within the Residential Community. Residents agree not to hold Owner, its agents and/or employees liable in any manner for or on account of any loss or damages sustained by reason of the acts or omissions of third parties, or arising from any casualty (including but not limited to fire, smoke, rain, flood, water and pipe leaks, mold, hail, ice, snow, lightning, wind, explosions, earthquake, interruption of utilities, theft, hurricane, negligence of other residents, occupants, or invited/uninvited guests or vandalism, unless otherwise required by law. Residents understand and agree that Residents, any members of their household, occupants, or guests are not beneficiaries of any insurance policies held by the Owner or the Owner's agents. Residents are required to purchase and maintain personal liability insurance with a coverage limit of no less than **\$300,000.00** for the Initial Term and any renewal periods. Residents will be in material breach of this Agreement if they fail to comply with the requirements of this provision.

Residents acknowledge and agree that any insurance coverage maintained by Owner is not in any way held for the protection of Residents and is not intended to benefit Residents, Occupants, guests, or invitees in any way. Residents are not to be considered an insured, implied or otherwise, of the Owner or on any of the Owner's insurance policies, including fire and structure, unless expressly stated within this Agreement or within the insurance policy. Residents are to remain liable for their own negligence and are solely responsible for purchasing insurance to protect their own property. By initialing below, Residents acknowledge and agree that neither Residents nor any Occupants or guests are beneficiaries or in any way co-insured under any insurance policies held by Owner.

Initial:

- 15. ANIMALS.** No animals are permitted in the Leased Premises or the Residential Community without the prior written consent of Owner. If Owner provides consent, Owner and Residents will execute an Animal Addendum to this Agreement, which may require payment of additional rents or deposits. To the fullest extent allowed by law, Owner may revoke consent for the animal any time, with or without cause if, at Owner's sole discretion, the animal creates a nuisance or disturbance, upon ten (10) days written notice or as otherwise required by applicable law. Unless otherwise required by law, or except to the extent written permission is given, animals may not be brought upon the Leased Premises, whether such animals belong to Residents or to any other person. The presence of any animals as to which written permission has not been given and is not currently in force, even if such animals are "just visiting," shall be deemed a material and incurable breach of this Agreement and shall be cause for the service of a notice terminating the tenancy.

15.1. Service and Emotional Support Animals. Owner will authorize an emotional support animal for a disabled (handicapped) person. However, Owner may require a written statement from a qualified professional verifying the need for the emotional support animal if the person's disability is not readily apparent or already known to Owner.

- 16. HOLD HARMLESS FOR GUESTS.** To the fullest extent permitted by law, Residents agree to defend, protect, indemnify, and hold harmless Owner and Owner's agents against and from any and all claims, suits, liabilities, judgments, costs, demands, causes of action, and expenses, brought by Residents, Occupants, Residents' guests, and any other individuals in the Leased Premises with Residents' permission. If any action or proceeding is brought against Owner or Owner's agents by reason of any such claim, upon notice from the Owner, Residents shall defend the same at Residents expense by counsel reasonably satisfactory to Owner.
- 17. DELIVERY OF LEASED PREMISES.** If, for any reason, Owner is unable to provide occupancy to Residents by the scheduled first day of the Initial Term, this Agreement will continue to be in effect, and Residents' may elect one of the following remedies: a) a prorated daily abatement of rent until the date that Owner delivers possession of the Leased Premises; or b) Residents may terminate this Agreement up until such time as Owner delivers possession. Owner will have no liability to Residents if there is a delay of possession other than to refund any amounts paid to Owner under this Agreement. Residents' failure to take occupancy of the Leased Premises due to issues of cleanliness, repairs, or services, does not constitute a failure of Owner to deliver possession of the Leased Premises.
- 18. RESPONSIBILITIES OF OWNER.** Owner will act with customary diligence, and as required by applicable law, in keeping common areas reasonably clean; maintaining fixtures and appliances; complying with applicable safety, sanitation, and fair housing laws; and making reasonable repairs, provided that Residents shall be required to pay for all damages for which they are liable.

18.1. Security. Owner makes no representations or guarantees to Residents concerning the security of the Leased Premises or the Residential Community. Owner is under no obligation to Residents to provide any security measure or take any action not required by statute. The presence of courtesy patrols, patrol cars, access gates, surveillance cameras or other deterrents do not guarantee that crime can or will be prevented. All such systems are

subject to personnel absenteeism, human error, mechanical malfunctions and tampering. Residents are responsible for planning and taking action with respect to the safety of Residents and their property as if such systems and deterrents did not exist. Residents agree to immediately report all suspected or actual criminal activity to the appropriate local law enforcement agencies and, after doing so, to Owner, and shall provide Owner with such law enforcement agency's incident report number upon request.

Owner has no obligation to obtain criminal background checks on any Residents and bears no responsibility or liability related to the criminal background or actions (whether past, present or future) of any person, even if Owner has actually run a criminal background check on applicants. Residents shall not rely on the fact that Owner may have run a criminal background check on Residents or any other applicant when deciding whether to enter into this Agreement. Background checks are limited to the information actually reviewed and are not a guarantee that a person with a criminal background does not reside at the Residential Community. Owner has not made and does not make any representations as to the background of any existing or future tenant and Owner is under no obligation to run background checks on any existing tenant or future applicant.

19. ACCESS. Pursuant to RCW 59.18.150, Owner may enter the Leased Premises in order to: a) inspect the Leased Premises; b) make necessary or agreed repairs, alterations, or improvements; c) supply necessary or agreed services; or d) show the Leased Premises to prospective or actual purchasers, mortgagees, residents, workers, or contractors. Owner shall have the right to enter upon forty-eight (48) hours written notice, or twenty-four (24) hours written notice if entry is to show the Leased Premises to prospective or actual purchasers or residents at a specified time, and shall enter only at reasonable times. Owner may enter the Leased Premises without consent in case of emergency or abandonment. Owner may also be given right of access by court order, arbitrator or by consent of Residents. Residents acknowledge and agree that if Residents unreasonably withhold consent to Owner to enter into Leased Premises, when Owner is in compliance with statutory requirements and is entitled to access, any such denial of access shall be deemed a violation of this Agreement.

20. TERMINATION, DEFAULT AND REMEDIES. Owner and Residents agree that all provisions, obligations, and conditions of this Agreement are reasonable and material and that a breach by Residents of any such provision, obligation, or condition constitutes a material breach thereof. Owner is entitled to all rights, remedies, and damages under this Agreement and by law, including, but not limited to, all rights and remedies for damages to the Leased Premises, cleaning charges, past and future rent due, or other amounts due under this Agreement. All rights and remedies provided in this Agreement and by law are cumulative. To the fullest extent permitted by law, this Agreement shall be deemed terminated upon written notice of termination by Owner to Residents. No other action by Owner shall constitute termination, including, but not limited to: a) maintenance of the Leased Premises by Owner or on Owner's behalf; b) efforts to rent out the Leased Premises by Owner or on Owner's behalf; c) Owner's withholding of consent to assign or sublet the Leased Premises pursuant to the terms of this Agreement; d) Owner's termination of a sublet or assignment of the Leased Premises pursuant to the terms of this Agreement; or e) actions by Owner to procure the appointment of a receiver to secure Owner's interests under this Agreement. In the event of a breach by Residents, or where required by state or local law, Owner may provide to Residents written notice of the breach and demands for cure. Owner may terminate this Agreement if a cure is not possible or if Residents do not cure the breach within the time period provided by the notice or state law.

20.1. Acceleration of Rent. If Residents, without Owner's consent, move out, remove property in preparation to move out, or give oral or written notice of intent to move out prior to the end of the Initial Term or renewal periods AND Residents have not paid all rent for the entire Initial Term or renewal periods, then Residents will be liable to pay rent through the remainder of the Initial Term or renewal periods. Payment will be automatically accelerated and due without notice or demand. Residents under a court ordered eviction or Residents who move-out on demand from Owner due to a breach, will also be subject accelerated rent payment. Accelerated rent payments are subject to Owner's obligation to mitigate.

21. MOVE-OUT NOTICES AND PROCEDURES. Prior to moving out, Residents are required to provide Owner with advance written notice. The move out notice must comply with the notice provision of this Agreement and provide Resident's move out date. Residents must obtain written acknowledgment from Owner of receipt of Residents' move out notice. If Owner terminates this Agreement, Owner will provide Residents with the same notice unless Residents have breached the terms of this Agreement. Oral move out notice is not an acceptable form of termination. The move out date provided for in the notice cannot be changed without additional written agreement signed by both parties. Each Resident must provide Owner with their forwarding address in writing. A move out notice does not release Residents from liability under the full term or any renewal terms of this Agreement except where Resident moves out pursuant to a Military Personnel Release or if Owner and Resident agree to such release in a written amendment signed by both parties. Residents may not withhold any portion or last month's rent under the assumption that the security deposit will cover rent due. Early move out by Residents may also result in Owner incurring reletting expenses, which Residents will be liable to Owner for to the maximum extent permitted by law.

Residents, Occupants, and guests must vacate the Leased Premises on or by the agreed upon move out date, the date contained in Resident's move out notice, or, to the fullest extent permitted by law, Owner's notice to vacate. Owner may pursue action for possession for any hold over after expiration of the term of this Agreement or its termination, without the consent of Owner. Additionally, Residents will be liable for double the damages caused by their holdover, including, but not limited to, rent at the market rate and the loss of any lease signed by a new tenant who cannot take possession of the Leased Premises because of Residents' holdover or other consequential damages.

21.1. Cleaning. Prior to moving out, Residents are required to clean all areas of the Leased Premises, including but not limited to, living and dining rooms, kitchens, hallways, bedrooms, closets, bathrooms, floors, outdoor walkways, patios, balconies, and any leased or assigned parking or storage areas. Residents must also comply with move out and cleaning instructions provided by Owner. If, at Owner's discretion, Residents fail to adequately clean the Leased Premises, Owner reserves the right to hire a professional cleaning service and Residents will be liable for reasonable cleaning expenses.

22. RESIDENTS' PERSONAL PROPERTY. Residents shall vacate and remove all personal property from the Leased Premises upon expiration or termination of this Agreement without further notice or demand from Owner. Owner may remove and dispose of Residents' personal property in a manner permissible by state and local law upon termination or expiration of this Agreement, surrender, abandonment, or court ordered eviction of Resident. Owner may consider the Leased Premises surrendered when: a) this Agreement expires; b) Residents return keys and access devices to Owner; or c) the Residents have vacated the Leased Premises and the move out date has passed, whichever is earlier. Owner may consider the Leased Premises abandoned when: a) the Leased Premises appears to have been vacated; b) a significant number of the Residents' personal belongings have been removed; c) utility services to the Leased Premises have been terminated or transferred; or d) Residents have informed Owner of Residents intent to end the tenancy. Property removed or stored by Owner after Residents surrender, abandon, or are subject to a court ordered eviction may be redeemed by Residents upon payment of all outstanding sums owed under this Agreement and applicable law.

23. SECURITY DEPOSIT RETURN. Owner will mail the security deposit, less any lawful deductions, and an itemized list of amounts withheld no later than twenty-one (21) days after termination, surrender, or abandonment, unless applicable law provides otherwise. Delivery of security deposit refunds and itemized deductions to any one of multiple residents shall constitute notice and delivery to all Residents. Residents are not entitled to a refund of any portion of the security deposit unless Owner receives proper notice of move-out pursuant to this Agreement. The twenty-one (21) day period to the return of security deposits will begin after all Residents, Occupants, and guests must vacate the Leased Premises.

24. RELEASE OF RESIDENTS. Unless otherwise provided for by this Agreement or by law, Residents will not be released from this Agreement.

24.1. Military Personnel Release. A member of the armed services (or the member's spouse or dependent) may terminate this Agreement with less than twenty (20) days notice (in a month-to-month lease) in the event of permanent change of station or deployment orders that do not allow for twenty (20) days written notice, per RCW 59.18.200(1)(b), and may terminate this Agreement for a specified time (in a tenancy for a specified time) upon twenty (20) days written notice that includes a copy of the official military orders or a signed letter from the member's commanding officer confirming that the criteria described in RCW 59.18.220(2) have been met, or such time as provided in the Service Member's Civil Relief Act.

25. MISCELLANEOUS. This Agreement, including all applicable exhibits, schedules, addenda, or forms, sets forth all of the promises, agreements, conditions, and understandings between Owner and Residents and may not be changed or modified except by an agreement in writing signed by all parties. Residents acknowledge that all representations and statements relied upon in executing this Agreement are contained herein and that Residents in no way relied on any other statements or representations, written or oral. This Agreement and all rights of Residents arising under it are expressly agreed to be subject and subordinate to present and future recorded mortgages which are or may be placed upon the Leased Premises and all other rights afforded to the holder of any such mortgages.

25.1. Zero Tolerance Crime Policy. Residents, Occupants, guests, or other individuals under Residents' control: 1) shall not engage in criminal activity or engage in any act intended to facilitate criminal activity on or near the Residential Community; 2) shall not engage in drug-related criminal activity on or near the Residential Community, including but not limited to, the illegal manufacture, sale, distribution, use, or possession with the intent to manufacture, sell, distribute, or use of an illegal or control substance as defined in Section 102 of the Controlled Substance Act, 21 U.S.C. § 802; 3) shall not facilitate, use, or permit the Leased Premises to be used for criminal or drug-related criminal activity; and 4) shall not engage in any illegal activity which might negatively affect the health, safety, or welfare of the Owner, Owner's agents, other residents, the Leased Premises, or the Residential Community. Owner and Residents agree that these provisions are reasonable and material and that a violation by Residents of any such provision constitutes a material breach of this Agreement and is good cause for immediate termination of tenancy.

25.2. Satellite Dishes and Antennas. The Federal Communications Commission states that Residents have a limited right to install a satellite dish or receiving antenna within the Leased Premises. This Agreement must be amended to incorporate requirements and restrictions prior to any installation. Residents are responsible for making sure the Leased Premises is in a location to receive the satellite signal prior to requesting permission to install. For information on requirements and restrictions, contact Owner. Residents shall not install any external media device nor climb or have others climb upon the roof.

25.3. Bedbugs. Bedbugs are wingless parasites which may lie dormant in cracks, crevices and personal belongings until a host is present. Residents have an affirmative duty to inspect the Leased Premises and notify Owner of the presence or infestation of insects or vermin, including bedbugs, within forty-eight (48) hours of Residents taking possession of the Leased Premises. Absent this timely notice to Owner, Residents acknowledge and confirm that the Leased Premises are free of the presence or infestation of insects or vermin, including bedbugs. Residents agree to maintain the Leased Premises in a manner that prevents the occurrence of any infestation of insects and vermin, including bedbugs. If Residents allow individuals or items carrying bedbugs into the Leased Premises, or have repeated infestations that cannot be traced to another source, such will be deemed damage to the Leased Premises and Residents shall be responsible for the cost of treatment to the Leased Premises, personal belongings and surrounding residences as necessary to eradicate the infestation.

25.4. Attorney's Fees. In the event either party engages, retains or hires an attorney to enforce any provision of this Agreement, or any obligation under law, including but not limited to the collection of rent and/or other charges due hereunder, both Owner and Residents agree that, to the fullest extent permissible by law, court costs, prejudgment interest at the judgment rate from the date of default, and reasonable attorney's fees may be awarded to the prevailing party, even if no case is filed with the courts. If the matter is not filed in court, both parties agree that the prevailing party is entitled to be compensated upon demand to the other party. Owner shall be deemed to be the prevailing party if the action voluntarily is halted by Owner prior to judgment, or if the case is not filed, prior to filing, on the basis that Owner accepted from Residents of all or part of the amounts alleged to be owing, or on the basis that Residents vacated the Leased Premises. An eviction or unlawful detainer action shall be considered an action relating to this Agreement and thus subject to this provision.

25.5. Domestic Violence. Upon written request by the victim of domestic violence, Owner will change the locks within twenty-four (24) hours and provide the protected Resident a key to the new lock. Resident may terminate this Agreement if Resident is a victim of domestic violence. Pursuant to RCW 59.18.575, Resident or other household member must make a request to terminate this Agreement within ninety (90) days of the date of the restraining order was issued or the police report was written. Resident that is the victim of domestic violence is responsible for the payment of rent for thirty (30) days following the written notice. If the Leased Premises is occupied by other Residents, the obligation to pay rent will continue until the end of this Agreement. Resident must provide: a) a copy of the restraining order or emergency protective order lawfully issued within the last one hundred-eighty (180) days; or b) a copy of a written report, written within the last one hundred-eighty (180) days, by a peace officer employed by the state or local law enforcement agency acting in official capacity, stating that the Resident or household member has filed a report alleging that the Resident or a household member is a victim of domestic violence, sexual assault or stalking.

Owner may terminate this Agreement or elect not to renew this Agreement if: a) Resident allows the person against whom the protective order has been issued or who was named in the police report of the act or acts of domestic violence, sexual assault or stalking to visit the Residential Community; or b) Owner reasonably believes that the presence of the person against whom the protection order has been issued or who was named in the police report that outlines the act or acts of domestic violence, sexual assault or stalking poses a physical threat to other Residents, household members, guests or employees or to a Resident's right to quiet possession of the Leased Premises.

25.6. Sale of Leased Premises. In the event of a sale or pending sale of the Residential Community or in the event the Owner, new owner, lender, or lender's receiver must obtain possession of the Leased Premises in order to redevelop, renovate, or demolish the Leased Premises or any portion of the Residential Community, Residents agree that the Owner, new owner, lender, or lender's receiver shall have the right to terminate this Agreement upon thirty (30) days written notice, unless longer notice is required by law.

25.7. Fair Housing. Owner shall comply with all applicable local, state, and federal non-discrimination and fair housing laws, including laws which prohibit discrimination on the basis of race, religion, ethnic origin, national origin, color, sex, age, physical or mental disability, or family status.

25.8. Photograph Release. Residents give permission to Owner to use any photograph or photographic image, including video or video stills, taken of Residents while in the common areas of the Residential Community or at any events sponsored by the Residential Community. Residents hereby grant Owner, and any of Owner's affiliates, successors or anyone else authorized by Owner, the irrevocable and unrestricted right and permission to copyright, in its own name or otherwise, the unlimited use of Residents' image, without restriction as to changes or alterations, made

through any medium, for any legal purpose whatsoever. Residents also consent to the use of any printed matter in conjunction therewith. Residents hereby waive any right to inspect or approve the finished product and the advertising copy or other matter that may be used in connection therewith or the use to which it may be applied. Residents hereby release, discharge, and agree to hold harmless Owner and any of Owner's affiliates, successors or anyone else authorized by Owner, for all claims and demands arising out of or in connection with the use of the images taken of Residents, including without limitation any and all claims for libel, false light or invasion of privacy.

Initial:

25.9. Liquid Filled Furniture. Liquid filled furniture, including, without limitation, waterbeds and aquariums, is allowed only with proper insurance coverage, and prior written approval of Owner. Residents must provide Owner with at least 24-hours written notice prior to the installation, removal or movement of any liquid-filled furniture and Owner has the right to be present at the time of such installation, removal or movement. Installation movement and removal must be done in accordance with standards set by the manufacturer, retailer or state law, whichever provides the higher degree of safety. No aquariums over **15** gallons are permitted without prior written consent of the Owner. Any damages to the Leased Premises, the Residential Community or other residents' belongings as a result of leaks from liquid filled furniture will be replaced at the expense of Residents. Damages caused by the liquid filled furniture to other residents' belongings will give Owner permission to provide necessary Residents' information to all parties affected by the damage.

25.10. Cash is not acceptable as a form of payment. All monthly payments must be made by one (1) check not multiple checks. Partial payment of rent is not acceptable at any time; all payments must be made in full to include all amounts due. Post-dated or third party payments will not be accepted.

25.11. Misstatements on Application. Owner has relied on the statements and representation Residents made on the rental application for the Lease Premises in executing this Agreement. Residents agree that the discovery of any misstatements or misrepresentations of fact in the rental application shall be deemed a material and incurable breach of this Agreement and Owner may serve Residents with a three (3) day notice to terminate the tenancy pursuant to state law.

25.12. Proof of Occupancy. Residents agree that the receipt of mail by any individual not listed as a Resident or Occupant in this Agreement at the Leased Premises shall be proof of occupancy of that individual and a violation of this Agreement.

25.13. Force Majeure. To the fullest extent permitted by law, Owner shall be excused from performance or obligations under this Agreement in the event of an act of God, epidemic, war, acts of terrorism, flood, fire, tornado, hurricane, riot, or any other event beyond Owner's control.

26. DISCLOSURE. To the fullest extent allowed by law, Owner may provide information on Residents or Residents' rental history to business affiliates or upon reasonable request from an authorized agent of state or federal government or law enforcement agency.

27. WAIVER. Owner's failure on any occasion to require strict compliance with any provision of this Agreement or to exercise any rights arising hereunder shall not be deemed a waiver of Owner's right to subsequently enforce any such provision or to insist upon any such right. No custom or practice which may develop between the parties during the course of the tenancy shall be construed to waive the rights of Owner to enforce any provision of this Agreement. Owner's not enforcing or belatedly enforcing written-notice requirements, rental due dates, acceleration, liens, or other rights, or Owner's acceptance of rent after a notice of non-compliance or non-payment shall not be deemed a waiver under any circumstances.

If Residents pay only a portion of rent or other charges due (partial payment), with the government or another entity being responsible for paying the remainder of the rent and/or other charges due, and the government or other entity actually pays its portion and Residents fail to pay its portion as agreed, then Residents agree that in such an instance receipt of any payment from the government or other entity does not constitute a partial payment and Owner may move forward with eviction proceeding against Residents, unless the parties agree and enter into a written non-waiver agreement.

28. SEVERABILITY. If any provision of this Agreement is legally invalid, or declared by a court to be unenforceable, such provision will be deemed deleted and the rest of this Agreement shall remain in effect. To the extent that any provision of this Agreement is in conflict with any provisions of applicable law, such provision is hereby deleted, and any provision required by applicable law which is not included in this Agreement is hereby inserted as an additional provision to this Agreement, but only to the extent required by applicable law and then only so long as the provision of the applicable law is not repealed or held invalid by a court of competent jurisdiction.

29. ATTACHMENTS TO THIS AGREEMENT. Residents acknowledge and agree that the attachments listed below are incorporated into and made a part of this Agreement, and are binding even if not initialed or signed by Residents. By signing this Agreement, Residents confirm receipt of this Agreement and the attachments listed below.

Animal Addendum
Asbestos Notification Addendum
Bedbug Addendum
City of Seattle Acknowledgement Addendum - Seattle
Community Policies
Crime/Drug Free Housing Addendum
Key, Permits & Access Device Addendum
Lead-Based Paint Disclosure Addendum
Lease Buy-Out Addendum

Mold Addendum
Parking Storage Garage Addendum
Required Insurance Addendum
Resident Information Renewal Update
Restricted Animal/Breed List
Seattle Landlord-Tenant Laws
Smoke Free Addendum
VAWA Addendum

30. SIGNATORIES. Residents, whether or not in actual possession of the Leased Premises, are jointly and severally liable for all obligations arising hereunder. This Agreement shall not be considered to be in full force and effect until signed by Owner. Owner may, without liability, refuse to enter into this Agreement and may refuse to allow Residents to move into the Leased Premises at any time prior to signing this Agreement. Anything to the contrary in this provision notwithstanding, Residents shall be fully liable for all obligations arising hereunder, and Owner may enforce the provisions of this Agreement against Residents if, for any reason or by any means, Residents obtain possession of the Leased Premises before such time as this Agreement has been signed by Owner.

30.1. Electronic Signatures. The parties agree that they may enter into this transaction by electronic means; although, traditional hard copies with ink signatures may be used instead at Owner's option or if required by law. Residents agree and acknowledge that if Residents are entering into this transaction with Owner by electronic means, doing so is not conditioned on Residents' agreement to conduct the leasing transaction electronically.

INTENDING TO BE BOUND, the parties hereto have executed this Agreement as of the day and year first above written.



Lionel (Casey) C. Allard, IV (Resident)

2/17/2020
05:42 PM PST

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date



ANIMAL ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

1. No animals are permitted without the prior written consent of Owner. Any such consent may be revoked at any time, with cause upon ten (10) days written notice or without cause upon **fifteen (15)** days written notice to Residents. Except to the extent written permission is given, animals may not be brought upon the Leased Premises, whether such animals belong to Residents or to any other person. The presence of any animals as to which written permission has not been given and is not currently in force, even if such animals are "just visiting," shall be deemed a material and incurable breach of this Addendum and shall be cause for the service of a notice terminating the tenancy in accordance with applicable law. Service animals or emotional support animals are not subject to these provisions; however, Owner may require a written statement from a qualified professional verifying the need for the service or emotional support animal.
2. Subject to strict compliance with this Addendum, you are permitted to have the following **0** animal(s) on the Leased Premises:

No pets have been authorized at this time.

3. **RENT.** A total monthly animal rent of **\$0.00** is required. The animal rent shall be due and payable with Resident's monthly rental payment.
4. **DEPOSIT.** An additional deposit of **\$0.00** is required. Upon vacating the Leased Premises, Owner shall do an inspection of the Leased Premises and any sanitizing or damage attributable to the animal(s) shall be charged to Residents accordingly. The animal deposit will be considered part of the general security deposit and can be applied to all damages. This additional security deposit shall be deemed part of the general security deposit for all purposes. The security deposit amount set forth in this Addendum is in addition to, and not in lieu of, any other security deposit paid by Residents. Refund of the security deposit will be subject to the terms and conditions set forth in the Residential Lease Contract.
5. **COMMUNITY RESTRICTIONS.**
 - A. Animals must be under Residents' control when outside of Leased Premises and shall not be tied to anything or left unattended outside of Leased Premises. Residents shall be limited to a maximum of **2** animal(s) weighing not more than **15 pounds** pounds per animal when fully grown, unless otherwise given written permission by Owner.
 - B. When animal is acquired, additional sums may be required to be paid by Residents. Service or companion animals are not subject to this provision nor the standard animal deposits and animal rent requirements; however, Owner may require a written statement from a qualified professional verifying the need for the service animal or companion animal.
 - C. Animals are to be taken off the community grounds to defecate in order to avoid health and sanitation problems. Residents are responsible for the immediate removal of animal's waste. Animal owners are required to purchase and carry scoopers and/or trash bags when walking dogs within community, including designated dog run areas. Some communities may be equipped with pet waste disposal stations.
 - D. Residents may not leave the animal on the patio, balcony or in the yard for extended periods of time.
 - E. Animals are not allowed on landscaped or grassy areas under any circumstances.
 - F. Patios should be kept clean of animal droppings. During hot weather, especially, odors from such can be extremely offensive to neighbors. No food is to be left outside.
 - G. Because of health regulations, non-service animals are not permitted in or around the pool area, laundry rooms, or other recreational facilities. Any mess on the grounds created by the animal shall immediately be cleaned up by the pet owner.
 - H. Owner is not obligated to make necessary or requested repairs while an animal is present in the Leased Premises.
6. **INOCULATION.** Said animal has been properly licensed and has current inoculations for the type of animal.
7. **DISTURBANCE.** Residents will be asked to remove any animal that regularly disturbs residents, whether inside or outside, or constitutes a problem or obstruction to the agents and employees of the Owner from properly performing their functions, duties and responsibilities.
8. **REVOCATION.** If Residents fail to remove said animal following complaints from residents and requests from Owner, the Residents agree, on **fifteen (15)** days written notice, to remove animal from the Leased Premises permanently. Owner may revoke the consent given herein with cause upon ten (10) days written notice or without cause upon **fifteen (15)** days written notice, which revocation will require Residents to remove the animal from the Leased Premises within said **fifteen**

(15) days.

9. OWNER'S LIABILITY. In the event of injury or death of a pet, Owner will not be liable to Residents, any member of Residents' household, occupants, guests, invitees, or other persons for any indirect, incidental, consequential or special damages, whether foreseeable or not nor however caused, even if Owner is advised of the possibility of such damages.

10. VIOLATION OF RULES/VIOLATION FEE. If Residents, any member of Residents' household, occupants, guests, invitees, or other persons violate any rule or provision of this Animal Addendum, then Owner may demand that Residents remove the animal permanently from the Leased Premises. Owner also has all other rights and remedies set forth in the Residential Lease Contract, including but not limited to damages, termination, and eviction. If Residents fail to clean up animal waste from any part of the Residential Community and Owner, as a result of Residents' noncompliance, is required to make arrangements to have the waste cleaned up, Residents shall pay Owner a sum of **\$25.00**, per occurrence, as a liquidated damage. Said sum shall not limit Owner's right to terminate the tenancy, force Residents to remove the animal, and/or evict Residents, based upon any violation of this Addendum.

In the event of a conflict between any provision in this Special Provision section and this Addendum or the Agreement, the provision in this Special Provision section shall control.

- **Pet policy: Cats only.**

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Lionel (Casey) C. Allard, IV (Resident)

2/17/2020
05:42 PM PST

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date



Initial: DR

ASBESTOS NOTIFICATION ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

It is presumed that asbestos-containing construction materials may be present in the building where you live or work. The presence of asbestos-containing materials in buildings such as this is not unusual. Because of its excellent fire retardant and acoustical insulation qualities, asbestos was commonly used in buildings constructed prior to 1980. These asbestos-containing construction materials, may be located but not limited to the following areas:

1. Acoustic Ceiling
2. Drywall Taping Mud
3. Vinyl Flooring
4. Ceramic Tile Mastic
5. Roof Mastic
6. Stucco

The mere presence of asbestos-containing construction materials does not necessarily present a health hazard. Health hazards may exist when asbestos-containing materials are damaged and fibers are released into the air. Exposure to airborne asbestos fibers may cause lung disease, cancer and other serious illnesses. To prevent damage to asbestos-containing construction materials and minimize disturbance, release, and exposure to asbestos, the following precautions must be taken by all building occupants:

1. Do not cut, drill holes or make any penetrations into linoleum, floor tiles, drywall walls and ceilings, or shower enclosures. Should any areas containing asbestos become disturbed, do not vacuum or remove from the area. Immediately contact your on-site office for assistance.
2. Contact the on-site office before:
 - a. Removing linoleum floor tiles; and
 - b. Making repairs to drywall and shower enclosures or undertaking major rehabilitation work to the building structure.

If you have any further questions pertaining to this asbestos notification or require additional information, you may contact the on-site rental office, or the address below:

170 11th Avenue
Seattle, WA, 98122

Violation of these instructions are deemed a material breach and may subject the Resident to legal action.

ACKNOWLEDGED:



Lionel (Casey) C. Allard, IV (*Resident*)

2/17/2020
05:42 PM PST

Date

Rachel F. Bennett (*Resident*)

Date



Initial:  _____

BEDBUG ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

This Addendum is intended to provide information and instructions for preventing and controlling bed bugs in order to maintain and protect the quality of the living environment for all Residents.

Residents agree to maintain the Leased Premises in a manner that prevents the occurrence of a bedbug infestation in the Leased Premises. Residents further agree to uphold this responsibility in part by complying with the following list of responsibilities, and agree and understand that Residents may be liable for any damages resulting from their failure to comply with the following:

1. Prevention Recommendations. Residents will practice good housekeeping, including the following:

- Residents will check for hitch-hiking bedbugs. If Residents stay in a hotel or another home, inspect clothing, luggage, shoes, and belongings for signs of bed bugs before Residents enter the Leased Premises. Check backpacks, shoes, and clothing after visits to friends or family, theaters, or after using public transportation. After guests visit, inspect beds, bedding, and upholstered furniture.
- Residents will remove clutter. Bed bugs like dark, concealed places, such as in and around piles of clothing, shoes, stuffed animals, laundry, especially under the bed and in closets. Reducing clutter also makes it easier to carry out housekeeping.
- Residents will keep the Leased Premises clean. Vacuum and dust regularly, particularly in the bedroom, being especially thorough around and under the bed, drapes, and furniture. Use a brush attachment to vacuum furniture legs, headboard, and in and around the nightstand. While cleaning, look for signs of bed bugs, and report these immediately.
- Residents will arrange furniture to minimize bed bug hiding places. If possible, keep beds and upholstered furniture several inches away from the walls. Bed bugs can jump as far as three inches.
- Residents will cover mattresses and box springs with zippered covers that are impermeable to bed bugs. These are relatively inexpensive, and can prevent bed bugs from getting inside the mattress, their favorite nesting spot. The covers will also prevent any bugs inside from getting out; they will eventually die inside the sealed cover (though this may take many months). Thicker covers will last longer.
- Residents will avoid using appliances, electronics and furnishings that have not been thoroughly inspected for the presence of bedbugs. Make sure that the electronics, appliance, or furniture company has established procedures for the inspection and identification of bedbugs or other pests. This process should include inspection of trucks used to transport appliances, electronics, or furniture. Never accept an item that shows signs of bedbugs. Never take discarded items from the curbside or trash enclosures.

2. Prompt Reporting. Residents must immediately notify Owner, in writing, of any problems. Specifically, Residents will:

- Report any signs of bed bugs. Do not wait. Even a few bugs can rapidly multiply to create a major infestation that can spread from one apartment to another.
- Report any maintenance needs. Bed bugs like cracks, crevices, holes, and other openings. Request that all openings be sealed to prevent the movement of bed bugs from room to room.

3. Cooperation with Pest Control. Residents will cooperate with pest control efforts, including allowing Owner to access the Leased Premises, in accordance with applicable law, to inspect and provide necessary treatments. If the Leased Premises (or a neighbor's residence) is infested with bed bugs, a pest management professional may be called in to provide necessary treatments. The treatment is more likely to be effective if the Leased Premises is properly prepared. Residents will comply with the recommendations from the pest management professional, including:

- Remove all bedding (bed skirts too), drapes, curtains, and small rugs; bag these for transport to the laundry or dry cleaner.
- Check mattresses carefully; those with minimal infestation may be cleaned, encased in vinyl covers, and returned to service. Heavily infested mattresses are not salvageable; seal these in plastic and dispose of them properly.
- Empty dressers, nightstands, and closets. Remove all items from floors and surfaces. Inspect every item for signs of bed bugs. Using sturdy plastic bags, bag all clothing, shoes, boxes, toys, stored goods, etc. Bag washable and non-washable items separately. Take care not to tear the bags, and seal them well. Used bags must be discarded properly.

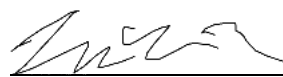
- Vacuum floors, including inside closets. Pay special attention to corners, cracks, and dark places.
- Vacuum all furniture, including inside drawers and nightstands. Vacuum mattresses, box springs, and upholstered furniture, being sure to remove and vacuum all sides of loose cushions, as well as the undersides of furniture.
- Carefully remove vacuum bags, seal bags in plastic, and discard.
- Clean all machine-washable bedding drapes, clothing, etc. Use the hottest water the machine provides, and dry at highest heat setting. Take other items to a dry cleaner, but be sure to advise the dry cleaner that the items are infested. Discard any items that cannot be decontaminated.
- Move furniture toward the center of the room, so that technicians can easily treat carpet edges where bed bugs congregate, as well as walls and furniture surfaces. Be sure to leave easy access to closets.

4. Indemnification. Residents agree to indemnify and hold harmless Owner from any actions, claims, losses, damages, and expenses, including, but not limited to, attorneys' fees the Owner may sustain or incur as a result of the negligence of Residents or any guest or other person living in, occupying, or using the Leased Premises.

Residents represent that all furnishings and other personal property that will be moved into the Leased Premises are free of bedbugs.

Initial:

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



2/17/2020
05:42 PM PST

Lionel (Casey) C. Allard, IV (Resident)

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

CITY OF SEATTLE ACKNOWLEDGMENT ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Resident has received the following documents in compliance with the City of Seattle ordinances:

Third Party Billing Disclosure

Seattle Landlord Tenant Laws



2/17/2020
05:43 PM PST

Lionel (Casey) C. Allard, IV (Resident)

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date



Initial: 

COMMUNITY POLICIES

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Star, strives to make your living experience in our community pleasant and comfortable. The following policies were designed for your comfort and convenience, for you and your neighbors. Residents are responsible for reviewing all policies with all household occupants and guests. Please take time to thoroughly review the use of the Leased Premises, Residential Community, its equipment and facilities. "Premises" as used in the Community Policies include not only the Leased Premises, but all of the land and improvements including any parking lots, driveways and common areas privately owned by the Owner and generally referred to as the Community.

Office Telephone #: (206) 652-0658	Emergency Maintenance #: (425) 737-4021
Office Address: 170 11th Avenue, Seattle, WA 98122	Office E-mail Address: clearwaterleasing@alliedresidential.com
Office Hours: Monday - Saturday 9:30 a.m. - 5:30 p.m.	

SECTION A: PROPERTY/MOVE-IN INFORMATION

BUSINESS: Residents shall not use the Leased Premises or permit the Leased Premises to be used for any business purpose, without the prior written consent of Owner or as allowed by law.

EXTENDED ABSENCES: Residents should advise Owner of any planned absence for an extended period of time.

MAIL AND NEWSPAPERS: Only registered Residents are to receive mail. All mail must contain the full address of your residence, which includes the number of the Leased Premises as well as the building number - if applicable. Unwanted or "throw-away" advertising should be disposed of properly.

MOVING HOURS: All moving is to occur **8 a.m. - 10 p.m.**, and the service elevator, if one is available at the Residential Community, is to be used to move any objects of furniture, beds, appliances, carpets and any other large objects that are not permitted on the passenger elevator. Owner must be notified in advance of any moving to schedule the time and date of such move.

PARCELS/PACKAGES: Residents authorize Owner to accept packages, letters and other deliveries when Residents are not home when delivery is attempted, or otherwise absent from the premises. Residents understand that it is the responsibility of the carrier to notify the Residents of the delivery. Residents agree to pick up the delivery within **48 Hours** of notification, or it will be returned to the sender at Residents' expense. Owner accepts no responsibility and assumes no liability for lost, stolen, damaged or delayed items. Owner will not accept C.O.D. packages. Owner reserves the right to refuse delivery of any package for any reason, and will not be responsible for any consequences of such refusal.

PREMISES INSPECTION: Each new Resident has confirmed in writing the condition of the Leased Premises on the Move-in/Move-out inspection form. This form is designed to record the condition of the Leased Premises at the time of move-in and to help determine the final disposition of the security deposit after terminating residency. Periodically, Owner may enter each Leased Premises to check the smoke and/or carbon monoxide detector(s), replace the air conditioner/heater air filter, and to properly maintain the equipment in the Leased Premises. Residents will be notified of the inspections with a written notice **48 hours** in advance. Inspection will be conducted during reasonable business hours. Upon vacating, Residents are entitled to an inspection of the Leased Premises to assess move-out charges.

QUIET HOURS: Quiet hours are established to be respectful of your neighbors. Residents shall not make nor permit any disturbing noises in their Leased Premises and on the grounds of the Community. Residents are responsible for the actions of their family, invitees, and/or guests. Radio, television, record players, musical instruments, or any other noise producing device shall not be played or permitted to be played so as to disturb neighbors during quiet hours. Vacuum cleaners, dishwashers, disposals, or other noise-producing appliances shall not be operated during quiet hours.

SECTION B: USE OF PREMISES

ALTERATIONS OR ADDITIONS: Residents shall not make any alterations or additions to the Leased Premises. If any repairs, alterations or additions are necessary, Residents shall notify Owner in writing. Residents shall make no repairs, alterations, exterior alterations including, but not limited to, posting of signs, flags, plants on ledges and wind chimes,

additions to the dwelling structure inside or out without first obtaining written consent from Owner. American flags may be displayed within the laws of the state and proper flag etiquette. Interior alterations include but are not limited to, changing light fixtures, painting, hanging wallpaper, etc.

BARBECUES: Due to fire and other safety hazard concerns, no charcoal briquette barbecues grills, gas or propane grills, cooking/heating instruments, smokers, hibachi grills, portable gas stoves, etc. are to be stored or operated in the premises or on patios, balconies or breezeway areas. Any use of open flame is prohibited including but not limited to barbecues and torches.

OUTWARD APPEARANCE: Alterations that affect the outward appearance of the Community, such as installing personal window coverings, foil on windows, towels, blankets or clothing draped over balconies or partitions, are not permitted. Signs or advertising materials will not be permitted to be posted. No foil, sign advertisements, poster, or similar display, shall be affixed to any door, window or exterior wall, that may be visible from the outside of the building by other residents. Flags may be displayed within the rentable space of the Leased Premises. Flags cannot hang over the side of patios, balconies or be attached to the exterior walls of the building, unless otherwise allowed by law.

ROOF ACCESS: The roof access is for emergency access only.

SMOKE/CARBON MONOXIDE DETECTOR: A smoke detection/carbon monoxide device has been installed in each Leased Premises. Residents acknowledge the smoke/carbon monoxide detector(s) was/were tested and its operation demonstrated by the Owner in the presence of Residents at the time of initial occupancy and the detector(s) in the Leased Premises was working properly at that time. By initializing as provided, each Resident understands that said smoke/carbon monoxide detector(s) and device is a **hard-wired with battery backup unit** and it shall be each Resident's responsibility to: 1) ensure that the battery is in operating condition at all times; 2) replace the battery as needed (unless otherwise provided by law) -- a periodic "chirping" usually means the battery is in need of replacement; and 3) if, after replacing the battery, the smoke/carbon monoxide detector(s) does not work, inform the Owner Representative immediately in writing. Residents shall perform the manufacturer's recommended test to determine if the smoke/carbon monoxide detector(s) is/are operating properly at least once per month. Resident must inform Owner immediately in writing of any defect, malfunction or failure of any detector(s). Residents are not to disable the smoke/carbon monoxide detector for any reason. Disabled smoke/carbon monoxide detector puts life at risk. REMOVING OR TAMPERING WITH A SMOKE/CARBON MONOXIDE DETECTOR(S) will be considered cause for termination of residency. Residents shall not remove or tamper, or permit any removal or tampering with, the smoke/carbon monoxide detector, which said act is punishable under Washington law with fines up to \$200.00 per occurrence.

Initial:

SPRINKLER SYSTEMS: The Leased Premises you occupy may be equipped with an automatic sprinkler system. Residents agree to use caution when moving furniture and avoid hanging objects or clothes from the sprinkler heads. A simple depression of the sprinkler head will result in a total draining of the water from the sprinkler system. Do not hang clothing, hangers or other objects from the sprinkler heads. Residents will be held liable for all damages to the Leased Premises, flood clean up and personal property damage caused by triggering the sprinkler system by improper use or damage.

1. The Leased Premises **does** have a fire sprinkler system.
2. The Leased Premises **does** have a fire alarm system.
3. The Leased Premises **does not** have an emergency notification plan for its occupants. The emergency notification plan, if any, has been provided to Residents.
4. The Leased Premises **does not** have an emergency relocation plan. The emergency relocation plan, if any, has been provided to Residents.
5. The Leased Premises **does not** have an emergency evacuation plan. The emergency evacuation plan, if any, has been provided to Residents.

CARE OF EQUIPMENT AND PREMISES

Drains: Proper use of the plumbing fixtures and drain systems is essential to prevent clogs and back up. Do not dispose of leftover grease or cooking oil down sink drains. Do not flush non-flushable items such as paper towels, rags, tampons, condoms, wipes or Q-tips in toilet. Preventing water back up of any kind will avoid damages to your personal belongings and the Leased Premises. Residents will be charged for costs due to improper disposal of items that results in drain clogs.

Emergency Water Shut-Off: If you need to turn off your water supply quickly, you will find a shut-off valve for the bathroom and kitchen in the cabinet below the sinks. The toilet shut-off valve is located underneath the toilet tank.

Equipment: The Leased Premises is provided with **Refrigerator, Stove/Oven, and Dishwasher**. Some units also have **washers/dryers**. Residents assume responsibility for any misuse of this equipment. Owner will assist with any questions as to the procedures for proper operation of the equipment. No personal dish-washing machine, clothes washing machine, clothes dryer or other large appliance is permitted in the Leased Premises without prior written consent of Owner.

Residents agree to utilize washers provided by the Community within the specifications of the manufacturer. Residents will not overload the washer. Residents agree to immediately inform Owner of repair needs. Residents understand that over a period of time, washer hoses can loosen or come free. Residents agree to regularly check hoses to make sure they are secure.

Lighting Fixture: When replacing light bulbs, always check the correct amount of wattage. Installing a light bulb with improper wattage can be a fire hazard. Replacement of all bulbs within your Leased Premises is your responsibility after move-in.

Locks: Residents shall not alter any lock or install a new lock or knocker on any door of the Leased Premises without the written consent of Owner, and if installed, they shall not be removed. In such case consent is given, Residents shall provide Owner with a key for the use of Owner, pursuant to Owner's right to access to the Leased Premises. Locks or chains must be left in place when Residents vacate. Should a resident require a lock change, a charge of **\$50.00** will be charged to the Resident. Residents locked out after office hours will be charged a fee of **\$50.00** to have their door opened, or Residents may call a locksmith at Residents' expense to open the door. **PROPER IDENTIFICATION IS REQUIRED!**

Patios: Residents shall not sweep, shake dust mops, or throw anything out of windows or onto patios. Residents may not hang laundry, clothing, towels, or bedding on balconies or windowsills. Residents are responsible for keeping their patio area cleaned, neatly arranged and free from unsightly or unused items. Patio areas are not considered storage areas. Personal patio furniture must be kept on private patios or balconies. Planting of flowers is permitted only in the fenced-in areas of private patios and on balconies.

Toilets: Water saving toilets may have been installed in your unit. Hold the handle down until you hear the water fully released. Partial flushes may cause overflow. If the water level starts to overflow, immediately shut off the valve at the base of the toilet and plunge. Residents are responsible for trying to clear toilet stoppages. If a stoppage is caused due to Residents misuse the cost of the repair will be billed to the Residents.

Windows and/or Screens: Residents are responsible for the safety of all members of Residents' household or guests in the use and opening of windows. Be aware of the danger of falls from windows. Keep your windows closed and locked when small occupants are around and no adults are around to supervise. When opening windows for ventilation, open windows that a small occupant cannot reach. Keep furniture away from windows. Move chairs, cribs, beds and other furniture away from windows. Window screen will not prevent a fall from a window. Residents must not remove or tamper with screens. Residents acknowledge all screens are intact and in good condition upon taking occupancy. Window screens found on the ground will be placed back in the window and a labor charge assessed to the Residents. Residents shall be responsible for replacement and/or repair of windows and/or screens damaged or removed by Residents', members of Residents' household or guests.

FACILITIES AT THE RESIDENTIAL COMMUNITY

Use of Facilities: All facilities provided by Owner are provided as a gratuity and are not a part of the Residential Lease Contract, and that Owner reserves the right to change or limit the hours of any such facilities, or to eliminate them completely without prior notice to Residents and that any such action by Owner shall not constitute a claim by Residents of any breach of Residential Lease Contract by Owner, nor be a basis for any reduction in rent or early termination of the Residential Lease Contract.

SECTION C: PREMISES SERVICE

EMERGENCIES: Emergencies affecting the Leased Premises should be promptly reported to Owner. Please report emergencies occurring after office hours to the emergency number and leave a message with the answering service, pager system, on call personnel, etc. Residents are not authorized to call any service companies on their own. Owner will not be responsible for charges incurred for services not authorized by Owner.

MAINTENANCE/SERVICE REQUESTS: Residents are responsible for notifying Owner when maintenance or repair work needs to be performed in the Leased Premises. Requests for maintenance and repairs may be submitted by one of the following methods:

1. By going to the Owner's office during normal working hours, and completing a "Service Request" form.
2. Call the Owner's office during normal business hour to report a service request. Service requests can also be submitted by email.
3. All non-emergency requests for repairs will be handled during normal business hours.
4. Employees cannot enter the Leased Premises to make repairs if there are persons under 18 years of age in the home without an adult guardian. Service technicians may also elect not to enter the Leased Premises in the presence of an unattended animal.
5. Scheduled appointments will be set in an **8 hour** window.
6. Maintenance work performed due to neglect, abuse, misuse or direct fault of Residents, household occupants or guests will be billed to the Residents. This includes service work on garbage disposal and plumbing fixtures due to

improper use and Residents caused clogging.

SEWER STOPPAGES: The sewer system is adequate to handle all normal waste, but the system will not handle disposable diapers, feminine products or other such refuse. Addition of toilet cleansing tabs can cause stoppage. Stoppages resulting from alterations to equipment, addition of a deodorizer or other action or inaction by the Resident, will be cleared at the Residents' expense.

UNSAFE CONDITIONS: Residents agree to report immediately to Owner any accident, injury, damage or loss, or need of service or repairs to water or gas pipes, electrical wiring, drains, toilets, fixtures, or any other property or equipment covered by the Residential Lease Contract, including all breakage, damage, or loss of any kind, including but not limited to, water intrusion, water leaks or moisture problems of any kind, damage from overflow of water from sinks, bathtubs, toilets, or other basins. Residents further agrees to immediately notify Owner of unsafe conditions in the common areas and grounds of the Leased Premises which may be a threat to health and safety or lead to damage or injury. Owner has the right to enter the Leased Premises if Owner believes an emergency exists. The following service needs constitute a non-exclusive list of potential emergencies:

1. Main drains stopped up (kitchen, bath, shower) causing flooding or back-up
2. Stopped up toilet (one bathroom premises)
3. Electrical power outage in entire Leased Premises
4. Water leaking from water heater
5. Water leak from plumbing lines, windows, ceilings, or utility rooms causing flooding or damage
6. Exterior flooding from sprinkler systems or pool
7. Water which is running and cannot be shut off
8. Broken window where the Leased Premises is not secure
9. Door locks which will not function and the Leased Premises is not secure
10. Fire (Call 911 first)
11. Calls made after office hours that are not deemed emergencies may result in a charge to the Resident.

SECTION D: HOUSEKEEPING

HEALTH & SAFETY: Residents agree to comply with all obligations imposed upon Residents by applicable provisions of State and local building and housing codes materially affecting health and safety, including maintaining adequate housekeeping standards.

HOUSEHOLD ODORS: Residents acknowledge that odors caused by cooking or use of strong chemicals or from any other source should not interfere with other residents' rights to the quiet enjoyment of the Leased Premises. Residents agree to utilize proper fans and ventilation when cooking. Owner will make all reasonable efforts to minimize a disturbance but due to close proximity of living it is not possible to prevent such odors completely.

PEST CONTROL: Residents shall report the need for pest control to Owner in writing. Residents agree to cooperate with the pest control service and abide by guidelines given by the pest control service or Owner. State Codes may require notification of chemicals to be sprayed and days of services.

MOISTURE PREVENTION: Moisture problems must be prevented and treated immediately to prevent mold. Proper ventilation is essential for preventing mold. If you should have mold develop on windows, walls or ceilings, or a musty odor is present in the carpeting, report these conditions to Owner immediately. To prevent moisture buildup, utilize stove and bathroom vent fans and leave on until steam is gone. Condensation, which develops on windows from indoor moisture, must be wiped down immediately including the window tracks. Condensation on windows indicates that fresh air is not being circulated in the home to prevent moisture buildup. Open your windows and air out your home for short periods of time to keep fresh air present. Excessive running of your heater will cause condensation in your home. Report any running or dripping faucets, plumbing leaks, roof leaks, discoloration of walls or water intrusion immediately to the rental office. Residents acknowledge receipt of the "Mold/Moisture Disclosure Statement".

SMOKING: Residents acknowledge that damage caused by smoking will not be considered normal wear and tear. Households having one or more smokers, or guests that smoke, will be held responsible for additional costs related to smoke related damages. Smoke related damages can be, but are not limited to, yellowed walls and ceilings; mini blinds and draperies, painting or treatment required due to smoke odor, burns to counters, sinks or extra cleaning of carpets due to smoking. Residents will be considerate of other residents by minimizing the patterns of smoke and/or smell which may be a sensitivity or allergy to other residents. Interference with other residents' rights to the quiet enjoyment of the premises as a result of second hand smoke may be grounds for termination of tenancy. Residents will comply with all local ordinances for smoking in common areas, Leased Premises and exposure to other residents.

STANDARDS: Residents shall keep the interior of the Leased Premises clean according to good housekeeping standards. This includes maintaining all utility services. Residents will assume full responsibility for keeping their patio, entry doors, entrance walkways, porches, patios and balconies area cleaned, neatly arranged and free from unsightly or unused items. Residents shall keep the Leased Premises and such other areas as may be assigned for Residents' exclusive use,

including but not limited to, the Leased Premises fixtures, appliances, entry doors, windows and screens, sidewalks, parking space(s) and grounds, in a clean, safe and sanitary condition.

STORAGE: Garbage cans, bottles, brooms, mops, toys, bicycles, fitness equipment, cardboard boxes, household furniture, and similar personal property are to be kept inside the Leased Premises or appropriately designated storage areas and out of view. Patios and/or balconies are to be used for patio furniture only. Areas located outside front doors or on stairway landings are part of the common area and cannot be used for storage.

UNIVERSAL WASTE: Disposal of universal waste is prohibited in general trash receptacles in the Community. Disposal of universal waste in the trash receptacles by Residents may result in a fine for Owner, and therefore will be deemed a violation of the Residential Lease Contract. Universal waste includes electronic devices (televisions, computer monitors, computers, printers, VCRs, cell phones, telephones, radios and microwaves), common batteries (AA, AAA, C Cells, D cells and button batteries), Fluorescent Tubes and Bulbs and Other Mercury-Containing Lamps (fluorescent light tubes and bulbs, high intensity discharge (HID), metal halide, sodium and neon bulbs), Mercury added Novelties (greeting cards, athletic shoes and mercury maze games), Non-Empty Aerosol cans (aerosol cans can be flammable).

SECTION E: SUPERVISION HOUSEHOLD MEMBER/VISITORS/GUESTS

GUESTS: Guests staying in excess of 72 hours MUST register with the office. Residents may be permitted to have a guest(s) visit their household. However, any person(s) making REOCCURRING visits of six (6) consecutive days or fourteen (14) total days in any twelve (12) month period shall be deemed to reside in the Leased Premises in violation of the Residential Lease Contract. Persons receiving mail to the Leased Premises will be considered occupants. All adult household members must submit a completed application and qualify for residency.

SUPERVISION: Residents agree that Residents are responsible for the conduct of any member of their household, visitors and guests, and agree to pay for any damage to the Leased Premises caused by members of the household or guests. Residents shall prevent household members and guests from loitering or playing in areas other than designated play areas, and to prevent household members or guests from tampering, in any way, with the landscape, sprinkler system or plants, shrubbery, trees or equipment that is appurtenant to the Leased Premises.

WALKWAYS: Residents shall not store nor allow any personal household property outside the Leased Premises in a manner that may be detrimental to the appearance of the premises or interfere with free passage upon any street or sidewalk in the Leased Premises. Walkways are for pedestrian use. No bicycling, roller skating or in-line skating, skateboarding, coaster riding, drawing with chalk, etc., is allowed on walkways. Walkways are to be kept clear of toys, bicycles, etc.

SECTION F: CONDUCT

ACTS OF VIOLENCE: Residents or members of the household or guests shall not engage in any acts of violence including but not limited to the display of, brandishing, or using in a threatening manner, any dangerous weapons or objects in or about the Leased Premises. Residents shall not keep or use on or about the Leased Premises or project any explosive, flammable, or repellent device, or otherwise dangerous device, and to take every care and precaution to prevent fires.

ALCOHOL/PUBLIC INTOXICATION: Residents shall not engage in, and Residents shall take reasonable action to prevent all members of Residents' household and guests from, drinking alcoholic beverages or using illegal substances in or on common areas, walkways or streets of the Community, or in vehicles parked or moving on the Community.

ILLEGAL ACTIVITY: Residents, any member of the Residents' household, or a guest or other person under the Residents' control shall not engage in illegal or criminal activity, nor in any act intended to facilitate illegal or criminal activity, including gang or drug-related illegal or criminal activity, on or near the premises. Residents, all members of the Residents' household and guests shall not engage in the manufacture, sale, or distribution of illegal drugs or be under the influence of any controlled or illegal substance at any location, whether on or near the premises or otherwise, nor permit the Leased Premises to be used for, or to facilitate, any illegal or criminal activity.

LOITERING: Residents, household members, or guests shall not loiter outside the Leased Premises, after 10:00 p.m. Residents shall conduct themselves, and cause other persons who are on the Leased Premises with their consent to conduct themselves in a manner, which will be conducive to maintaining the Leased Premises in a decent, safe, and sanitary condition; and to promote the quiet enjoyment of the premises for all residents. Residents will not make, or cause to be made, or permit any disturbance or loud noises in or on the premises, street, or common areas.

NOISE: Residents, household members and guests shall not make or allow to be made any disturbing noises upon the Leased Premises by Residents, household members or guests, etc., nor permit anything to be done by such persons that will interfere with the rights, comforts, or convenience of other Residents. Residents, household members and guests are advised to take care when approaching and leaving their Leased Premises during the quiet time, between the hours of 10 pm and 8 am and to show consideration of other residents at all times. Residents shall not play upon or allow to be

played upon, any musical instrument or operate or allow to be operated audio equipment, radio, or television in or on the premises **between the hours of 10 pm and 8 am**, if the same shall disturb or annoy other occupants of the Community.

THREATS/OFFENSIVE CONDUCT: To assist in ensuring the safety and quiet enjoyment of all Residents, household members and guests shall not engage in offensive conduct or language on or about the premises. Residents, all members of the Residents' household and guests shall not cause or threaten to cause serious physical injury to another person on the premises, or be involved in a fight while on the premises; commit abuse upon any person on the premises, and will abstain from any activity which impairs the physical or social environment of the premises.

SECTION G: VEHICLES

INOPERABLE VEHICLES: All vehicles must be currently registered, licensed and in operating condition. Any vehicle in violation of this provision may be towed at vehicle owner's expense in compliance with the vehicle codes of the state. Repair work, oil changes and similar work is not permitted in the parking lots. Such work must be done off the property. Residents agree that any vehicles that are inoperable for more than 72 consecutive hours without written permission of Owner may be removed at the expense of the vehicle's owner. Vehicles not moved in excess of 7 days will be considered inoperable. Extra vehicles cannot be stored on the property. Vehicle maintenance on the premises is prohibited. Residents and/or guests shall not park vehicles in a state of disrepair on the premises. This includes operational vehicles leaking on parking surfaces. Leaks and spills and/or damages caused by Residents' vehicles are the responsibility of Residents. The owner of any vehicle that leaks oil in the parking lot will be held responsible for clean-up and/or damage charges.

PARKING/SPEED LIMITS: Residents shall observe, and cause all members of Residents' household and guests to observe, the posted speed limits on drives in the premises, to park and cause members of Residents' household and guests to park only in assigned parking areas; not to block access to other parking spaces, garages or for emergency vehicles, or to other residences, and not drive, or park any vehicle on the lawn, driveway, or other areas for common use in the premises. Vehicles parked within 15 feet of a fire hydrant or in a fire lane may be towed without warning. Vehicles may not be backed into parking spaces. Vehicles which create a nuisance due to excessive music or activation of a car alarm shall be removed from the property at the vehicle owner's expense. Parking designated for the office is not to be used during operating business hours. Vehicles parked in designated handicapped spaces without display of handicap placard or handicap plates are subject to immediate towing. Some communities may require parking stickers for all cars parked on the premises. Cars without required parking stickers will be considered unauthorized and may be towed without warning. Residents agree that any vehicle that is improperly parked, or in violation of vehicle or parking policies without written permission of Owner may be removed at the expense of the vehicle's owner. Owner is the only authorized agent for the towing of vehicles. Owner, in its sole discretion, reserves the right to reassign any designated parking space(es) during the term of the Residential Lease Contract, subject to any applicable requirements under the Fair Housing Act.

UNASSIGNED PARKING: *Communities with unassigned parking, the following applies:* Parking is on a first come/first serve basis and a parking space is not guaranteed. Residents having more than one vehicle per household are requested to be considerate of other residents when parking second vehicles. Infrequently used vehicles (any vehicle not used or moved every 72 hours) are to be parked in more remote parking areas as designated by Owner. Additional vehicles (more than 2 per household) are to be parked off the premises.

RECREATIONAL VEHICLES: Recreational vehicles such as trailers, motor homes and boats are not allowed to be parked on the premises. Motorcycles are subject to the same rules as automobiles. They must be operated in a safe manner at all times. Motorcycles are considered vehicles and must be parked in an appropriately designated parking space. Motorcycles may not be parked on sidewalks, in stairwells, on patios, on porches or in any other area not designated for the parking of vehicles. No recreational vehicles, trailers or boats are allowed on the premises except with written consent of Owner.

VEHICLE REGISTRATION: Residents shall register **all** household vehicles with Owner. Residents agree to provide vehicle information (license number, make, model, etc.) and provide updated information in the event of changes. Vehicles on the premises must be currently registered and properly insured according to state law.

WASHING VEHICLES: Residents may wash or spray off vehicles only in designated areas of the premises. Residents will make every effort to not waste water if a designated area exists. Owner will advise Residents if a specific area exists on the property. If no designated area exists, Residents may not wash or spray off vehicles anywhere on the premises.

SECTION H: ANIMALS

ANIMALS: Except for service animals and emotional support animals, no wild or domestic animals of any kind and no aquariums in excess of **15 gallons** are allowed within the Residential Community or in the Leased Premises at any time, including pets belonging to others, without the prior written consent of Owner. If a pet is allowed, a separate written agreement and deposit is required. Contact Owner for further information.

SECTION I: MOVE-OUT INFORMATION

MOVE-OUT CHARGES: Residents will be charged for damage to the Leased Premises beyond "normal wear and tear".

Repair and replacement damages will be billed at actual charges. Please see your Move-in/Move-out inspection form for additional information concerning this matter.

PERSONAL PROPERTY: Residents agree to remove all personal property when vacating the Leased Premises. All personal property left on the Leased Premises when the unit is vacated shall be deemed to be property abandoned by Residents and may be disposed of according to law. All personal property removed from the Leased Premises at the time of physical eviction of Residents shall be deemed abandoned if not claimed within the time prescribed by law, and may be disposed of by Owner in accordance with the Residential Lease Contract and applicable law.

DEPOSITS: Deposits will be refunded when ALL keys are returned and premises are vacated and left in the same general condition as when first occupied, with the exception of normal wear and tear, in accordance with state law.

THESE COMMUNITY POLICIES NOW BECOME A PART OF YOUR RESIDENTIAL LEASE CONTRACT.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Lionel (Casey) C. Allard, IV (Resident)

2/17/2020
05:44 PM PST

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

CRIME/DRUG FREE HOUSING ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

In consideration of the execution or renewal of the Residential Lease Contract, Owner and Residents agree as follows:

1. Residents, any member of Residents' household, occupants, guests, invitees, or other persons under Residents' control, shall not engage in criminal activity, including drug-related criminal activity, on or near the Residential Community. "Drug-related criminal activity" means the illegal manufacture, sale, distribution, use, or possession with intent to manufacture, sell, distribute, or use an illegal or controlled substance (as defined in Section 102 of the Controlled Substance Act (21 U.S.C. 802)).
2. Residents, any member of Residents' household, occupants, guests, invitees, or other persons under Residents' control, shall not engage in any act intended to facilitate criminal activity, including drug-related criminal activity, on or near the Residential Community.
3. Residents, any member of Residents' household, occupants, guests, invitees, or other persons under Residents' control, shall not permit the Leased Premises to be used for, or to facilitate, criminal activity, including drug-related criminal activity, regardless of whether the individual engaging in such activity is a member of the household or a guest.
4. Residents, any member of Residents' household, occupants, guests, invitees, or other persons under Residents' control shall not engage in the manufacture, sale, or distribution of illegal drugs at any location, whether on or near the Residential Community or otherwise.
5. Residents, any member of Residents' household, occupants, guests, invitees, or other persons under Residents' control shall not engage in any illegal activity, including but not limited to: assault and battery, threatening or intimidating, criminal street-gang activity, unlawful use and discharge of firearms, prostitution, or any breach of the Residential Lease Contract that otherwise jeopardizes the health, safety and welfare of Owner, Owner's agents or other residents.
6. **VIOLATION OF THE ABOVE PROVISIONS SHALL BE A MATERIAL AND IRREPARABLE VIOLATION OF THE RESIDENTIAL LEASE CONTRACT AND GOOD CAUSE FOR IMMEDIATE TERMINATION OF TENANCY.** A single violation of any of the provisions of this Addendum shall be deemed a serious violation, and a material non-compliance with the Residential Lease Contract. It is understood and agreed that a single violation shall be good cause for termination of the Residential Lease Contract.
7. In case of conflict between the provisions of this Addendum and any other provisions of the Residential Lease Contract, the provisions of this Addendum shall govern.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Lionel (Casey) C. Allard, IV (Resident)

Date

2/17/2020
05:44 PM PST

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

KEYS, PERMITS, AND ACCESS DEVICES ADDENDUM

This is an addendum to the Residential Lease Contract dated **February 17, 2020** between **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett** ("Residents") for the residence located at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises").

Residents acknowledge that they have been provided with keys and access devices listed below:

<u>2</u>	Building
<u>2</u>	Mailbox Key(s)
<u>2</u>	Apartment Key(s)

Residents will be liable for the below listed charges for replacing keys, permits, tags, and access devices.

Deposit Amounts	
Building Key	1 X \$0.00 = \$0.00
Mailbox Key	2 X \$0.00 = \$0.00
Apartment Key	2 X \$0.00 = \$0.00

Replacement Costs	
Building Key	\$10.00
Mailbox Key	\$10.00
Apartment Key	\$10.00



2/17/2020
05:44 PM PST

Lionel (Casey) C. Allard, IV (Resident)

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

LEAD-BASED PAINT DISCLOSURE ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

LEAD WARNING STATEMENT

Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips, and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting housing built prior to 1978, Owner must disclose the presence of known lead-based paint and/or lead-based paint hazards in the Leased Premises. Owner must also provide a copy of a federally approved pamphlet on lead poisoning prevention.

OWNER'S DISCLOSURE

1. Presence of lead-based paint and/or lead-based paint hazards:

- ☐ Owner has no knowledge of lead-based paint and/or lead-based paint hazards in the Leased Premises.
☒ Owner **has** knowledge of lead-based paint and/or lead-based paint hazards that are present in the Leased Premises: _____.

2. Records and reports of lead-based paint and/or lead-based paint hazards:

- ☒ Owner **has no** reports or records pertaining to lead-based paint and/or lead-based paint hazards in the Leased Premises.
☐ Owner has provided Residents with all available records and reports pertaining to lead-based paint and/or lead-based paint hazards in the Leased Premises. The following documents have been provided: _____.

RESIDENTS' ACKNOWLEDGEMENT

Residents have received a copy of the pamphlet **Protect Your Family from Lead in Your Home** and copies of all documents listed above, if any. Residents agree to promptly notify Owner of any deteriorated and/or peeling paint.

Initial: _____

OWNER'S ACKNOWLEDGEMENT

Owner has informed Residents of Owner's obligations under 42 U.S.C. 4852(d) and is aware of his/her responsibility to ensure compliance.

Initial: _____

CERTIFICATION OF ACCURACY

The following parties have reviewed the information above and certify, to the best of their knowledge, that the information they have provided is true and accurate.

Initial: _____

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Lionel (Casey) C. Allard, IV (Resident)

Date

2/17/2020
05:44 PM PST

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

LEASE BUYOUT ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

This Addendum provides Residents an opportunity to buy out early from the Residential Lease Contract. Residents must comply with all provisions and conditions of this Addendum in order to terminate liability under the full length of the Residential Lease Contract.

1. Lease Buy-Out Conditions.

- a. **Notice.** Residents must provide Owner with written notice of buy-out at least **20** days prior to the Residents' intended termination/move-out date; such date **must be the last day of the month**. This notice must be signed by all signatories to the Residential Lease Contract. Owner has the right to begin showing the Leased Premises to prospective residents upon receiving notice of the buy-out and termination date from Residents.
 - b. **Good Standing.** Residents must not be in default under the Residential Lease Contract on the date Residents provide notice to Owner about the buy-out, or through the intended termination/move-out date. Residents must also be current for all rent payments and all other amounts due and owing under the terms of the Residential Lease Contract through the termination/move-out date.
 - c. **Move Out.** Residents must vacate the Leased Premises on or before the intended termination/move-out date.
 - d. **Consideration.** In consideration for early termination of the Residential Lease Contract, Residents must pay Owner a buy-out fee of **\$2,081.00**. Owner must receive the buy-out fee no later than **10** days after notice to buy-out is provided by Residents. Residents are also liable to Owner for the total dollar amount of any concessions received upon signing or during the term of the Residential Lease Contract and any other monetary obligations due. No refund of the buy-out fee is due to Residents regardless of when the unit is re-rented.
2. Owner's deposit of the amounts detailed above constitutes Owner's acceptance of the intended termination/move-out date contained in Residents' buy-out notice. The buy-out will automatically be voided if Residents fail to comply with all the provisions and conditions of this Addendum or the Residential Lease Contract, or if Residents make any false statements or provide false documentation to Owner. If the buy-out is voided (1) the Residential Lease Contract will continue through its full term; (2) Residents will be subject to all available remedies under the Residential Lease Contract; and (3) any amounts paid by Resident for the buy-out will become part of Residents' security deposit.
3. Residents are not permitted to hold over after the intended termination/move-out provided on the buy-out notice. Residents should contact the Owner about any anticipated problems with moving out by or before the intended termination/move-out date from the buy-out notice. Any extension to the intended termination/move-out date will only be effective if agreed to and signed by all parties in writing.
4. Residents' opportunity to buy-out **is not** limited to certain situations. If limited, Residents may only exercise the buy-out opportunity in the situations described below or with written approval by Owner. In the event that any terms and conditions contained in the situations below conflict with provisions or conditions described above, the terms and conditions described below will control. Permissible buy-out situations include: **N/A**.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Lionel (Casey) C. Allard, IV (Resident)

Date

2/17/2020
05:44 PM PST

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

MOLD ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Owner has inspected the Leased Premises prior to Residents' occupancy, and Owner knows of no damp or wet building materials and knows of no mold or mildew contamination. Residents are hereby notified that mold, however, can grow if the Leased Premises are not properly maintained or ventilated. If moisture is allowed to accumulate in the Leased Premises, it can cause mold and mildew growth. There are no established guidelines for unacceptable air quality caused by mold. Mold is a naturally occurring phenomenon. Mold and/or mildew should be cleaned as soon as it appears. Mold and/or mildew growth can often be seen in the form of discoloration. The different colors of mold range from white to black, including, but not limited to, green, gray, brown, orange, yellow and other colors.

Residents agree to maintain the Leased Premises in a manner that prevents the occurrence of mold or mildew growth within the Leased Premises. In furtherance of such obligation, Residents agree to perform the following:

1. Keep the Leased Premises free from moisture, dirt and debris that can harbor mold.
2. Inspect the Leased Premises regularly for the indications and sources of indoor moisture.
3. Immediately notify Owner, in writing of any discoloration evidenced on walls, floors, or ceiling and/or any water intrusion, such as roof leaks, window leaks, plumbing leaks, drips, flooding, or "sweating" walls or pipes.
4. Immediately notify Owner, in writing, of overflows from bathroom, kitchen or any other water source facilities, especially in cases where the overflow may have permeated walls, flooring or cabinets.
5. Immediately notify Owner, in writing, of the presence of any mold growth on surfaces inside the Leased Premises.
6. Allow Owner to enter the Leased Premises to inspect and make necessary repairs, in the event mold or water intrusion is present.
7. Utilize bathroom fans while showering or bathing, and notify Owner of any nonworking fans.
8. Utilize stove hood vents/exhaust fans whenever cooking, dishwashing, or cleaning.
9. Use all reasonable care to close all windows and other openings in the Leased Premises to prevent outdoor water from penetrating into the interior of the Leased Premises.
10. Clean and dry any visible condensation/moisture on windows and window tracks, walls, and any other surfaces, including personal property, as soon as reasonably possible.
11. Notify Owner of any problems with air conditioning or heating systems that are discovered by Residents.

NOTE: Mold can grow on damp surfaces within 24 to 48 hours. Condensation on windows indicates that fresh air is not being circulated in the Leased Premises. To prevent condensation/moisture buildup, open windows and air out the Leased Premises for short periods of time to keep fresh air present. Maximize the circulation of air by keeping furniture away from walls and out of corners. Residents may add a little dish soap to the water mixture to cut any dirt and oil on the surface that Residents are cleaning that may contain mold. Do not add other cleaning chemicals, especially ammonia. Dispose of any rags or sponges used to clean the mold in a sealed bag.

Residents agree to indemnify and hold harmless Owner and Owner's Agent from any suits, actions, claims, losses, damages, and expenses and any liability whatsoever that Owner and/or Owner's Agent may sustain or incur as a result of Residents' failure to comply or perform with the obligations set forth above or as the result of intentional or negligent action or failure to act on the part of Residents or any other person living in, occupying, or using the Leased Premises, except if the liability is based upon a negligent act or omission of Owner and/or Owner's Agent.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



2/17/2020
05:45 PM PST

Lionel (Casey) C. Allard, IV (Resident)

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

PARKING/STORAGE/GARAGE ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Vehicles Information					
Year:	Make:	Model:	Color:	Plate #:	State:
Parking/Storage Information					
Parking Space #(s):	Garage #(s):	Carport #(s):	Parking Permit #(s):	Storage #(s):	
N/A	N/A	N/A	N/A	N/A	
Parking Rent:	Garage Rent:	Carport Rent:	Storage Rent:		
\$0.00	\$0.00	\$0.00	\$0.00		

1. Residents agree to rent the herein described premises at the rate of **\$0.00** per month. Failure to pay in full will be considered partial payment of the total rent due. Rent is due and payable on or before the **1st** of the month, with payment of rent for the Leased Premises. Rent paid after the **5th** of the month will be considered delinquent and assessed a **\$0.00** late fee.
2. Residents agree to pay an additional Security Deposit in the amount of **\$0.00**, prior to taking occupancy of the above-listed item. This security deposit will be considered part of the general security deposit and can be applied to all damages. This additional deposit effectively increases an existing or pre-existing Security Deposit, and, at Owner's sole option, may be retained by Owner to offset any Residents' default in and/or non-compliance with the Residential Lease Contract, the Parking/Storage/Garage Addendum or any applicable law termination.
3. Failure to pay rent before the **6th** of the month will result in a 30-Day Notice to terminate this agreement.
4. This Addendum is automatically terminated upon termination of Residents' tenancy and (i) any remaining vehicles are subject to immediate tow at vehicle owner's expense, and (ii) any remaining personal items may be disposed of by Owner.
5. This addendum will be concurrent with the term of the Residential Lease Contract and terminates automatically without further notice upon the termination of occupancy of the Leased Premises.
6. To the extent allowed by applicable law, Owner shall not be liable for any damage or loss to personal property, motor vehicles of, or the contents of motor vehicles of, Residents, any member of Residents' household, occupants, guests, invitees, or other persons. Failure of Residents, any member of Residents' household, occupants, guests, invitees, or other persons to follow Community Rules and/or posted signs relating to parking and operation of vehicles will result in the towing of the offending vehicle at the cost of the vehicle owner. The location and number of any parking space(s) assigned to Residents may be changed at any time at the sole discretion of Owner.

STANDARD STORAGE POLICIES

1. Residents agree to use the storage space for the storage of personal belongings. The storage space may not be used for occupancy, entertainment, conducting business, or storage of a motor or recreational vehicle. Loitering is prohibited in the storage space.
2. Residents agree to keep the door to the storage space closed and secure when not present.
3. Items that pose an environmental hazard or a risk to the safety or health of other residents, occupants, or neighbors in Owner's sole judgment or that violate any government regulation may not be stored in the storage space. Prohibited items include fuel (other than a properly capped fuel tank of a vehicle), fireworks, rags, piles of paper, or other material that may create a fire or environmental hazard. Owner may remove from such areas, without prior notice, items that Owner believes might constitute a fire or environmental hazard.
4. Storage of food or other recyclable goods which could attract vermin is prohibited.
5. Residents agree not to store or cage animals in the premises.
6. Owner assumes no responsibility for damage caused by insects or weather conditions to items stored in the premises.
7. Residents acknowledge that Owner does not provide insurance to cover Residents' belongings. Owner has no liability whatsoever for loss or damage to Residents' property whether by fire, theft, vandalism or while items are within the premises.
8. Residents agree to obtain renters insurance for all items stored in the premises.
9. No improvements or alterations shall be made without written consent of Owner. To protect the walls of the premises, use of screws, nails or hooks upon the floors, doors, cabinets or walls are prohibited without Owner's prior written permission.
10. Residents acknowledge that the storage space does not include a smoke/carbon monoxide detector unless required by law.

11. Owner reserves the right to inspect the storage space at any time for emergency or for the purpose of compliance with the terms and conditions of this addendum.

STANDARD PARKING POLICIES

1. Residents agree vehicle(s) must be registered and insured as required by state and local law. Inoperable and/or illegally parked vehicles will be towed at vehicle owner's expense.
2. Vehicles must be operating on a **weekly basis**. Inoperable vehicles are considered but not limited to those vehicles not driven regularly, those with flat tires, not mechanically fit or properly registered.
3. Auto repairs are not permitted on the premises.
4. Music and noise from vehicles must be kept at a minimum to avoid disturbing other residents.
5. Residents are responsible for maintaining the parking stalls free of oil spills or other fluid leaks.
6. Parking spaces may not be used for storage of any kind.
7. Guest parking is limited to: **Street Parking**.
8. Vehicles stopped, parked or double parked in handicap spaces (without displaying appropriate permits), fire hydrant restricted areas, non-designated parking areas, red zones, other residents' assigned spaces or rental office parking may be subject to citations and/or towing at the vehicle owner's expense, as allowed by applicable law.
9. Assigned spaces can be changed at any time at the discretion of the Owner. Residents must use their assigned spaces before using any non-assigned spaces.
10. Car washing on the premises is prohibited.
11. Speed limits are **5 miles per hour** miles per hour throughout the community.
12. Boats, trailers, recreational vehicles and over-sized trucks may not be parked or stored in parking facilities.
13. Parking Permits will be displayed at all times when parked on the premises.
14. All vehicles must be registered with the rental office. Owner must be notified of changes in vehicles and/or vehicle tags.
15. Residents acknowledge that Owner does not provide insurance to cover vehicles or their contents.

STANDARD GARAGE POLICIES

1. Residents agree to utilize the premises for the parking of **one automobile(s)**. Residents are not permitted to utilize the premises for storage of any personal property other than the vehicle(s) designated in this Addendum. Residents must use the premises as their primary parking area.
2. The garage door is to be secured closed and locked when Residents are not present.
3. The premises may not be used as a place of occupancy, for loitering, entertaining or the consumption of alcoholic beverages.
4. Residents must maintain premises in a safe and clean condition.
5. Residents acknowledge that the garage does not include a smoke/carbon monoxide detector unless required by law.
6. Items that pose an environmental hazard or a risk to the safety or health of other residents, occupants, or neighbors in Owner's sole judgment or that violate any government regulation may not be stored in the garage area. Prohibited items include fuel (other than a properly capped fuel tank of a vehicle), fireworks, rags, piles of paper, or other material that may create a fire or environmental hazard. Owner may remove from such areas, without prior notice, items that Owner believes might constitute a fire or environmental hazard.
7. Owner reserves the right to inspect the premises at any time for emergency or for the purpose of compliance with the terms and conditions of this agreement.
8. This agreement can be terminated by either party with a thirty (30) day written notice.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Lionel (Casey) C. Allard, IV (Resident)

2/17/2020
05:45 PM PST

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

Initial: 

RESIDENT INSURANCE REQUIREMENTS

Per **Allied Residential** policy, effective **February 1, 2020** all new residents and residents renewing their lease agreements must provide **Star** with proof of **\$300,000.00** in personal liability insurance prior to move-in and or renewal.

As of **February 1, 2020** all prospective residents and residents renewing their lease agreements must be alerted to the requirement of having liability insurance. Effective **February 1, 2020**, all prospects and residents renewing their lease agreements will be required to have insurance in place prior to move-in/renewal. Renewal letters should be modified to notify the resident of this requirement.

Who Must Comply

- Every Lessee (occupants 18 years or older) must have the necessary coverage and documentation.
- A policy may be obtained with multiple residents covered, i.e., married couple, domestic partners, or roommates.
- Each applicant/resident over 18 years of age MUST be named as an insured on the policy declaration page or on the letter of insurance confirmation.
- Should a roommate change is made; the roommate added must provide the necessary documentation.
- In the event the resident fails to obtain and maintain the personal liability coverage as required herein, management shall have the right, to charge a non-compliance fee in the amount of **\$20.00** which shall be deemed to be an additional monthly rent under the Lease and immediately due payable by resident.
- If a unit is leased to a company/corporation, the corporate apartment renters may be covered under the respective company's policy. The community is responsible to ensure that a current certificate is on file and covers the necessary apartment(s).

Exceptions to Compliance

- Residents that are under a below market rent (BMR); Affordable; Tax Credit and/or Rent Control Program are excluded from this requirement.

Policy Specifications and Documentation

The policy should include the following:

- Coverage must be for at least **\$300,000.00** in personal liability (bodily injury and property damage) for each occurrence.
- The community and its address must be detailed as the location of residence insured.
- **Allied Residential** and **Star** must be listed as *certificate holder, additional insured, lienholder, or interested party*.
- The term of the coverage must be at least the length of the lease term.
- The policy must have a clause stating that **Allied Residential** and **Star** will receive a 30 day notice prior to termination.

Processing the Insurance Certificates

- The resident must provide the community proof of insurance in the form of an insurance certificate, policy document, policy declarations page, or policy binder.
- The documentation should be filed in the resident's file and the necessary fields should be completed in MyRenterPolicy.com.
- Each month the Community Manager is responsible for running an Insurance Cancellations and Expirations report from MyRenterPolicy.com which tracks insurance compliance to ensure all residents are complying with the insurance requirement. If a resident is not in compliance, excluding the exceptions noted above, a letter must be sent to the resident to request compliance.
- If a resident is not in compliance with the insurance requirement it is the Community Manager's responsibility to ensure the resident receives a letter informing them of their failure to comply. If within two weeks, the resident has not provided proof of current insurance, the community must send a second letter demanding that the resident comply with this insurance requirement.

Other

- **Allied Residential** will not evict due to lack of compliance however we will not renew a resident who has not complied with the insurance requirements.
- Proof of the necessary insurance must be received prior to issuing apartment keys.



2/17/2020
05:45 PM PST

Lionel (Casey) C. Allard, IV (Resident)

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

Resident Information Renewal Update

Please help us keep our records current by completing the following information.

Please Print

LEASED PREMISES ADDRESS: 170 11th Avenue #202, Seattle, WA 98122		
RESIDENT: Lionel (Casey) C. Allard, IV		
DAYTIME PHONE #: (301) 529-1093	CELL PHONE #:	
E-MAIL ADDRESS: caseyallard@hotmail.com		
CURRENT EMPLOYER: Providence Health and Services		ANNUAL INCOME: \$107,000.00/Yr.
EMERGENCY WORK PHONE #:		
CURRENT VEHICLE MAKE AND MODEL:		
LICENSE TAG #:		STATE:
EMERGENCY CONTACT		
EMERGENCY NAME:	RELATIONSHIP:	CONTACT NUMBER:
EMERGENCY NAME:	RELATIONSHIP:	CONTACT NUMBER:



2/17/2020
05:45 PM PST

Lionel (Casey) C. Allard, IV

Date

Resident Information Renewal Update

Please help us keep our records current by completing the following information.

Please Print

LEASED PREMISES ADDRESS: 170 11th Avenue #202, Seattle, WA 98122		
RESIDENT: Rachel F. Bennett		
DAYTIME PHONE #: (770) 696-8752	CELL PHONE #:	
E-MAIL ADDRESS: rachelf.bennett@gmail.com		
CURRENT EMPLOYER: Self-Employed		ANNUAL INCOME: \$40,000.00/Yr.
EMERGENCY WORK PHONE #:		
CURRENT VEHICLE MAKE AND MODEL:		
LICENSE TAG #:		STATE:
EMERGENCY CONTACT		
EMERGENCY NAME:	RELATIONSHIP:	CONTACT NUMBER:
EMERGENCY NAME:	RELATIONSHIP:	CONTACT NUMBER:

Rachel F. Bennett

Date

RESTRICTED ANIMAL/BREED LIST

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

- 1. DOG BREEDS:** Restricted breeds that may not visit or be maintained in the Leased Premises include, but are not limited to, the following: ☒ Pit Bulls ☒ Rottweilers ☒ Presa Canario ☒ German Shepherds ☒ Huskies ☒ Malamutes ☒ Dobermans ☒ Chowchows ☒ St. Bernard's ☒ Great Danes ☒ Akitas ☒ Terriers (Staffordshire) ☒ American Bull Dog ☒ Karelian Bear Dog ☒ Any hybrid or mixed breed of one of the aforementioned breeds
- 2. POISONOUS ANIMALS:** Restricted animals that may not visit or be maintained in the Leased Premises include, but are not limited to, the following: ☒ Tarantulas ☒ Piranhas
- 3. EXOTIC ANIMALS:** Restricted animals that may not visit or be maintained in the Leased Premises include, but are not limited to, the following: ☒ Reptiles (snakes, iguanas) ☒ Ferrets ☒ Skunks ☒ Raccoons ☒ Squirrels ☒ Rabbits ☒ Birds (parrots, cockatiels, macaws)

NOTE: SERVICE/COMPANION ANIMALS MAY NOT BE SUBJECT TO THIS LIST

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



2/17/2020
05:45 PM PST

Lionel (Casey) C. Allard, IV (Resident)

Date

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

SMOKE-FREE ADDENDUM

This Addendum ("Addendum") is made part of the Residential Lease Contract ("Agreement") dated **February 17, 2020**, and is between the Owner of **Star** ("Owner") and **Lionel (Casey) C. Allard, IV and Rachel F. Bennett**, (collectively and individually "Residents"), for the premises at **170 11th Avenue #202, Seattle, WA 98122** (the "Leased Premises"), which is located within **Star** (the "Residential Community"). All capitalized terms used but not defined herein shall have the meaning set forth in the Agreement. Where the terms and conditions of this Addendum vary or conflict with the terms and conditions of the Agreement, the terms and conditions of this Addendum shall control.

Residents and Owner acknowledge that smoking negatively effects the health of the community at large and contributes to an increased risk of fire and maintenance and cleaning costs of the Leased Premises. In order to help minimize these issues, Residents and Owner agree to the following terms:

- 1. Definition of Smoking:** "Smoking" means inhaling, exhaling, breathing, or carrying any lighted cigar, cigarette, e-cig, vaping machine/device, hooka, or other tobacco product or similar lighted product, including marijuana, in any manner or in any form. The use of medical marijuana by Residents, for whom using medical marijuana is not a crime under Washington law, will not constitute unauthorized smoking when it occurs inside areas approved by Owner.
- 2. Smoke-Free Areas:** Residents, Occupants, guests, or other individuals may not smoke anywhere in the designated smoke-free areas. Pursuant to Wash. Rev. Code 70.160, Smoke-Free Areas include common areas and anywhere within 25 feet of entrances, exits, windows that open and ventilation intakes.
Smoking is prohibited at the Residential Community, including the Leased Premises, private outdoor spaces associated with the Leased Premises, including but not limited to balconies, patios and decks, and common areas: clubhouse, rooftop decks, business centers, media rooms, laundry facilities, fitness center, office and **25** feet of the exit, entrance, or operable window of any private building or structure designated as non-smoking.
- 3. Compliance.** Residents must comply with the terms and provisions of this Addendum and inform all Occupants and guests of the Smoke-Free Areas. Residents shall promptly provide written notice to Owner of any incident of smoking or migrating secondhand smoke into the Leased Premises.
- 4. Disclaimer by Owner.** Owner's adoption and enforcement of Smoke-Free Areas is not a warranty or guarantee of the Residents' health, habitability, or smoke-free condition of the Leased Premises or other Smoke-Free Areas. Owner will take reasonable steps to enforce Smoke-Free Areas, however Owner is not required to take any steps unless Owner has actual knowledge or has received written notice about violations to the Smoke-Free Areas policy.
- 5. Effect of Breach:** Residents agree that the provisions, obligations, and conditions of this Addendum are reasonable and material and that a breach by Resident of any such provision, obligation, or condition constitutes a material breach thereof and may be grounds for immediate termination of the Residential Lease Contract by Owner.
- 6. Complaint Policy:** Complaints must be submitted in writing to Owner. Owner shall take the following actions upon receipt: 1) place a courtesy call to the resident that is smoking; 2) send a letter to the resident confirming the no smoking policy; 3) send a notice to perform or quit to the resident for repeated violations of the no smoking policy; and 4) if the resident fails to comply with the no smoking policy, Owner reserves the right to terminate the Residential Lease Contract.

Violations of Owner's smoke-free policies will be considered grounds to terminate the Residential Lease Contract to the extent permitted by applicable law.

INTENDING TO BE BOUND, the parties hereto have executed this Addendum as of the day and year first above written.



Lionel (Casey) C. Allard, IV (Resident)

Date

2/17/2020
05:46 PM PST

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date



Initial: 

LEASE ADDENDUM

VIOLENCE AGAINST WOMEN AND JUSTICE DEPARTMENT REAUTHORIZATION ACT OF 2005

TENANT	LANDLORD	UNIT NO. & ADDRESS
Lionel (Casey) C. Allard, IV and Rachel F. Bennett	Star Apartments LLC DBA The Star Apartments	170 11th Avenue #202, Seattle, WA 98122

This lease addendum adds the following paragraphs to the Lease between the above referenced Tenant and Landlord.

Purpose of the Addendum

The lease for the above referenced unit is being amended to include the provisions of the Violence Against Women and Justice Department Reauthorization Act of 2005 (VAWA).

Conflicts with Other Provisions of the Lease

In case of any conflict between the provisions of this Addendum and other sections of the Lease, the provisions of this Addendum shall prevail.

Term of the Lease Addendum

The effective date of this Lease Addendum is **February 1, 2020**. This Lease Addendum shall continue to be in effect until the Lease is terminated.

VAWA Protections

1. The Landlord may not consider incidents of domestic violence, dating violence or stalking as serious or repeated violations of the lease or other "good cause" for termination of assistance, tenancy or occupancy rights of the victim of abuse.
2. The Landlord may not consider criminal activity directly relating to abuse, engaged in by a member of a tenant's household or any guest or other person under the tenant's control, cause for termination of assistance, tenancy, or occupancy rights if the tenant or an immediate member of the tenant's family is the victim or threatened victim of that abuse.
3. The Landlord may request in writing that the victim, or a family member on the victim's behalf, certify that the individual is a victim of abuse and that the Certification of Domestic Violence, Dating Violence or Stalking, Form HUD-91066, or other documentation as noted on the certification form, be completed and submitted within 14 business days, or an agreed upon extension date, to receive protection under the VAWA. Failure to provide the certification or other supporting documentation within the specified timeframe may result in eviction.



Lionel (Casey) C. Allard, IV (Resident)

Date

2/17/2020
05:46 PM PST

Rachel F. Bennett (Resident)

Date

Delaney Reed (Owner/Agent)

Date

STAR

Notice of Occupancy Rights under the Violence Against Women Act¹

To all Tenants and Applicants

The Violence Against Women Act (VAWA) provides protections for victims of domestic violence, dating violence, sexual assault, or stalking. VAWA protections are not only available to women, but are available equally to all individuals regardless of sex, gender identity, or sexual orientation.² The U.S. Department of Housing and Urban Development (HUD) is the Federal agency that oversees that **The U.S. Department of Housing and Urban Development (HUD)** is in compliance with VAWA. This notice explains your rights under VAWA. A HUD-approved certification form is attached to this notice. You can fill out this form to show that you are or have been a victim of domestic violence, dating violence, sexual assault, or stalking, and that you wish to use your rights under VAWA."

Protections for Applicants

If you otherwise qualify for assistance under **The U.S. Department of Housing and Urban Development (HUD)**, you cannot be denied admission or denied assistance because you are or have been a victim of domestic violence, dating violence, sexual assault, or stalking.

Protections for Tenants

If you are receiving assistance under **The U.S. Department of Housing and Urban Development (HUD)**, you may not be denied assistance, terminated from participation, or be evicted from your rental housing because you are or have been a victim of domestic violence, dating violence, sexual assault, or stalking. Also, if you or an affiliated individual of yours is or has been the victim of domestic violence, dating violence, sexual assault, or stalking by a member of your household or any guest, you may not be denied rental assistance or occupancy rights under **The U.S. Department of Housing and Urban Development (HUD)**, solely on the basis of criminal activity directly relating to that domestic violence, dating violence, sexual assault, or stalking.

Affiliated individual means your spouse, parent, brother, sister, or child, or a person to whom you stand in the place of a parent or guardian (for example, the affiliated individual is in your care, custody, or control); or any individual, tenant, or lawful occupant living in your household.

Removing the Abuser or Perpetrator from the Household

Star may divide (bifurcate) your lease in order to evict the individual or terminate the assistance of the individual who has engaged in criminal activity (the abuser or perpetrator) directly relating to domestic violence, dating violence, sexual assault, or stalking.

If **Star** chooses to remove the abuser or perpetrator, **Star** may not take away the rights of eligible tenants to the unit or otherwise punish the remaining tenants. If the evicted abuser or perpetrator was the sole tenant to have established eligibility for assistance under the program, **Star** must allow the tenant who is or has been a victim and other household members to remain in the unit for a period of time, in order to establish eligibility under the program or under another HUD housing program covered by VAWA, or, find alternative housing.

In removing the abuser or perpetrator from the household, **Star** must follow Federal, State, and local eviction procedures. In order to divide a lease, **Star** may, but is not required to, ask you for documentation or certification of the incidences of domestic violence, dating violence, sexual assault, or stalking.

Moving to Another Unit

Upon your request, **Star** may permit you to move to another unit, subject to the availability of other units, and still keep your assistance. In order to approve a request, **Star** may ask you to provide documentation that you are requesting to move because of an incidence of domestic violence, dating violence, sexual assault, or stalking. If the request is a request for emergency transfer, the housing provider may ask you to submit a written request or fill out a form where you certify that you meet the criteria for an emergency transfer under VAWA. The criteria are:

- (1) **You are a victim of domestic violence, dating violence, sexual assault, or stalking.** If **Star** does not already have documentation that you are a victim of domestic violence, dating violence, sexual assault, or stalking, **Star** may ask you for such documentation, as described in the documentation section below.
- (2) **You expressly request the emergency transfer.** **Star** may choose to require that you submit a form, or may accept another written or oral request.

¹ Despite the name of this law, VAWA protection is available regardless of sex, gender identity, or sexual orientation.

² Housing providers cannot discriminate on the basis of any protected characteristic, including race, color, national origin, religion, sex, familial status, disability, or age. HUD-assisted and HUD-insured housing must be made available to all otherwise eligible individuals regardless of actual or perceived sexual orientation, gender identity, or marital status.

(3) You reasonably believe you are threatened with imminent harm from further violence if you remain in your current unit. This means you have a reason to fear that if you do not receive a transfer you would suffer violence in the very near future.

OR

You are a victim of sexual assault and the assault occurred on the premises during the 90-calendar-day period before you request a transfer.

If you are a victim of sexual assault, then in addition to qualifying for an emergency transfer because you reasonably believe you are threatened with imminent harm from further violence if you remain in your unit, you may qualify for an emergency transfer if the sexual assault occurred on the premises of the property from which you are seeking your transfer, and that assault happened within the 90-calendar-day period before you expressly request the transfer.

Star will keep confidential requests for emergency transfers by victims of domestic violence, dating violence, sexual assault, or stalking, and the location of any move by such victims and their families.

Star's emergency transfer plan provides further information on emergency transfers, and **Star** must make a copy of its emergency transfer plan available to you if you ask to see it.

Documenting You Are or Have Been a Victim of Domestic Violence, Dating Violence, Sexual Assault or Stalking.

Star can, but is not required to, ask you to provide documentation to "certify" that you are or have been a victim of domestic violence, dating violence, sexual assault, or stalking. Such request from **Star** must be in writing, and **Star** must give you at least 14 business days (Saturdays, Sundays, and Federal holidays do not count) from the day you receive the request to provide the documentation. **Star** may, but does not have to, extend the deadline for the submission of documentation upon your request. You can provide one of the following to **Star** as documentation. It is your choice which of the following to submit if **Star** asks you to provide documentation that you are or have been a victim of domestic violence, dating violence, sexual assault, or stalking.

- A complete HUD-approved certification form given to you by **Star** with this notice, that documents an incident of domestic violence, dating violence, sexual assault, or stalking. The form will ask for your name, the date, time, and location of the incident of domestic violence, dating violence, sexual assault, or stalking, and a description of the incident. The certification form provides for including the name of the abuser or perpetrator if the name of the abuser or perpetrator is known and is safe to provide.
- A record of a Federal, State, tribal, territorial, or local law enforcement agency, court, or administrative agency that documents the incident of domestic violence, dating violence, sexual assault, or stalking. Examples of such records include police reports, protective orders, and restraining orders, among others.
- A statement, which you must sign, along with the signature of an employee, agent, or volunteer of a victim service provider, an attorney, a medical professional or a mental health professional (collectively, "professional") from whom you sought assistance in addressing domestic violence, dating violence, sexual assault, or stalking, or the effects of abuse, and with the professional selected by you attesting under penalty of perjury that he or she believes that the incident or incidents of domestic violence, dating violence, sexual assault, or stalking are grounds for protection.
- Any other statement or evidence that **Star** has agreed to accept.

If you fail or refuse to provide one of these documents within the 14 business days, **Star** does not have to provide you with the protections contained in this notice.

If **Star** receives conflicting evidence that an incident of domestic violence, dating violence, sexual assault, or stalking has been committed (such as certification forms from two or more members of a household each claiming to be a victim and naming one or more of the other petitioning household members as the abuser or perpetrator), **Star** has the right to request that you provide third-party documentation within thirty 30 calendar days in order to resolve the conflict. If you fail or refuse to provide third-party documentation where there is conflicting evidence, **Star** does not have to provide you with the protections contained in this notice.

Confidentiality

Star must keep confidential any information you provide related to the exercise of your rights under VAWA, including the fact that you are exercising your rights under VAWA.

Star must not allow any individual administering assistance or other services on behalf of **Star** (for example, employees and contractors) to have access to confidential information unless for reasons that specifically call for these individuals to have access to this information under applicable Federal, State, or local law.

Star must not enter your information into any shared database or disclose your information to any other entity or individual. **Star**, however, may disclose the information provided if:

- You give written permission to **Star** to release the information on a time limited basis.
- **Star** needs to use the information in an eviction or termination proceeding, such as to evict your abuser or perpetrator or

terminate your abuser or perpetrator from assistance under this program.

- A law requires **Star** or your landlord to release the information.

VAWA does not limit **Star**'s duty to honor court orders about access to or control of the property. This includes orders issued to protect a victim and orders dividing property among household members in cases where a family breaks up.

Reasons a Tenant Eligible for Occupancy Rights under VAWA May Be Evicted or Assistance May Be Terminated

You can be evicted and your assistance can be terminated for serious or repeated lease violations that are not related to domestic violence, dating violence, sexual assault, or stalking committed against you. However, **Star** cannot hold tenants who have been victims of domestic violence, dating violence, sexual assault, or stalking to a more demanding set of rules than it applies to tenants who have not been victims of domestic violence, dating violence, sexual assault, or stalking.

The protections described in this notice might not apply, and you could be evicted and your assistance terminated, if **Star** can demonstrate that not evicting you or terminating your assistance would present a real physical danger that:

- 1) Would occur within an immediate time frame, and
- 2) Could result in death or serious bodily harm to other tenants or those who work on the property.

If **Star** can demonstrate the above, **Star** should only terminate your assistance or evict you if there are no other actions that could be taken to reduce or eliminate the threat.

Other Laws

VAWA does not replace any Federal, State, or local law that provides greater protection for victims of domestic violence, dating violence, sexual assault, or stalking. You may be entitled to additional housing protections for victims of domestic violence, dating violence, sexual assault, or stalking under other Federal laws, as well as under State and local laws.

Non-Compliance with The Requirements of This Notice

Attachment: Certification form HUD-5382

**CERTIFICATION OF
DOMESTIC VIOLENCE,
DATING VIOLENCE,
SEXUAL ASSAULT, OR STALKING,
AND ALTERNATE DOCUMENTATION**

**U.S. Department of Housing
and Urban Development**

OMB Approval No. 2577-0286
Exp. 06/30/2017

Purpose of Form: The Violence Against Women Act ("VAWA") protects applicants, tenants, and program participants in certain HUD programs from being evicted, denied housing assistance, or terminated from housing assistance based on acts of domestic violence, dating violence, sexual assault, or stalking against them. Despite the name of this law, VAWA protection is available to victims of domestic violence, dating violence, sexual assault, and stalking, regardless of sex, gender identity, or sexual orientation.

Use of This Optional Form: If you are seeking VAWA protections from your housing provider, your housing provider may give you a written request that asks you to submit documentation about the incident or incidents of domestic violence, dating violence, sexual assault, or stalking.

In response to this request, you or someone on your behalf may complete this optional form and submit it to your housing provider, or you may submit one of the following types of third-party documentation:

- (1)** A document signed by you and an employee, agent, or volunteer of a victim service provider, an attorney, or medical professional, or a mental health professional (collectively, "professional") from whom you have sought assistance relating to domestic violence, dating violence, sexual assault, or stalking, or the effects of abuse. The document must specify, under penalty of perjury, that the professional believes the incident or incidents of domestic violence, dating violence, sexual assault, or stalking occurred and meet the definition of "domestic violence," "dating violence," "sexual assault," or "stalking" in HUD's regulations at 24 CFR 5.2003.
- (2)** A record of a Federal, State, tribal, territorial or local law enforcement agency, court, or administrative agency; or
- (3)** At the discretion of the housing provider, a statement or other evidence provided by the applicant or tenant.

Submission of Documentation: The time period to submit documentation is 14 business days from the date that you receive a written request from your housing provider asking that you provide documentation of the occurrence of domestic violence, dating violence, sexual assault, or stalking. Your housing provider may, but is not required to, extend the time period to submit the documentation, if you request an extension of the time period. If the requested information is not received within 14 business days of when you received the request for the documentation, or any extension of the date provided by your housing provider, your housing provider does not need to grant you any of the VAWA protections. Distribution or issuance of this form does not serve as a written request for certification.

Confidentiality: All information provided to your housing provider concerning the incident(s) of domestic violence, dating violence, sexual assault, or stalking shall be kept confidential and such details shall not be entered into any shared database. Employees of your housing provider are not to have access to these details unless to grant or deny VAWA protections to you, and such employees may not disclose this information to any other entity or individual, except to the extent that disclosure is: (i) consented to by you in writing in a time-limited release; (ii) required for use in an eviction proceeding or hearing regarding termination of assistance; or (iii) otherwise required by applicable law.

TO BE COMPLETED BY OR ON BEHALF OF THE VICTIM OF DOMESTIC VIOLENCE, DATING VIOLENCE, SEXUAL ASSAULT, OR STALKING

1. Date the written request is received by victim: _____
2. Name of victim: _____
3. Your name (if different from victim's): _____
4. Name(s) of other family member(s) listed on the lease: _____

5. Residence of victim: _____
6. Name of the accused perpetrator (if known and can be safely disclosed): _____

7. Relationship of the accused perpetrator to the victim: _____
8. Date(s) and times(s) of incident(s) (if known): _____

10. Location of incident(s): _____

In your own words, briefly describe the incident(s):

This is to certify that the information provided on this form is true and correct to the best of my knowledge and recollection, and that the individual named above in Item 2 is or has been a victim of domestic violence, dating violence, sexual assault, or stalking. I acknowledge that submission of false information could jeopardize program eligibility and could be the basis for denial of admission, termination of assistance, or eviction.

Signature _____ Signed on (Date) _____

Public Reporting Burden: The public reporting burden for this collection of information is estimated to average 1 hour per response. This includes the time for collecting, reviewing, and reporting the data. The information provided is to be used by the housing provider to request certification that the applicant or tenant is a victim of domestic violence, dating violence, sexual assault, or stalking. The information is subject to the confidentiality requirements of VAWA. This agency may not collect this information, and you are not required to complete this form, unless it displays a currently valid Office of Management and Budget control number.



Protect Your Family From Lead in Your Home



United States
Environmental
Protection Agency



United States
Consumer Product
Safety Commission



United States
Department of Housing
and Urban Development

Are You Planning to Buy or Rent a Home Built Before 1978?

Did you know that many homes built before 1978 have **lead-based paint**? Lead from paint, chips, and dust can pose serious health hazards.

Read this entire brochure to learn:

- How lead gets into the body
- How lead affects health
- What you can do to protect your family
- Where to go for more information

Before renting or buying a pre-1978 home or apartment, federal law requires:

- Sellers must disclose known information on lead-based paint or lead-based paint hazards before selling a house.
- Real estate sales contracts must include a specific warning statement about lead-based paint. Buyers have up to 10 days to check for lead.
- Landlords must disclose known information on lead-based paint and lead-based paint hazards before leases take effect. Leases must include a specific warning statement about lead-based paint.

If undertaking renovations, repairs, or painting (RRP) projects in your pre-1978 home or apartment:

- Read EPA's pamphlet, *The Lead-Safe Certified Guide to Renovate Right*, to learn about the lead-safe work practices that contractors are required to follow when working in your home (see page 12).



Simple Steps to Protect Your Family from Lead Hazards

If you think your home has lead-based paint:

- Don't try to remove lead-based paint yourself.
- Always keep painted surfaces in good condition to minimize deterioration.
- Get your home checked for lead hazards. Find a certified inspector or risk assessor at epa.gov/lead.
- Talk to your landlord about fixing surfaces with peeling or chipping paint.
- Regularly clean floors, window sills, and other surfaces.
- Take precautions to avoid exposure to lead dust when remodeling.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe certified renovation firms.
- Before buying, renting, or renovating your home, have it checked for lead-based paint.
- Consult your health care provider about testing your children for lead. Your pediatrician can check for lead with a simple blood test.
- Wash children's hands, bottles, pacifiers, and toys often.
- Make sure children eat healthy, low-fat foods high in iron, calcium, and vitamin C.
- Remove shoes or wipe soil off shoes before entering your house.

Lead Gets into the Body in Many Ways

Adults and children can get lead into their bodies if they:

- Breathe in lead dust (especially during activities such as renovations, repairs, or painting that disturb painted surfaces).
- Swallow lead dust that has settled on food, food preparation surfaces, and other places.
- Eat paint chips or soil that contains lead.

Lead is especially dangerous to children under the age of 6.

- At this age, children's brains and nervous systems are more sensitive to the damaging effects of lead.
- Children's growing bodies absorb more lead.
- Babies and young children often put their hands and other objects in their mouths. These objects can have lead dust on them.



Women of childbearing age should know that lead is dangerous to a developing fetus.

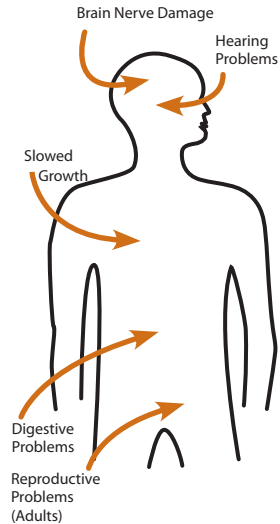
- Women with a high lead level in their system before or during pregnancy risk exposing the fetus to lead through the placenta during fetal development.

Health Effects of Lead

Lead affects the body in many ways. It is important to know that even exposure to low levels of lead can severely harm children.

In children, exposure to lead can cause:

- Nervous system and kidney damage
- Learning disabilities, attention-deficit disorder, and decreased intelligence
- Speech, language, and behavior problems
- Poor muscle coordination
- Decreased muscle and bone growth
- Hearing damage



While low-lead exposure is most common, exposure to high amounts of lead can have devastating effects on children, including seizures, unconsciousness, and in some cases, death.

Although children are especially susceptible to lead exposure, lead can be dangerous for adults, too.

In adults, exposure to lead can cause:

- Harm to a developing fetus
- Increased chance of high blood pressure during pregnancy
- Fertility problems (in men and women)
- High blood pressure
- Digestive problems
- Nerve disorders
- Memory and concentration problems
- Muscle and joint pain

Check Your Family for Lead

Get your children and home tested if you think your home has lead.

Children's blood lead levels tend to increase rapidly from 6 to 12 months of age, and tend to peak at 18 to 24 months of age.

Consult your doctor for advice on testing your children. A simple blood test can detect lead. Blood lead tests are usually recommended for:

- Children at ages 1 and 2
- Children or other family members who have been exposed to high levels of lead
- Children who should be tested under your state or local health screening plan

Your doctor can explain what the test results mean and if more testing will be needed.

Where Lead-Based Paint Is Found

In general, the older your home or childcare facility, the more likely it has lead-based paint.¹

Many homes, including private, federally-assisted, federally-owned housing, and childcare facilities built before 1978 have lead-based paint. In 1978, the federal government banned consumer uses of lead-containing paint.²

Learn how to determine if paint is lead-based paint on page 7.

Lead can be found:

- In homes and childcare facilities in the city, country, or suburbs,
- In private and public single-family homes and apartments,
- On surfaces inside and outside of the house, and
- In soil around a home. (Soil can pick up lead from exterior paint or other sources, such as past use of leaded gas in cars.)

Learn more about where lead is found at [epa.gov/lead](https://www.epa.gov/lead).

¹ “Lead-based paint” is currently defined by the federal government as paint with lead levels greater than or equal to 1.0 milligram per square centimeter (mg/cm), or more than 0.5% by weight.

² “Lead-containing paint” is currently defined by the federal government as lead in new dried paint in excess of 90 parts per million (ppm) by weight.

Identifying Lead-Based Paint and Lead-Based Paint Hazards

Deteriorating lead-based paint (peeling, chipping, chalking, cracking, or damaged paint) is a hazard and needs immediate attention. **Lead-based paint** may also be a hazard when found on surfaces that children can chew or that get a lot of wear and tear, such as:

- On windows and window sills
- Doors and door frames
- Stairs, railings, banisters, and porches

Lead-based paint is usually not a hazard if it is in good condition and if it is not on an impact or friction surface like a window.

Lead dust can form when lead-based paint is scraped, sanded, or heated. Lead dust also forms when painted surfaces containing lead bump or rub together. Lead paint chips and dust can get on surfaces and objects that people touch. Settled lead dust can reenter the air when the home is vacuumed or swept, or when people walk through it. EPA currently defines the following levels of lead in dust as hazardous:

- 40 micrograms per square foot ($\mu\text{g}/\text{ft}^2$) and higher for floors, including carpeted floors
- 250 $\mu\text{g}/\text{ft}^2$ and higher for interior window sills

Lead in soil can be a hazard when children play in bare soil or when people bring soil into the house on their shoes. EPA currently defines the following levels of lead in soil as hazardous:

- 400 parts per million (ppm) and higher in play areas of bare soil
- 1,200 ppm (average) and higher in bare soil in the remainder of the yard

Remember, lead from paint chips—which you can see—and lead dust—which you may not be able to see—both can be hazards.

The only way to find out if paint, dust, or soil lead hazards exist is to test for them. The next page describes how to do this.

Checking Your Home for Lead

You can get your home tested for lead in several different ways:

- A lead-based paint **inspection** tells you if your home has lead-based paint and where it is located. It won't tell you whether your home currently has lead hazards. A trained and certified testing professional, called a lead-based paint inspector, will conduct a paint inspection using methods, such as:
 - Portable x-ray fluorescence (XRF) machine
 - Lab tests of paint samples
- A **risk assessment** tells you if your home currently has any lead hazards from lead in paint, dust, or soil. It also tells you what actions to take to address any hazards. A trained and certified testing professional, called a risk assessor, will:
 - Sample paint that is deteriorated on doors, windows, floors, stairs, and walls
 - Sample dust near painted surfaces and sample bare soil in the yard
 - Get lab tests of paint, dust, and soil samples
- A combination inspection and risk assessment tells you if your home has any lead-based paint and if your home has any lead hazards, and where both are located.



Be sure to read the report provided to you after your inspection or risk assessment is completed, and ask questions about anything you do not understand.

Checking Your Home for Lead, continued

In preparing for renovation, repair, or painting work in a pre-1978 home, Lead-Safe Certified renovators (see page 12) may:

- Take paint chip samples to determine if lead-based paint is present in the area planned for renovation and send them to an EPA-recognized lead lab for analysis. In housing receiving federal assistance, the person collecting these samples must be a certified lead-based paint inspector or risk assessor
- Use EPA-recognized tests kits to determine if lead-based paint is absent (but not in housing receiving federal assistance)
- Presume that lead-based paint is present and use lead-safe work practices

There are state and federal programs in place to ensure that testing is done safely, reliably, and effectively. Contact your state or local agency for more information, visit epa.gov/lead, or call **1-800-424-LEAD (5323)** for a list of contacts in your area.³

³ Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at 1-800-877-8339.

What You Can Do Now to Protect Your Family

If you suspect that your house has lead-based paint hazards, you can take some immediate steps to reduce your family's risk:

- If you rent, notify your landlord of peeling or chipping paint.
- Keep painted surfaces clean and free of dust. Clean floors, window frames, window sills, and other surfaces weekly. Use a mop or sponge with warm water and a general all-purpose cleaner. (Remember: never mix ammonia and bleach products together because they can form a dangerous gas.)
- Carefully clean up paint chips immediately without creating dust.
- Thoroughly rinse sponges and mop heads often during cleaning of dirty or dusty areas, and again afterward.
- Wash your hands and your children's hands often, especially before they eat and before nap time and bed time.
- Keep play areas clean. Wash bottles, pacifiers, toys, and stuffed animals regularly.
- Keep children from chewing window sills or other painted surfaces, or eating soil.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe Certified renovation firms (see page 12).
- Clean or remove shoes before entering your home to avoid tracking in lead from soil.
- Make sure children eat nutritious, low-fat meals high in iron, and calcium, such as spinach and dairy products. Children with good diets absorb less lead.

Reducing Lead Hazards

Disturbing lead-based paint or removing lead improperly can increase the hazard to your family by spreading even more lead dust around the house.

- In addition to day-to-day cleaning and good nutrition, you can **temporarily** reduce lead-based paint hazards by taking actions, such as repairing damaged painted surfaces and planting grass to cover lead-contaminated soil. These actions are not permanent solutions and will need ongoing attention.
- You can minimize exposure to lead when renovating, repairing, or painting by hiring an EPA- or state-certified renovator who is trained in the use of lead-safe work practices. If you are a do-it-yourselfer, learn how to use lead-safe work practices in your home.
- To remove lead hazards permanently, you should hire a certified lead abatement contractor. Abatement (or permanent hazard elimination) methods include removing, sealing, or enclosing lead-based paint with special materials. Just painting over the hazard with regular paint is not permanent control.



Always use a certified contractor who is trained to address lead hazards safely.

- Hire a Lead-Safe Certified firm (see page 12) to perform renovation, repair, or painting (RRP) projects that disturb painted surfaces.
- To correct lead hazards permanently, hire a certified lead abatement professional. This will ensure your contractor knows how to work safely and has the proper equipment to clean up thoroughly.

Certified contractors will employ qualified workers and follow strict safety rules as set by their state or by the federal government.

Reducing Lead Hazards, continued

If your home has had lead abatement work done or if the housing is receiving federal assistance, once the work is completed, dust cleanup activities must be conducted until clearance testing indicates that lead dust levels are below the following levels:

- 40 micrograms per square foot ($\mu\text{g}/\text{ft}^2$) for floors, including carpeted floors
- 250 $\mu\text{g}/\text{ft}^2$ for interior windows sills
- 400 $\mu\text{g}/\text{ft}^2$ for window troughs

For help in locating certified lead abatement professionals in your area, call your state or local agency (see pages 14 and 15), or visit epa.gov/lead, or call 1-800-424-LEAD.

Renovating, Repairing or Painting a Home with Lead-Based Paint

If you hire a contractor to conduct renovation, repair, or painting (RRP) projects in your pre-1978 home or childcare facility (such as pre-school and kindergarten), your contractor must:

- Be a Lead-Safe Certified firm approved by EPA or an EPA-authorized state program
- Use qualified trained individuals (Lead-Safe Certified renovators) who follow specific lead-safe work practices to prevent lead contamination
- Provide a copy of EPA's lead hazard information document, *The Lead-Safe Certified Guide to Renovate Right*



RRP contractors working in pre-1978 homes and childcare facilities must follow lead-safe work practices that:

- **Contain the work area.** The area must be contained so that dust and debris do not escape from the work area. Warning signs must be put up, and plastic or other impermeable material and tape must be used.
- **Avoid renovation methods that generate large amounts of lead-contaminated dust.** Some methods generate so much lead-contaminated dust that their use is prohibited. They are:
 - Open-flame burning or torching
 - Sanding, grinding, planing, needle gunning, or blasting with power tools and equipment not equipped with a shroud and HEPA vacuum attachment
 - Using a heat gun at temperatures greater than 1100°F
- **Clean up thoroughly.** The work area should be cleaned up daily. When all the work is done, the area must be cleaned up using special cleaning methods.
- **Dispose of waste properly.** Collect and seal waste in a heavy duty bag or sheeting. When transported, ensure that waste is contained to prevent release of dust and debris.

To learn more about EPA's requirements for RRP projects, visit epa.gov/getleadsafe, or read *The Lead-Safe Certified Guide to Renovate Right*.

Other Sources of Lead

Lead in Drinking Water

The most common sources of lead in drinking water are lead pipes, faucets, and fixtures.

Lead pipes are more likely to be found in older cities and homes built before 1986.

You can't smell or taste lead in drinking water.

To find out for certain if you have lead in drinking water, have your water tested.

Remember older homes with a private well can also have plumbing materials that contain lead.

Important Steps You Can Take to Reduce Lead in Drinking Water

- Use only cold water for drinking, cooking and making baby formula. Remember, boiling water does not remove lead from water.
- Before drinking, flush your home's pipes by running the tap, taking a shower, doing laundry, or doing a load of dishes.
- Regularly clean your faucet's screen (also known as an aerator).
- If you use a filter certified to remove lead, don't forget to read the directions to learn when to change the cartridge. Using a filter after it has expired can make it less effective at removing lead.

Contact your water company to determine if the pipe that connects your home to the water main (called a service line) is made from lead. Your area's water company can also provide information about the lead levels in your system's drinking water.

For more information about lead in drinking water, please contact EPA's Safe Drinking Water Hotline at 1-800-426-4791. If you have other questions about lead poisoning prevention, call 1-800 424-LEAD.*

Call your local health department or water company to find out about testing your water, or visit epa.gov/safewater for EPA's lead in drinking water information. Some states or utilities offer programs to pay for water testing for residents. Contact your state or local water company to learn more.

* Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at 1-800-877-8339.

Other Sources of Lead, continued

- **Lead smelters** or other industries that release lead into the air.
- **Your job.** If you work with lead, you could bring it home on your body or clothes. Shower and change clothes before coming home. Launder your work clothes separately from the rest of your family's clothes.
- **Hobbies** that use lead, such as making pottery or stained glass, or refinishing furniture. Call your local health department for information about hobbies that may use lead.
- Old **toys** and **furniture** may have been painted with lead-containing paint. Older toys and other children's products may have parts that contain lead.⁴
- Food and liquids cooked or stored in **lead crystal** or **lead-glazed pottery or porcelain** may contain lead.
- Folk remedies, such as "**greta**" and "**azarcon**," used to treat an upset stomach.

⁴ In 1978, the federal government banned toys, other children's products, and furniture with lead-containing paint. In 2008, the federal government banned lead in most children's products. The federal government currently bans lead in excess of 100 ppm by weight in most children's products.

For More Information

The National Lead Information Center

Learn how to protect children from lead poisoning and get other information about lead hazards on the Web at epa.gov/lead and hud.gov/lead, or call **1-800-424-LEAD (5323)**.

EPA's Safe Drinking Water Hotline

For information about lead in drinking water, call **1-800-426-4791**, or visit epa.gov/safewater for information about lead in drinking water.

Consumer Product Safety Commission (CPSC) Hotline

For information on lead in toys and other consumer products, or to report an unsafe consumer product or a product-related injury, call **1-800-638-2772**, or visit CPSC's website at cpsc.gov or saferproducts.gov.

State and Local Health and Environmental Agencies

Some states, tribes, and cities have their own rules related to lead-based paint. Check with your local agency to see which laws apply to you. Most agencies can also provide information on finding a lead abatement firm in your area, and on possible sources of financial aid for reducing lead hazards. Receive up-to-date address and phone information for your state or local contacts on the Web at epa.gov/lead, or contact the National Lead Information Center at **1-800-424-LEAD**.

Hearing- or speech-challenged individuals may access any of the phone numbers in this brochure through TTY by calling the toll-free Federal Relay Service at **1-800-877-8339**.

U. S. Environmental Protection Agency (EPA)

Regional Offices

The mission of EPA is to protect human health and the environment. Your Regional EPA Office can provide further information regarding regulations and lead protection programs.

Region 1 (Connecticut, Massachusetts, Maine, New Hampshire, Rhode Island, Vermont)

Regional Lead Contact
U.S. EPA Region 1
5 Post Office Square, Suite 100, OES 05-4
Boston, MA 02109-3912
(888) 372-7341

Region 2 (New Jersey, New York, Puerto Rico, Virgin Islands)

Regional Lead Contact
U.S. EPA Region 2
2890 Woodbridge Avenue
Building 205, Mail Stop 225
Edison, NJ 08837-3679
(732) 321-6671

Region 3 (Delaware, Maryland, Pennsylvania, Virginia, DC, West Virginia)

Regional Lead Contact
U.S. EPA Region 3
1650 Arch Street
Philadelphia, PA 19103
(215) 814-2088

Region 4 (Alabama, Florida, Georgia, Kentucky, Mississippi, North Carolina, South Carolina, Tennessee)

Regional Lead Contact
U.S. EPA Region 4
AFC Tower, 12th Floor, Air, Pesticides & Toxics
61 Forsyth Street, SW
Atlanta, GA 30303
(404) 562-8998

Region 5 (Illinois, Indiana, Michigan, Minnesota, Ohio, Wisconsin)

Regional Lead Contact
U.S. EPA Region 5 (DT-8J)
77 West Jackson Boulevard
Chicago, IL 60604-3666
(312) 886-7836

Region 6 (Arkansas, Louisiana, New Mexico, Oklahoma, Texas, and 66 Tribes)

Regional Lead Contact
U.S. EPA Region 6
1445 Ross Avenue, 12th Floor
Dallas, TX 75202-2733
(214) 665-2704

Region 7 (Iowa, Kansas, Missouri, Nebraska)

Regional Lead Contact
U.S. EPA Region 7
11201 Renner Blvd.
WWPD/TOPE
Lenexa, KS 66219
(800) 223-0425

Region 8 (Colorado, Montana, North Dakota, South Dakota, Utah, Wyoming)

Regional Lead Contact
U.S. EPA Region 8
1595 Wynkoop St.
Denver, CO 80202
(303) 312-6966

Region 9 (Arizona, California, Hawaii, Nevada)

Regional Lead Contact
U.S. EPA Region 9 (CMD-4-2)
75 Hawthorne Street
San Francisco, CA 94105
(415) 947-4280

Region 10 (Alaska, Idaho, Oregon, Washington)

Regional Lead Contact
U.S. EPA Region 10
Solid Waste & Toxics Unit (WCM-128)
1200 Sixth Avenue, Suite 900
Seattle, WA 98101
(206) 553-1200

Consumer Product Safety Commission (CPSC)

The CPSC protects the public against unreasonable risk of injury from consumer products through education, safety standards activities, and enforcement. Contact CPSC for further information regarding consumer product safety and regulations.

CPSC

4330 East West Highway
Bethesda, MD 20814-4421
1-800-638-2772
cpsc.gov or saferproducts.gov

U. S. Department of Housing and Urban Development (HUD)

HUD's mission is to create strong, sustainable, inclusive communities and quality affordable homes for all. Contact HUD's Office of Healthy Homes and Lead Hazard Control for further information regarding the Lead Safe Housing Rule, which protects families in pre-1978 assisted housing, and for the lead hazard control and research grant programs.

HUD

451 Seventh Street, SW, Room 8236
Washington, DC 20410-3000
(202) 402-7698
hud.gov/offices/lead/

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IMPORTANT!

Lead From Paint, Dust, and Soil in and Around Your Home Can Be Dangerous if Not Managed Properly

- Children under 6 years old are most at risk for lead poisoning in your home.
- Lead exposure can harm young children and babies even before they are born.
- Homes, schools, and child care facilities built before 1978 are likely to contain lead-based paint.
- Even children who seem healthy may have dangerous levels of lead in their bodies.
- Disturbing surfaces with lead-based paint or removing lead-based paint improperly can increase the danger to your family.
- People can get lead into their bodies by breathing or swallowing lead dust, or by eating soil or paint chips containing lead.
- People have many options for reducing lead hazards. Generally, lead-based paint that is in good condition is not a hazard (see page 10).



TRANSLATIONS

For copies of this document in Amharic, Cambodian, Chinese, Korean, Laotian, Oromiffa, Russian, Somali, Spanish, Tagalog, Thai, Tigrinya and Vietnamese, visit SDCI's website at www.seattle.gov/dpd/rentinginseattle or call (206) 684-8467.

This summary of Washington state and City of Seattle landlord/tenant regulations must be provided to tenants by owners of residential rental property located in Seattle on at least an annual basis. Please note that City and State laws may not be identical on any particular topic; therefore, both sets of laws should be consulted. For legal advice, please consult an attorney.

October 2018

Seattle Landlord-Tenant Laws

OBLIGATIONS OF LANDLORDS

Building owners must provide safe, clean, secure living conditions, including:

- Keeping the premises fit for human habitation and keeping common areas reasonably clean and safe
- Controlling insects, rodents and other pests
- Maintaining roof, walls and foundation and keeping the unit weather tight
- Maintaining electrical, plumbing, heating and other equipment and appliances supplied by the owner
- Providing adequate containers for garbage and arranging for garbage pickup
- When responsible for providing heat in rental units, from September through June maintaining daytime (7:00 a.m.-10:30 p.m.) temperatures at 68°F or above and nighttime temperatures at not less than 58°F
- In non-transient accommodations, providing keys to unit and building entrance doors and, in most cases, changing the lock mechanism and keys upon a change of tenants
- Installing smoke detectors and instructing tenants in their maintenance and operation

Owners are not required to make cosmetic repairs after each tenancy, such as installing new carpets or applying a fresh coat of paint.

OBLIGATIONS OF TENANTS

Tenants must maintain rental housing in a safe, clean manner, including:

- Properly disposing of garbage
- Exercising care in use of electrical and plumbing fixtures
- Promptly repairing any damage caused by them or their guests
- Granting reasonable access for inspection, maintenance, repair and pest control
- Maintaining smoke detectors in good working order
- Refraining from storing dangerous materials on the premises

THE JUST CAUSE EVICTION ORDINANCE

This ordinance requires landlords to have good cause in order to terminate a month-to-month tenancy. It specifies the only reasons for which a tenant in Seattle may be required to move, and requires owners to state the reason, in writing, for ending a tenancy when giving a termination notice. A property owner cannot evict a tenant if the property is not registered with the City of Seattle. Unless otherwise noted, an owner must

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give a termination notice at least 20 days before the start of the next rental period. Good causes include:

1. The tenant fails to pay rent within 3 days of receiving a notice to pay rent or vacate.
2. The owner has notified the tenant in writing of overdue rent at least 4 times in a 12-month period.
3. The tenant does not comply with a material term of a lease or rental agreement within 10 days of receiving a notice to comply or vacate.
4. The tenant does not comply with a material obligation under the *Washington State Residential Landlord-Tenant Act* within 10 days of a notice to comply or vacate.
5. The owner has notified a tenant in writing at least 3 times in a 12-month period to comply within 10 days with a material term of the lease or rental agreement.
6. The tenant seriously damages the rental unit (causes "waste"), causes a nuisance (including drug-related activity), or maintains an unlawful business and does not vacate the premises within three days of notice to do so.
7. The tenant engages in criminal activity in the building or on the premises, or in an area immediately adjacent to the building or premises. The alleged criminal activity must substantially affect the health or safety of other tenants or the owner; illegal drug-related activity is one crime specified by the ordinance. An owner who uses this reason must clearly state the facts supporting the allegation, and must send a copy of the termination of tenancy notice to the SDCI Property Owner Tenant Assistance (POTA) Unit.
8. The owner wishes to occupy the premises personally, or the owner's immediate family will occupy the unit, and no substantially equivalent unit is vacant and available in the same building, and gives the tenant written notice at least 90 days prior to the end of a rental period. Immediate family includes the owner's spouse or owner's domestic partner, and the parents, grandparents, children, brothers and sisters of the owner or owner's spouse or owner's domestic partner. SDCI may require a property owner to sign a certification of the intent to have a family member move in if a tenant has reason to believe the owner will not follow through with this reason. It is a violation if the designated person does not occupy the unit for a continuous period of 60 days out of the 90 days after the tenant vacates. A tenant whose tenancy is ended for this reason has a private right of action if he or she feels the owner has failed to comply with these requirements.
9. The owner wishes to terminate a tenant who lives in the same housing unit with the owner or the owner's agent; or the owner desires to stop sharing his or her house with a tenant living in an approved accessory dwelling unit (ADU) in an owner-occupied house.
10. The tenant's occupancy is conditioned upon employment on the property and the employment is terminated.
11. The owner plans major rehabilitation and has obtained required permits and a Tenant Relocation License. A tenant terminated for this reason has a private right of action if he or she feels the owner has failed to comply with these requirements.
12. The owner decides to convert the building to a condominium or a cooperative.
13. The owner decides to demolish a building or to convert it to non-residential use and has obtained the necessary permit and a Tenant Relocation License.
14. The owner desires to sell a single family residence (does not include condominium units) and gives the tenant written notice at least 90 days prior to the end of a rental period. The owner must list the property for sale at a reasonable price in a newspaper or with a realty agency within 30 days after the date the tenant vacates. Property owners may be required to sign a certification of the intent to sell the house if SDCI receives a complaint. There is a rebuttable presumption of a violation if the unit is not listed or advertised, or is taken off the market or re-rented within 90 days after the tenant leaves. A tenant terminated for this reason has a private right of action if he or she feels an owner has failed to comply with these requirements.
15. The owner seeks to discontinue use of a unit not authorized under the Land Use Code, after receiving a Notice of Violation. The owner must pay relocation assistance to tenants who have to move so that the owner can correct the violation. Relocation assistance for low-income tenants is \$2,000; for other tenants it is an amount equal to two months' rent.
16. The owner needs to reduce the number of tenants sharing a dwelling unit in order to comply with Land Use Code restrictions (i.e., no more than 8 people per dwelling unit if any are unrelated).
17. The owner must terminate a tenancy in a house containing an approved ADU in order to comply with the development standards for ADUs, after receiving a Notice of Violation of the Land Use Code. (If the violation is that the owner has moved out of the house and has rented both units, one unit must either be reoccupied by the owner or be removed.) The owner must pay relocation assistance to displaced tenants in the amount of \$2,000 for low-income tenants, or two months' rent in other cases. SDCI may require a property owner to sign a certification of his or her intent to discontinue the use of the ADU.
18. An Emergency Order to Vacate and close the property has been issued by SDCI and the tenants have failed to vacate by the deadline given in the Order.

Failure to carry out stated cause: If an owner terminates a tenant because of (1) the sale of a single family residence is planned, (2) the owner or a family member is to move in, (3) substantial rehabilitation is planned, (4) the number of residents must be reduced to eight, or (5) the owner is discontinuing the use of an ADU after receipt of a notice of violation, and the owner fails to carry out the stated reason for terminating the tenancy, he or she may be subject to enforcement action by the City and a civil penalty of up to \$2,500.

Private right of action for tenants: If an owner terminates a tenant because of (1) the sale of a single family residence is planned, (2) the owner or a family member is to move in, or (3) substantial rehabilitation is planned, and if the owner fails to carry out the stated reason for terminating the tenancy, the tenant can sue the owner for up to \$3,000, costs, and reasonable attorney's fees.

For additional information on the Just Cause Eviction Ordinance, call SDCI at (206) 615-0808 or visit the SDCI website at www.seattle.gov/sdci.

ACTIONS CONSIDERED TO BE HARASSMENT OR RETALIATION

City law prohibits retaliatory actions against either a tenant or a landlord.

A landlord is prohibited from harassing or retaliating against a tenant by:

1. Changing or tampering with locks on unit doors
2. Removing doors, windows, fuse box, furniture or other fixtures
3. Discontinuing utilities supplied by the owner
4. Removing a tenant from the premises except through the formal court eviction process
5. Evicting, increasing rent or threatening a tenant for reporting code violations to SDCI or the Police Department or for exercising any legal rights arising out of the tenant's occupancy
6. Entering a tenant's unit, except in an emergency, or except at reasonable times after giving at least two days notice, or a one-day notice when showing units to prospective purchasers or tenants
7. Prohibiting a tenant, or a tenant's authorized agent who is accompanied by that tenant, from distributing information in the building, posting information on bulletin boards in accordance with building rules, contacting other tenants, assisting tenants to organize and holding meetings in community rooms or common areas
8. Increase the monthly housing costs without advance written notice; 30 days for a rent increase of less than 10%, 60 days for a rent increase of 10% or more
9. Increase monthly housing costs where a housing unit does not meet basic standards for habitability

In most instances the law assumes that a landlord is

retaliating if the landlord takes any of these actions within 90 days after a tenant reports a violation to SDCI or to the Seattle Police Department, or within 90 days after a governmental agency action, such as making an inspection.

A tenant is prohibited from harassing or retaliating against a landlord by:

1. Changing or adding locks on unit doors
2. Removing owner-supplied fixtures, furniture, or services
3. Willfully damaging the building

For more information or to file a complaint, call SDCI at (206) 615-0808.

DEFINITION OF TENANT

With the exception of the Tenant Relocation Assistance Ordinance, a tenant is defined as a person occupying or holding possession of a building or premises pursuant to a rental agreement. This includes residents of transient lodgings who remain in residence for one month or longer. A rental agreement may be oral or in writing.

DEFINITION OF HOUSING COSTS

Housing costs include rent and any other periodic or monthly fees such as storage, parking, or utilities, paid to the landlord by a tenant.

INCREASE IN HOUSING COSTS

In the City of Seattle, a landlord must give a tenant 30 days' advance written notice of an increase in housing costs (rent, parking, storage, and other fees associated with the rental) of less than 10%; 60 days' notice is required for increases of 10% or more. An increase can only begin at the beginning of rental period, typically at the beginning of the month. These notices must include information about how the tenant can access information about their rights and responsibilities

A landlord cannot increase housing costs for any housing unit that does not meet the minimum habitability standards of the Residential Rental Inspection Program. (http://www.seattle.gov/dpd/cs/groups/pan/@pan/documents/web_informational/s048492.pdf)

Property owners and developers cannot increase housing costs to avoid applying for a Tenant Relocation License where a rental property is going to be demolished, rehabilitated, changed in use, or where use restrictions are going to be removed. (<http://www.seattle.gov/dpd/codesrules/commonquestions/tenantrelocation/default.htm>)

THE RENTAL AGREEMENT REGULATION ORDINANCE

The City of Seattle Rental Agreement Regulation Ordinance (SMC Chapter 7.24) regulates certain aspects of residential rental agreements. It requires a landlord to provide sixty (60) days' advance written notice of an increase in housing costs of 10% or more within a twelve (12) month period; prohibits month-to-month rental agreements that require a tenant to stay a minimum period greater than one (1) month or be subject to the loss of deposits or other penalties; limits the amount of security and pet damage deposits, and move-in fees that can be charged to a tenant upon move in; allows a tenant to pay security and pet damage deposits, move-fees, and last month's rent on installment plans; requires a landlord to take and return a deposit pursuant to state law; and to distribute a summary of state and local landlord-tenant laws prepared by the City of Seattle to each prospective tenant, to each tenant upon move-in, and at the time a rental agreement is renewed. A landlord cannot retaliate against a tenant or a prospective tenant for exercising or attempting to exercise the tenant's rights under this Ordinance. The Seattle Department of Construction and Inspections enforces this ordinance. For more information call the Department's Code Compliance Division at (206) 615-0808 or follow this link: <http://www.seattle.gov/dpd/codesrules/commonquestions/rentalhousingproblems/default.htm>

Rent Increases

The City of Seattle does not regulate or control rent. However, the Rental Agreement Regulation Ordinance does require a landlord to provide at least sixty (60) days' advance written notice of any increase in housing costs of 10% or more in a twelve (12) month period; increases of less than 10% require an advance written notice of at least thirty (30) days consistent with state law. These notices must include information on how the tenant can access information on the tenant's rights and responsibilities. Housing costs include rent, parking and storage fees, and other periodic fees associated with a tenancy. Failure to provide a required sixty (60) day notice is a violation of SMC 7.24.030.A and SMC 22.206.180.

Prohibited Rental Agreement Provisions

Month-to-month rental agreements, whether verbal or in writing, cannot require a tenant to stay beyond the initial period of the agreement. A landlord cannot withhold a deposit or impose other penalties solely on the basis that a tenant moves out at the end of the initial rental period.

However, a tenant who desires to terminate a month-to-month tenancy must provide the landlord with a written notice at least twenty (20) days in advance of the end of a rental period. Landlords are not obligat-

ed to pro-rate rent when a tenant moves out after the beginning of a rental period.

Security Deposits

If a landlord wishes to collect a security deposit, the deposit and its amount must be identified in a written rental agreement. The total amount of a security deposit and move-in fees cannot exceed the amount of the first full month's rent. Additionally, the landlord must prepare and provide a tenant with a written checklist or statement describing the condition, cleanliness, and existing damage of the tenant's housing unit at the commencement of the tenancy. This statement must be signed and dated by the landlord and the tenant. The landlord must provide a copy of the checklist to the tenant for the tenant's records, and, upon request, one free replacement copy.

All security deposits must be placed in a trust account and the landlord must provide the tenant with the name, address, and location of the depository. The landlord must inform the tenant of any subsequent changes of the location of the deposit.

Security deposits must be returned in accordance with RCW 59.18.280 at the end of a tenancy.

Pet Damage Deposits

A landlord can charge a pet damage deposit, but it cannot exceed 25% of the first full month's rent. A pet damage deposit cannot be required for an animal if it serves as an assistance animal to the tenant. However, the tenant is responsible for any damage created by the tenant's assistance animal or the assistance animal of a guest of the tenant. A pet damage deposit may be charged in addition to any security deposit.

An agreement to pay a pet damage deposit must be included in a written rental agreement or in a written addendum to the agreement, identify the amount of the deposit, and allow the tenant to pay the deposit in installments if requested by the tenant.

If the pet's occupancy begins at the commencement of the tenancy, the deposit must be identified in the rental agreement. If the pet's occupancy begins after the commencement of the tenancy, the landlord must provide a written addendum to the rental agreement.

A landlord may not retain any portion of a pet damage deposit for damages not caused by the pet for which the tenant is responsible.

Pet damage deposits must be returned in accordance with RCW 59.18.280 at the end of a tenancy.

Pet Rent

The payment of rent to keep a pet is allowed.

Parking Unbundling

Landlords must specify the amount of any parking fee in a separate parking agreement or in a rental agreement addendum.

Move-in Fees

Move-in fees are by state and city definition non-refundable.

Allowable move-in fees are limited to the cost of obtaining a tenant screening report, criminal background check, or credit report and to pay to clean the rental unit upon termination of a tenancy.

The cost for obtaining a tenant screening report cannot exceed the customary cost for obtaining such a report in the City of Seattle; a Landlord cannot charge a tenant more than the report's actual cost. The landlord must provide the tenant a receipt for any fees charged for obtaining the tenant screening report. The landlord must also provide the tenant the name and address of the reporting agency that prepared the report and the prospective tenant's right to obtain a free copy of it.

If the landlord chooses to charge a non-refundable cleaning fee, the landlord may not deduct additional cleaning fees from the tenant's security deposit at the end of a tenancy.

Landlords are prohibited from charging any one-time fee at the beginning of a tenancy other than a security deposit, pet damage deposit, an authorized non-refundable move-in fee, or last month's rent.

Move-in fees cannot exceed 10% of the first full month's rent except in the case where the actual cost for obtaining a tenant screening report, criminal background check, or credit report exceeds 10%, the cost may be included in the non-refundable fee. However, the total amount of a security deposit and move-in fees cannot exceed the amount of the first full month's rent.

Summary of Limitations on Security Deposits, Pet Damage Deposits, and Move-In Fees

The total amount of a security deposit and move-in fees cannot exceed the amount of the first full month's rent. Non-refundable move-in fees cannot exceed 10% of the first full month's rent. A pet damage deposit may not exceed 25% of the rent for the first full month. Limits on the amount of charges for security deposits and non-refundable move-in fees does not apply to a tenant who rents a housing unit in a single family residence if the residence is the principal residence of the landlord.

Installment Payments

Security Deposits and Move-In Fees

If the total amount of a security deposit and non-refundable move-in fees exceeds 25% of the first full month's rent, a tenant may choose to pay the total amount in installments as follows:

- For tenancies that are six (6) months or longer, a tenant may elect to pay in six (6) consecutive and equal monthly installments beginning at the commencement of the tenancy.
- For tenancies between thirty (30) days and six (6) months, a tenant may elect to pay in no more than four (4) equal installments of equal duration at the commencement of the tenancy.
- For tenancies that are month-to-month, the tenant may elect to pay in two (2) equal installments, with the first payment due at the commencement of the tenancy and the second payment due on the first day of the second monthly rental period.

A tenant may propose an alternative installment schedule to which the landlord may agree. If an alternative plan is mutually agreed to, it must be described in a written rental agreement or a written addendum to the agreement. Failure to pay an installment of the security deposit and/or non-refundable fees is a breach of the rental agreement and may subject the tenant to a 10-day comply or vacate notice issued pursuant to RCW 59.12.030(4).

A landlord cannot impose any cost on a tenant for an installment plan.

The requirement to allow an installment plan for the payment of deposits and move-in fees does not apply to tenants who rent a housing unit in a single-family house or attached accessory dwelling unit if the owner resides in the house as the owner's principal residence.

Last Month's Rent

Tenants may choose to pay last month's rent in installments.

For tenancies that are six (6) months or longer, a tenant may elect to pay in six (6) consecutive and equal monthly installments beginning on the first month of the tenancy; tenancies between sixty (60) days and six (6) months, the tenant may elect to pay in no more than four (4) equal installments of equal duration beginning at the commencement of the tenancy.

A tenant may propose an alternative installment schedule to which the landlord may agree. If an alternative plan is mutually agreed to, it must be described in a written rental agreement or a written addendum to the agreement.

A landlord cannot impose any cost on a tenant for an installment plan.

The requirement to allow an installment plan for the

payment of last month's rent does not apply to tenants who rent a housing unit in a single-family house or attached accessory dwelling unit if the owner resides in the house as the owner's principal residence.

Pet Damage Deposits

A tenant may elect to pay a pet damage deposit in three (3) equal monthly installments beginning on the first full month the pet occupies the housing unit. A tenant may propose an alternative installment schedule to which the landlord may agree. If an alternative plan is mutually agreed to, it must be described in a written rental agreement or a written addendum to the agreement.

If a tenant wants to pay a security deposit, move-in fees, a pet damage deposit, or last month's rent in installments, the tenant must request such a payment plan.

Summary of Landlord and Tenant Rights

A landlord must distribute a summary of state landlord tenant law and City of Seattle rental housing codes describing the rights, obligations, and remedies of landlords and tenants under these laws. This requirement can be met by distributing the current version of the Seattle Department of Construction and Inspections Publication *Information for Tenants*. This document must be given to each prospective tenant, to a tenant at the time a rental agreement is offered, and when a rental agreement is renewed. Month-to-month tenants must receive the most current version of this document at least once a year. When a rental agreement is renewed, *Information for Tenants* may be distributed electronically. The current version of *Information for Tenants* can be accessed at: www.seattle.gov/dpd/cms/groups/pan/@pan/documents/web_informational/dpdd016420.pdf

If a landlord fails to distribute the summary in accordance with these requirements, a tenant may terminate the rental agreement by written notice. In addition, the tenant may recover, in a civil action against the landlord, actual damages, attorney fees, and a penalty of up to \$500. If a court determines that the landlord deliberately failed to comply with this requirement, the penalty may be up to \$1,000.

Violations

A violation of the Rental Agreement Regulation Ordinance is subject to a citation in the amount of \$500 for an initial violation and \$1,000 for each subsequent violation occurring within five (5) years of the first violation. Citations can be appealed to the City of Seattle Hearing Examiner. Violations also are subject to a Notice of Violation after the issuance of two (2) citations.

Tenant's Private Right of Action

If a landlord attempts to enforce provisions of a rental agreement which are contrary to:

1. The requirement that a rental agreement contain certain specific provisions;
2. The limitations imposed on security deposits, pet damage deposits, and non-refundable move-in fees; or
3. The requirement to adopt an installment payment plan

The landlord shall be liable to the tenant for:

1. Actual damages incurred by the tenant because of the landlord's attempted enforcement;
2. Double the amount of any penalties imposed by the City of Seattle;
3. Double the amount of any security deposit unlawfully charged or withheld by the landlord;
4. Up to \$3,000; and
5. Reasonable attorney fees and court costs.

Tenant Waiver of Rights or Remedies

No residential rental agreement, whether oral or written, can waive rights or remedies under the Rental Agreement Regulation Ordinance. However, a landlord and tenant may agree to waive certain specific requirements of the Ordinance. In order to do this, the following conditions must be met:

1. The agreement must specify in writing the specific provisions to be waived;
2. The agreement cannot appear in a standard form, lease, or rental agreement;
3. There can be no substantial inequity in the bargaining positions of the landlord and tenant; and
4. The tenant must be represented by an attorney who has approved the agreement as being in compliance with the requirements of the Ordinance.

Exceptions

The provisions of this Ordinance limiting and restricting the amount of charges for security deposits and non-refundable move-in fees, and the payment of security deposits and move-in fees on an installment basis do not apply to a tenant who rents a housing unit in a single-family residence if the residence is the principal

residence of the property owner.

Also, exempted from regulation are the return or retention of a security deposit, the requirement to provide a unit condition checklist, and the requirement to place a security deposit in a trust account and disclose to the tenant the location of the account. However, the Washington State Residential Landlord-Tenant Act still regulates these requirements.

OTHER CITY ORDINANCES THAT AFFECT TENANTS AND LANDLORDS

1. Open Housing and Public Accommodations Ordinance

This ordinance prohibits discrimination based on race, color, creed, religion, ancestry, national origin, age, sex, marital status, parental status, sexual orientation, gender identity, political ideology, participation in the Housing Choice Vouchers Program (Section 8), or disability; requires landlords to rent a housing unit on first-come-first-served basis; and to accept subsidies and alternative sources of income to pay for the tenant's housing costs. Inquiries about this ordinance and complaints of violations should be directed to the Seattle Office for Civil Rights at (206) 684-4500.

2. Condominium and Cooperative Conversion Ordinances

When a residential building is being converted to condominium or cooperative units, the Condominium and Cooperative Conversion ordinances require a housing code inspection.

Additionally, in a condominium conversion, a tenant must receive a written 120-day notice of the conversion. If the tenant decides not to buy his or her unit, the tenant may be eligible to receive the equivalent of three (3) months' rent in relocation assistance if the tenant's annual income, from all sources, does not exceed 80 percent of the area median income, adjusted for household size. A household which otherwise qualifies to receive relocation benefits and which includes a member sixty-five (65) years of age or older or an individual with "special needs," as defined in the ordinance, may qualify for additional assistance.

In a cooperative conversion, a tenant must receive a 120-day notice of intention to sell the unit. If the

tenant decides not to buy his or her unit, the tenant must be paid \$500.00 in relocation assistance.

Relocation assistance is paid directly to the tenant by the property owner or developer. The assistance must be paid no later than the date on which a tenant vacates his or her unit.

For further information, contact SDCI Code Compliance at (206) 615-0808.

3. Tenant Relocation Assistance Ordinance

This ordinance applies when tenants are displaced by housing demolition, change of use, substantial rehabilitation, or by removal of use restrictions from subsidized housing. A property owner who plans development activity must obtain a tenant relocation license and a building or use permit before terminating a tenancy. All tenants must receive a 90-day notice of the activity that will require them to move. Eligible low income tenants, whose annual income cannot exceed 50% of the area median income, receive cash relocation assistance. It is a violation of this ordinance to increase housing costs for the purpose of avoiding applying for a Tenant Relocation License. Call SDCI at (206) 615-0808 for more information.

4. Repair and Maintenance—Housing and Building Maintenance Code

This ordinance requires owners to meet certain minimum standards and keep buildings in good repair. If an owner does not make necessary repairs, a tenant can report needed repairs by calling SDCI at (206) 615-0808. If an inspector finds code violations, the owner will be required to make needed corrections.

5. Third Party Billing Ordinance

This ordinance defines rules for landlords who, by themselves or through private companies, bill tenants for City provided utilities (water, sewer, garbage, electric services) separately from their rent. The ordinance applies to all residential buildings having three or more housing units.

The rules require a landlord or billing agent to provide tenants with specific information about their bills and to disclose their billing practices, either in a rental agreement or in a separate written notice. It is a violation of the ordinance if a landlord imposes a new billing practice without appropriate notice.

A tenant can dispute a third-party billing by notifying the billing agent and explaining the basis for the dispute. This must be done within 30 days of receiving a bill. The billing agent must contact the tenant to discuss the dispute within 30 days of receiving notice of the dispute. A tenant can also file a complaint with the Seattle Office of the Hearing Examiner or take the

landlord to court. If the Hearing Examiner or court rules in favor of the tenant, the landlord could be required to pay a penalty.

6. Rental Registration and Inspection Ordinance (RRIO)

The purpose of the Rental Registration and Inspection program is to ensure that all rental housing in the City of Seattle is safe and meets basic housing maintenance requirements. Beginning in 2014 all owners of residential housing in Seattle, with certain limited exceptions, must register their properties with the City. A registration is good for five years. No tenant can be evicted from a property if the property is not registered with the City. With a few exceptions, all properties must be inspected at least once every ten years. These inspections can be conducted by City-approved inspectors or by City housing/zoning inspectors. Information about the RRIO Program can be obtained by calling (206) 684-4110 or going to the program website at www.seattle.gov/RRIO.

The Washington Residential Landlord-Tenant Act

Chapter 59.18 RCW. GOOD FAITH OBLIGATION

State law requires landlords and tenants to act in good faith toward one another.

Most tenants who rent a place to live come under the Washington State Residential Landlord-Tenant Act. However, certain renters are specifically excluded from the law.

Residents who are generally not covered by the Act are:

- Renters of a space in a mobile home park are usually covered by the state's Mobile Home Landlord-Tenant Act (RCW 59.20). However, renters of both a space and a mobile home are usually covered by the residential law.
- Residents in transient lodgings such as hotels and motels; residents of public or private medical, religious, educational, recreational or correctional institutions; residents of a single family dwelling which is rented as part of a lease of agricultural land; residents of housing provided for seasonal farm work.
- Tenants with an earnest money agreement to purchase the dwelling. Tenants who lease a single family dwelling with an option to purchase, if the tenant's attorney has approved the face of the lease. Tenants who have signed a lease option agreement but have not yet exercised that option are still covered.

- Tenants who are employed by the landlord, when their agreement specifies that they can only live in the rental unit as long as they hold the job (such as an apartment house manager).
- Tenants who are leasing a single family dwelling for one year or more, when their attorney has approved the exemption.
- Tenants who are using the property for commercial rather than residential purposes.

RIGHTS OF ALL TENANTS

Regardless of whether they are covered by the Residential Landlord-Tenant Act, all renters have these basic rights under other state laws: the Right to a livable dwelling; Protection from unlawful discrimination; Right to hold the landlord liable for personal injury or property damage caused by the landlord's negligence; Protection against lockouts and seizure of personal property by the landlord.

TYPES OF RENTAL AGREEMENTS

Month-to-Month Agreement. This agreement is for an indefinite period of time, with rent usually payable on a monthly basis or other short term period. The agreement itself can be in writing or oral, but if any type of fee or refundable deposit is collected, the agreement must be in writing. [RCW 59.18.260]

A month-to-month agreement continues until the tenant gives the landlord written notice at least 20 days before the end of the rental period. In the situation of a conversion to a condominium or a change in the policy excluding children the landlord must provide 90 days written notice to the tenant. [RCW 59.18.200] The rent can be increased or the rules changed at any time, provided the landlord gives the tenant written notice at least 30 days before the effective date of the rent increase or rule change. [RCW 59.18.140]

Fixed Term Lease. A lease requires the tenant to stay for a specific amount of time and restricts the landlord's ability to change the terms of the rental agreement. A lease must be in writing to be valid. During the term of the lease, the rent cannot be raised or the rules changed unless both landlord and tenant agree. Leases for longer than one year must be notarized.

ILLEGAL DISCRIMINATION

Federal law prohibits most landlords from refusing to rent to a person or imposing different rental terms on a person because of race, color, religion, sex, handicap, familial status (having children or seeking custody of children), or national origin. [Fair Housing Act 42 USC s. 3601 et.seq. 1988] State law recog-

nizes protection to the same individuals as well as for marital status, creed, the presence of sensory, mental, or physical disability. If you think you have been denied rental housing or have been the victim of housing discrimination file a written complaint with the Washington State Human Rights Commission. You may also file a complaint with the federal Fair Housing Section of the Department of Housing and Urban Development or your local city human rights department.

LIABILITY

Once a tenant has signed a rental agreement, the tenant must continue to pay the rent to maintain eligibility to bring actions under this act. The tenant should also understand what he or she is responsible for in the maintenance of the property. While the landlord is responsible for any damage which occurs due to the landlord's negligence, the tenant must be prepared to accept responsibility for damages he or she causes. [RCW 59.18.060]

ILLEGAL PROVISIONS IN RENTAL AGREEMENTS

Some provisions which may appear in rental agreements or leases are not legal and cannot be enforced under the law. [RCW 59.18.230] These include:

- A provision which waives any right given to tenants by the Landlord-Tenant Act or that surrenders tenants' right to defend themselves in court against a landlord's accusations.
- A provision stating the tenant will pay the landlord's attorney's fees under any circumstances if a dispute goes to court.
- A provision which limits the landlord's liability in situations where the landlord would normally be responsible.
- A provision which requires the tenant to agree to a particular arbitrator at the time of signing the rental agreement.
- A provision allowing the landlord to enter the rental unit without proper notice.
- A provision requiring a tenant to pay for all damage to the unit, even if it is not caused by tenants or their guests.
- A provision that allows the landlord to seize a tenant's property if the tenant falls behind in rent.

PRIVACY—LANDLORD'S ACCESS TO THE RENTAL [RCW 59.18.150]

The landlord must give the tenant at least a two day written notice of their intent to enter at reasonable times. However, tenants must not unreasonably refuse to allow the landlord to enter the rental where

the landlord has given at least one-day's notice of intent to enter at a specified time to exhibit the dwelling to prospective or actual purchasers or tenants. The law says that tenants shall not unreasonably refuse the landlord access to repair, improve, or service the dwelling. In case of an emergency, or if the property has been abandoned, the landlord can enter without notice.

DEPOSITS AND OTHER FEES

Refundable deposits

Under the Landlord-Tenant Act, the term "deposit" can only be applied to money which can be refunded to the tenant. If a refundable deposit is collected, the law requires:

- The rental agreement must be in writing. It must say what each deposit is for and what the tenant must do in order to get the money back. [RCW 59.18.260]
- The tenant must be given a written receipt for each deposit. [RCW 59.18.270]
- A checklist or statement describing the condition of the rental unit must be filled out. The landlord and the tenant must sign it, and the tenant must be given a signed copy. [RCW 59.18.260]
- The deposits must be placed in a trust account in a bank or escrow company. The tenant must be informed in writing where the deposits are being kept. Unless some other agreement has been made in writing, any interest earned by the deposit belongs to the landlord. [RCW 59.18.270]

Non-refundable fees

These will not be returned to the tenant under any circumstances. If a non-refundable fee is being charged, the rental agreement must be in writing and must state that the fee will not be returned. A non-refundable fee cannot legally be called a "deposit." [RCW 59.18.285]

LANDLORD'S RESPONSIBILITIES [RCW 59.18.060]

The landlord must:

- Maintain the dwelling so it does not violate state and local codes in ways which endanger tenants' health and safety
- Maintain structural components, such as roofs, floors and chimneys, in reasonably good repair.
- Maintain the dwelling in reasonably weather tight condition
- Provide reasonably adequate locks and keys.
- Provide the necessary facilities to supply heat, electricity, hot and cold water
- Provide garbage cans and arrange for removal of garbage, except in single family dwellings
- Keep common areas, such as lobbies, stairways

and halls, reasonably clean and free from hazards

- Control pests before the tenant moves in. The landlord must continue to control infestations except in single family dwellings, or when the infestation was caused by the tenant
- Make repairs to keep the unit in the same condition as when the tenant moved in—except for normal wear and tear
- Keep electrical, plumbing and heating systems in good repair, and maintain any appliances which are provided with the rental
- Inform the tenant of the name and address of the landlord or landlord's agent
- Supply hot water as reasonably required by tenant
- Provide written notice of fire safety and protection information and ensure that the unit is equipped with working smoke detectors when a new tenant moves in. (Tenants are responsible for maintaining detectors.) Except for single family dwellings, the notice must inform the tenant on how the smoke detector is operated and about the building's fire alarm and/or sprinkler system, smoking policy, and plans for emergency notification, evacuation and relocation, if any. Multifamily units may provide this notice as a checklist disclosing the building's fire safety and protection devices and a diagram showing emergency evacuation routes.
- Provide tenants with information provided or approved by the Department of Health about the health hazards of indoor mold, including how to control mold growth to minimize health risks, when a new tenant moves in. The landlord may give written information individually to each tenant, or may post it in a visible, public location at the dwelling unit property. The information can be obtained at www.doh.wa.gov/ehp/ts/IAQ/mold-notification.htm.
- Investigate if a tenant is engaged in gang-related activity when another tenant notifies the landlord of gang-related activity by serving a written notice and investigation demand to the landlord. [RCW 59.18.180]
- Provide carbon monoxide detectors.

TENANT'S RESPONSIBILITIES [RCW 59.18.130]

A tenant is required to:

- Pay rent, and any utilities agreed upon
- Comply with any requirements of city, county or state regulations
- Keep the rental unit clean and sanitary
- Dispose of the garbage properly
- Pay for fumigation of infestations caused by the tenant
- Properly operate plumbing, electrical and heating

systems

- Not intentionally or carelessly damage the dwelling
- Not permit "waste" (substantial damage to the property) or "nuisance" (substantial interference with other tenant's use of property)
- Maintain smoke and carbon monoxide detection devices including battery replacement
- Not engage in activity at the premises that is imminently hazardous to the physical safety of other persons on the premises and that entails a physical assault on a person or unlawful use of a firearm or other deadly weapon resulting in an arrest [RCW 59.18.352]
- When moving out, restore the dwelling to the same conditions as when the tenant moved in, except for normal wear and tear

THREATENING BEHAVIOR BY A TENANT OR LANDLORD (RCW 59.18.352 and 354)

If one tenant threatens another with a firearm or other deadly weapon, and the threatening tenant is arrested as a result of the threat, the landlord may terminate the tenancy of the offending tenant (although the landlord is not required to take such action). If the landlord does not file an unlawful detainer action, the threatened tenant may choose to give written notice and move without further obligation under the rental agreement. If a landlord threatens a tenant under similar circumstances, the tenant may choose to give notice and move. In both cases, the threatened tenant does not have to pay rent for any day following the date of leaving, and is entitled to receive a pro-rated refund of any prepaid rent.

MAKING CHANGES TO THE MONTH-TO-MONTH AGREEMENT

Generally speaking, if the landlord wants to change the provisions of a month-to-month rental agreement, such as raising the rent or changing rules, the tenant must be given at least 30 days notice in writing. These changes can only become effective at the beginning of a rental period (the day the rent is due). Notice which is less than 30 days will be effective for the following rental period.

If the landlord wishes to convert the unit to a condominium, the tenant must be given a 120-day notice. [RCW 59.18.200]

MAKING CHANGES TO A FIXED LEASE TERM

Under a lease, in most cases, changes during the lease term cannot be made unless both landlord and tenant agree to the proposed change.

If the property is sold. The sale of the property does

not automatically end a tenancy. When a rental unit is sold, tenants must be notified of the new owner's name and address, either by certified mail, or by a revised posting on the premises. All deposits paid to the original owner must be transferred to the new owner, who must put them in a trust or escrow account. The new owner must promptly notify tenants where the deposits are being held.

HOW TO HANDLE REPAIRS

A tenant must be current in the payment of rent including all utilities to which the tenant has agreed in the rental agreement to pay before exercising any statutory remedies, such as repair options. [RCW 59.18.080]

Required Notice [RCW 59.18.070] When something in the rental unit needs to be repaired, the first step is for the tenant to give written notice of the problem to the landlord or person who collects the rent.

The notice must include the address and apartment number of the rental; the name of the owner, if known; and a description of the problem. After giving notice, the tenant must wait the required time for the landlord to begin making repairs. Those required waiting times are: 24 hours for no hot or cold water, heat or electricity, or for a condition which is imminently hazardous to life; 72 hours for repair of refrigerator, range and oven, or a major plumbing fixture supplied by landlord; 10 days for all other repairs.

Tenant's Options [RCW 59.18.090] If repairs are not started within the required time and if the tenant is paid up in rent and utilities, the following options can be used:

- 1) Tenant can give written notice to the landlord and move out immediately. Tenants are entitled to a pro-rated refund of their rent, as well as the deposits they would normally get back.
- 2) Litigation or arbitration can be used to work out the dispute.
- 3) The tenant can hire someone to make the repairs. In many cases the tenant can have the work done and then deduct the cost from the rent. [RCW 59.18.100] (This procedure cannot be used to force a landlord to provide adequate garbage cans.)

An Important Note: If the repair is one that has a 10-day waiting period, the tenant cannot contract to have the work done until 10 days after the landlord receives notice, or five days after the landlord receives the estimate, whichever is later.

To follow this procedure a tenant must: Submit a good faith estimate from a licensed or registered tradesperson, if one is required, to the landlord. After the waiting period, the tenant can contract with the lowest bidder to have the work done. After the work is completed, the tenant pays the tradesperson and deducts the cost from the rent

payment. The landlord must be given the opportunity to inspect the work. The cost of each repair cannot exceed one month's rent; total cost cannot exceed two month's rent in any 12-month period.

If a large repair which affects a number of tenants needs to be made, the tenants can join together, follow the proper procedure, and have the work done. Then each can deduct a portion of the cost from their rent.

- 4) The tenant can make the repairs and deduct the cost from the rent, if the work does not require a licensed or registered tradesperson. The same procedure is followed as for (2) above. However, the cost limit is one half of one month's rent.
- 5) Rent in Escrow - After notice of defective conditions, and after appropriate government certification of defect, and waiting periods have passed, then tenants may place their monthly rent payments in an escrow account. It is wise to consult an attorney before taking this action.

ILLEGAL LANDLORD ACTIONS

Lockouts. [RCW 59.18.290] The law prohibits landlords from changing locks, adding new locks, or otherwise making it impossible for the tenant to use the normal locks and keys. Even if a tenant is behind in rent, such lockouts are illegal.

A tenant who is locked out can file a lawsuit to regain entry. Some local governments also have laws against lockouts and can help a tenant who has been locked out of a rental. For more information contact your city or county government.

Utility shutoffs. [RCW 59.18.300] The landlord may not shut off utilities because the tenant is behind in rent, or to force a tenant to move out. Utilities may only be shut off by the landlord so that repairs may be made, and only for a reasonable amount of time. If a landlord intentionally does not pay utility bills so the service will be turned off, that could be considered an illegal shutoff. If the utilities have been shut off by the landlord, the tenant should first check with the utility company to see if it will restore service. If it appears the shutoff is illegal, the tenant can file a lawsuit. If the tenant wins in court, the judge can award the tenant up to \$100 per day for the time without service, as well as attorney's fees.

Taking the tenant's property. [RCW 59.18.310] The law allows a landlord to take a tenant's property only in the case of abandonment. A clause in a rental agreement which allows the landlord to take a tenant's property in other situations is not valid. If the landlord does take a tenant's property illegally, the tenant may want to contact the landlord first. If that is unsuccessful, the police can be notified. If the property is not returned after the landlord is given a written request, a court could order the landlord to pay the tenant up to \$100 for each day the property is kept — to a total of

\$1,000. [RCW 59.18.230(4)]

Renting condemned property. [RCW 59.18.085]

The landlord may not rent units which are condemned or unlawful to occupy due to existing uncorrected code violations. The landlord can be held liable for three months rent or treble damages, whichever is greater, as well as costs and attorneys fees for knowingly renting the property.

Retaliatory actions. [RCW 59.18.240 -.250] If the tenant exercises rights under the law, such as complaining to a government authority or deducting for repairs, the law prohibits the landlord from taking retaliatory action. Examples of retaliatory actions are raising the rent, reducing services provided to the tenant, or evicting the tenant. The law initially assumes that these steps are retaliatory if they occur within 90 days after the tenant's action, unless the tenant was in some way violating the statute when the change was received. If the matter is taken to court and the judge finds in favor of the tenant, the landlord can be ordered to reverse the retaliatory action, as well as pay for any harm done to the tenant and pay the tenant's attorney fees.

ENDING THE AGREEMENT

Proper Notice to Leave for Leases. If the tenant moves out at the expiration of a lease, in most cases it is not necessary to give the landlord a written notice. However, the lease should be consulted to be sure a formal notice is not required. If a tenant stays beyond the expiration of the lease, and the landlord accepts the next month's rent, the tenant then is assumed to be renting under a month-to-month agreement.

A tenant who leaves before a lease expires is responsible for paying the rent for the rest of the lease term. However, the landlord must make an effort to re-rent the unit at a reasonable price. If this is not done, the tenant may not be liable for rent beyond a reasonable period of time. [RCW 59.18.310(1)]

Proper Notice to Leave for Leases—Armed Forces Exception. A lease can be terminated when the tenant is a member of the armed forces (including the national guard or armed forces reserve), if the tenant receives reassignment or deployment orders, provided the tenant informs the landlord no later than seven days after the receipt of such orders. In these circumstances, the tenancy may also be terminated by the tenant's spouse or dependent. [RCW 59.18.220]

Proper Notice to Leave for Month-to-Month Agreements. When a tenant wants to end a month-to-month rental agreement, written notice must be given to the landlord.

The notice must be received at least 20 days before the end of the rental period (the day before the rent is due). The day which the notice is delivered does

not count. A landlord cannot require a tenant to give more than 20 days notice when moving out. When a landlord wants a month-to-month renter to move out, a 20-day notice is required (only outside of Seattle). If a tenant moves out without giving proper notice, the law says the tenant is liable for rent for the lesser of: 30 days from the day the next rent is due, or 30 days from the day the landlord learns the tenant has moved out. However, the landlord has a duty to try and find a new renter. If the dwelling is rented before the end of the 30 days, the former tenant must pay only until the new tenant begins paying rent.

Proper Notice to Leave for Month-to-Month

Agreements—Armed Forces Exception. A month-to-month tenancy can be terminated with less than 20 days written notice when the tenant is a member of the armed forces (including the national guard or armed forces reserve), if the tenant receives reassignment or deployment orders that do not allow for a 20-day notice. In these circumstances, the tenancy may also be terminated by the tenant's spouse or dependent. [RCW 59.18.200]

Domestic Violence Protection. If a tenant or a household member is a victim of an incident of domestic violence, sexual assault, unlawful harassment, or stalking, the tenant may terminate their rental agreement without penalty, change the locks on their unit at their own expense, or both. The tenant must notify the landlord in writing that they or a household member were a victim of one of the above crimes and either provide a copy of a valid order for protection or a report of the incident from a qualified third party to the landlord. Qualified third parties include law enforcement officers, court officials, licensed mental health professionals, doctors, and victim advocates. The tenant must terminate the rental agreement within 90 days of the incident leading to the protection order or report to a qualified third party. The protection order or third party's report must be made available to the landlord within 7 days of the tenant moving out of the unit or at the same time the tenant gives notice to the landlord that the locks have been changed. [RCW 59.18.570 - 585]

RETURN OF DEPOSITS [RCW 59.18.280]

After a tenant moves out, a landlord has 21 days in which to return a deposit, or give the tenant a written statement of why all or part of the money is being kept. It is advisable for the tenant to leave a forwarding address with the landlord when moving out.

The rental unit should be restored to the same condition as when the tenant moved in, except for normal wear and tear. Deposits cannot be used to cover normal wear and tear; or damage that existed when the tenant moved in.

The landlord is in compliance if the required payment, statement, or both, are deposited in the U.S. Mail with First Class postage paid, within 21 days. If the tenant takes the landlord to court, and it is ruled that the landlord intentionally did not give the statement or return the money, the court can award the tenant up to twice the amount of the deposit.

EVICTIONS

For not paying rent. If the tenant is even one day behind in rent, the landlord can issue a three-day notice to pay or move out. If the tenant pays all the rent due within three days, the landlord must accept it and cannot evict the tenant. A landlord is not required to accept a partial payment.

For not complying with the terms of the rental agreement. If the tenant is not complying with the rental agreement (for example, keeping a cat when the agreement specifies no pets are allowed), the landlord can give a 10-day notice to comply or move out. If the tenant satisfactorily remedies the situation within that time, the landlord cannot continue the eviction process.

For creating a “waste or nuisance.” If a tenant destroys the landlord’s property, uses the premises for unlawful activity including gang- or drug-related activities, damages the value of the property or interferes with other tenant’s use of the property, the landlord can issue a three-day notice to move out. The tenant must move out after this kind of notice. There is no option to stay and correct the problem.

For violations within drug and alcohol free housing. If a tenant enrolled in a program of recovery in drug and alcohol free housing for less than two years uses, possesses, or shares alcohol or drugs the landlord can give a three-day notice to move out. If the tenant cures the violation within one day, the rental agreement does not terminate. If the tenant fails to remedy the violation within one day, he or she must move out and the rental agreement is terminated. If the tenant engages in substantially the same behavior within six months, the landlord can give a three-day notice to move out and the tenant has no right to cure the subsequent violation.

Notice. In order for a landlord to take legal action against a tenant who does not move out, notice must be given in accordance with RCW 59.12.040.

If the tenant continues to occupy the rental in violation of a notice to leave, the landlord must then go to court to begin what is called an “unlawful detainer” action. If the court rules in favor of the landlord, the sheriff will be instructed to move the tenant out of the rental if the tenant does not leave voluntarily. The only legal way for a landlord to move a tenant physically out of a unit is by going through the courts and the sheriff’s office.

DESIGNATION OF AN INDIVIDUAL TO ACT ON BEHALF OF A TENANT UPON THE DEATH OF THE TENANT (RCW 59.18.590)

A tenant who is the sole occupant of a dwelling unit can designate a person to act on the tenant’s behalf upon the death of the tenant independently or at the request of a landlord. The designation must be in writing separate from any rental agreement. It must include the designated person’s name, mailing address, an address used for the receipt of electronic communications, a telephone number, and a signed statement authorizing the landlord in the event of the tenant’s death (when the tenant is the sole occupant of the dwelling unit) to allow the designated person to access the tenant’s dwelling unit, remove the tenant’s property, receive refunds of amounts due to the tenant, and to dispose of the tenant’s property consistent with the tenant’s last will and testament and any applicable intestate succession law, and a conspicuous statement that the designation remain in effect until it is revoked in writing by the tenant or replaced with a new designation. The designated person’s right to act on the behalf of the deceased tenant terminates upon the appointment of a personal representative for the deceased tenant’s estate or the identification of a person reasonably claiming to be a successor of the deceased tenant pursuant to law.

ABANDONMENT RELATED TO FAILURE TO PAY RENT [RCW 59.18.310]

Abandonment occurs when a tenant has both fallen behind in rent and has clearly indicated by words or actions an intention not to continue living in the rental.

When a rental has been abandoned, the landlord may enter the unit and remove any abandoned property. It must be stored in a reasonably secure place. A notice must be mailed to the tenant saying where the property is being stored and when it will be sold. If the landlord does not have a new address for the tenant, the notice should be mailed to the rental address, so it can be forwarded by the U.S. Postal Service.

How long a landlord must wait before selling abandoned property depends on the value of the goods. If the total value of property is less than \$250, the landlord must mail a notice of the sale to the tenant and then wait seven(7) days. Family pictures, keepsakes and personal papers cannot be sold until forty-five (45) days after the landlord mails the notice of abandonment to the tenant.

If the total value of the property is more than \$250, the landlord must mail a notice of the sale to the tenant and then wait forty-five (45) days. Personal papers, family pictures, and keepsakes can be sold at the same time as other property.

The money raised by the sale of the property goes to

cover money owed to the landlord, such as back rent and the cost of storing and selling the goods. If there is any money left over, the landlord must keep it for the tenant for one (1) year. If it is not claimed within that time, it belongs to the landlord.

If a landlord takes a tenant's property and a court later determines there had not actually been an abandonment, the landlord could be ordered to compensate the tenant for loss of the property, as well as paying court and attorney costs.

This procedure does not apply to the disposition of property of a deceased tenant. See "Abandonment Related to the Death of a Tenant" below.

ABANDONMENT RELATED TO EVICTION [RCW 59.18.312]

When a tenant has been served with a writ of restitution in an eviction action, the tenant will receive written notification of the landlord's responsibilities regarding storing the tenant's property that is left behind after the premises is vacant. Tenants will be provided with a form to request the landlord store the tenant's property.

A landlord is required to store the tenant's property if the tenant makes a written request for storage within three (3) days of service of the writ of restitution or if the landlord knows that the tenant is a person with a disability that prevents the tenant from making a written request and the tenant has not objected to storage. The written request for storage may be served by personal delivery, or by mailing or faxing to the landlord at the address or fax number identified on the request form provided by the landlord.

After the Writ of Restitution has been executed, the landlord may enter the premises and take possession of any of the tenant's remaining belongings. Without a written request from the tenant, the landlord may choose to store the tenant's property or deposit the tenant's property on the nearest public property. If the landlord chooses to store the tenant's property, whether requested or not, it may not be returned to the tenant until the tenant pays the actual or reasonable costs of moving and storage, whichever is less within thirty (30) days.

If the total value of the property is more than \$250, the landlord must notify the tenant of the pending sale by personal delivery or mail to the tenant's last known address. After thirty (30) days from the date of the notice, the landlord may sell the property, including personal papers, family pictures, and keepsakes and dispose of any property not sold.

If the total value of the property is \$250 or less, the landlord must notify the tenant of the pending sale by personal delivery or mail to the tenant's last known address. After seven (7) days from the date of the notice,

the landlord may sell or dispose of the property except for personal papers, family pictures, and keepsakes.

The proceeds from the sale of the property may be applied towards any money owed to the landlord for the actual and reasonable costs of moving and storing of the property, whichever is less. The costs cannot exceed the actual or reasonable costs of moving and storage, whichever is less. If there are additional proceeds, the landlord must keep it for the tenant for one (1) year. If no claim is made by the tenant for the recovery of the additional proceeds within one (1) year, the balance will be treated as abandoned property and deposited with the Washington State Department of Revenue.

See RCW 59.18.312.

ABANDONMENT RELATED TO THE DEATH OF A TENANT (RCW 59.18.595)

When a landlord learns of the death of a tenant who is the sole occupant of a dwelling unit, the landlord must promptly mail or personally deliver a written notice to any known personal representative, designated person, emergency contact person, or known successor to the tenant. The notice must include the name of the deceased tenant and address of the dwelling unit, the approximate date of the tenant's death, the amount of the monthly rent and the date to which it is paid. The notice must include a statement that the tenancy will terminate 15 days from the date the notice is mailed or personally delivered, or the date through which the rent has been paid, whichever is later, unless during this 15 day period a tenant representative makes arrangements with the landlord to pay rent in advance for no more than 60 days from the date of the tenant's death in order to arrange for the removal of the deceased tenant's property, and that the tenancy will be over at the end of the period for which the rent has been paid. The notice must also include a statement that failure to remove the tenant's property before the tenancy is terminated or ends will permit the landlord to enter the dwelling unit and take possession of any property found on the premises, store it in a reasonably secure place, and charge the actual or reasonable costs, whichever is less, for moving and storage of the property, and that after appropriate notice, sell or dispose of the property as provided for in law. A copy of any designation of a person to act on the deceased tenant's behalf must be attached to the notice.

The landlord must turn over possession of the tenant's property to a tenant representative upon receipt of a written request if this request is made prior to the termination or end of the tenancy, or any other date agreed to by the parties. The tenant representative must provide to the landlord an inventory of all the removed property and a signed acknowledgement that the tenant representative has been given possession

and not ownership of the property.

If a tenant representative has made arrangements to pay rent in advance, the landlord must mail this second notice to any known personal representative, designated person, emergency contact person, or known successor of the tenant, and to the deceased tenant at the dwelling unit address. This second notice must include the name, address, and telephone number or contact information for the tenant representative who made arrangements to pay rent in advance, the amount of rent paid in advance, and date through which the rent is paid. The notice must include a statement that the landlord may sell or dispose of the property on or after the date through which the rent is paid or at least 45 days after the second notice is mailed, whichever date comes later, if the tenant representative does not claim or remove the property.

If the landlord places the property in storage, the landlord must mail a second written notice (if this has not already been done) to any known personal representative, designated person, emergency contact person, or known successor of the tenant, and to the deceased tenant at the dwelling unit address. This notice must include a statement that the landlord may sell or dispose of the property on or after a specified date that is at least 45 days after the second notice is mailed, if the tenant representative does not claim and remove the property.

The landlord must turn over possession of the deceased tenant's property to the tenant representative if a written request is made in a timely manner. The tenant representative must pay the actual or reasonable costs, whichever is less, of any moving and storage of the property, and provide to the landlord an inventory of all the removed property and a signed acknowledgment that the tenant representative has been given possession and not ownership of the property.

If a tenant representative does not contact the landlord or remove the deceased person's property in a timely manner, the landlord may sell or dispose of the stored property, except for personal papers and personal photographs. If the fair market value of the property is more than \$1,000, the landlord must sell the property in a commercially reasonable manner. All unsold property must be disposed of in a reasonable manner. If the value of the stored property is less than \$1,000, the landlord must dispose of the property in a reasonable manner.

The personal papers and photographs that are not claimed by a tenant representative must be retained for 90 days after the sale or disposal of the deceased tenant's property and must either be destroyed or held for benefit of any successor of the deceased tenant.

No landlord or an employee of the landlord may acquire, either directly or indirectly, a deceased tenant's property that is sold or otherwise disposed of. The

landlord may apply the proceeds of the sale of the deceased tenant's property toward any money owed to the landlord for the actual and reasonable cost of moving and storing the property, whichever is less. If there is excess income, it must be held by the landlord for one year. If no claim is made on the excess income before the expiration of the one year period, the balance must be deposited with the Washington State Department of Revenue as abandoned property.

The landlord must refund to the tenant representative any unearned rent and give a full and specific statement of the basis for retaining any deposit together with the payment of any refund due to the deceased tenant within 14 days after the removal of the property by the tenant representative.

If a landlord knowingly violates these abandonment provisions, the landlord can be liable to the deceased tenant's estate for actual damages. The prevailing party in any action related to these requirements may recover costs and reasonable attorneys' fees.

RECEIPTS

A landlord must provide a receipt for any payment made in the form of cash by a tenant. Upon the request of a tenant, a landlord must provide a receipt for any payment made by the tenant in a form other than cash. This includes payment for rent, deposits, fees, parking, storage, or any other costs associated with a tenancy. See RCW 59.18.063.

COPIES OF DOCUMENTS

If a checklist describing the physical condition of a rental unit is completed pursuant to RCW 59.18.260 and SMC 7.24.030.C, a copy signed by both the landlord and the tenant must be provided to the tenant.

When there is a written rental agreement for a premises, the landlord must provide a fully executed copy to each tenant who signs the agreement. A landlord must provide one free replacement copy of the written agreement if requested by a tenant during the tenancy. See RCW 59.18.065.

VOTER REGISTRATION INFORMATION

Attached to this publication is information related to registering to vote, and if already registered, how to update your address when you move. For more information go to www.kingcounty.gov/depts/elections.

Don't forget to register to

Vote!



Your Voice Matters!

www.kingcounty.gov/depts/elections

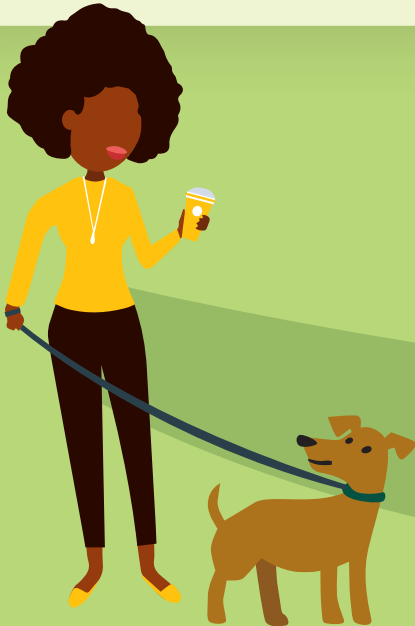
Welcome home!

There's a lot to do when moving to a new home. Updating your voter registration is one of those important tasks to remember.

Already Registered?

Here are 5 easy ways to update your address:

- If you have a current Washington State driver license or state ID card, [go online!](#)
- Mail the registration form included in this *Information for Tenants* packet.
- E-mail elections@kingcounty.gov with your name, date of birth, old residential and mailing address, and your new residential and mailing address.
- Call 206-296-VOTE (8683). Services are available in 120 languages.
- Go in-person to King County Elections headquarters in Renton or the Voter Registration Annex in Seattle.



Remember to change your address at least 29 days before election day. Check the [Voter's Calendar](#).

Need to Register?

There are 3 ways to register to vote:

- If you have a current Washington State driver license or state ID card, [go online!](#)
- Mail the registration form included in this *Information for Tenants* packet.
- Go in-person to King County Elections headquarters in Renton or the Voter Registration Annex in Seattle.



Seattle Department of
Construction & Inspections

Instructions**Use this form to register to vote or update your current registration.**

Print all information clearly using black or blue pen. Mail this completed form to your county elections office (address on back).

Deadline

This registration will be in effect for the next election if postmarked no later than the Monday four weeks before Election Day.

Voting

You will receive your ballot in the mail. Contact your county elections office for accessible voting options.

Public Information

Your name, address, gender, and date of birth will be public information.

Notice

Knowingly providing false information about yourself or your qualifications for voter registration is a class C felony punishable by imprisonment for up to 5 years, a fine of up to \$10,000, or both.

Public Benefits Offices

If you received this form from a public benefits office, where you received the form will remain confidential and will be used for voter registration purposes only.

Registering or declining to register will not affect the assistance provided to you by any public benefits office. If you decline to register, your decision will remain confidential.

If you believe someone interfered with your right to register, or your right to privacy in deciding whether to register, you may file a complaint with the Washington State Elections Division.

Contact Information

If you would like help with this form, contact the Washington State Elections Division.

web www.vote.wa.gov
call (800) 448-4881
email elections@sos.wa.gov
mail PO Box 40229
 Olympia, WA 98504-0229

Washington State Voter Registration Form

Register online at www.myvote.wa.gov.

1 Personal Information

last	first	middle	suffix
date of birth (mm/dd/yyyy)			gender
residential address in Washington			apt #
city			ZIP
mailing address, if different			
city			state and ZIP
phone number (optional)		email address (optional)	

2 Qualifications

If you answer *no*, do not complete this form.

- ☐ yes ☐ no **I am a citizen of the United States of America.**
☐ yes ☐ no **I will be at least 18 years old by the next election.**

3 Military / Overseas Status

- ☐ yes ☐ no **I am currently serving in the military.**
 Includes National Guard and Reserves, and spouses or dependents away from home due to service.
☐ yes ☐ no **I live outside the United States.**

4 Identification — Washington Driver License, Permit, or ID

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If you do not have a Washington driver license, permit, or ID, you may use the last four digits of your Social Security number to register.

x x x - x x -

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5 Change of Name or Address

This information will be used to update your current registration, if applicable.

former last name	first	middle
former residential address	city	state and ZIP

6 Declaration

I declare that the facts on this voter registration form are true. I am a citizen of the United States, I will have lived at this address in Washington for at least thirty days immediately before the next election at which I vote, I will be at least 18 years old when I vote, I am not disqualified from voting due to a court order, and I am not under Department of Corrections supervision for a Washington felony conviction.

sign
here

date
here

For official use:



first class
postage
required



Please write your county elections office address below:

Adams County

210 W Broadway, Ste 200
Ritzville, WA 99169
(509) 659-3249

Asotin County

PO Box 129
Asotin, WA 99402
(509) 243-2084

Benton County

PO Box 470
Prosser, WA 99350
(509) 736-3085

Chelan County

350 Orondo Ave Ste. 306
Wenatchee, WA 98801-2885
(509) 667-6808

Clallam County

223 E 4th St, Ste 1
Port Angeles, WA 98362
(360) 417-2221

Clark County

PO Box 8815
Vancouver, WA 98666-8815
(360) 397-2345

Columbia County

341 E Main St, Ste 3
Dayton, WA 99328
(509) 382-4541

Cowlitz County

207 4th Ave N, Rm 107
Kelso, WA 98626-4124
(360) 577-3005

Douglas County

PO Box 456
Waterville, WA 98858
(509) 745-8527 ext 6407

Ferry County

350 E Delaware Ave, Ste 2
Republic, WA 99166
(509) 775-5200

Franklin County

PO Box 1451
Pasco, WA 99301
(509) 545-3538

Garfield County

PO Box 278
Pomeroy, WA 99347-0278
(509) 843-1411

Grant County

PO Box 37
Ephrata, WA 98823
(509) 754-2011ext. 2793

Grays Harbor County

100 W Broadway, Ste 2
Montesano, WA 98563
(360) 964-1556

Island County

PO Box 1410
Coupeville, WA 98239
(360) 679-7366

Jefferson County

PO Box 563
Port Townsend, WA 98368-0563
(360) 385-9119

King County

919 SW Grady Way
Renton, WA 98057
(206) 296-8683

Kitsap County

614 Division St, MS 31
Port Orchard, WA 98366
(360) 337-7128

Kittitas County

205 W 5th Ave, Ste 105
Ellensburg, WA 98926-2891
(509) 962-7503

Klickitat County

205 S Columbus, Stop 2
Goldendale, WA 98620
(509) 773-4001

Lewis County

PO Box 29
Chehalis, WA 98532-0029
(360) 740-1278

Lincoln County

PO Box 28
Davenport, WA 99122-0028
(509) 725-4971

Mason County

PO Box 400
Shelton, WA 98584
(360) 427-9670 ext 469

Okanogan County

PO Box 1010
Okanogan, WA 98840-1010
(509) 422-7240

Pacific County

PO Box 97
South Bend, WA 98586-0097
(360) 875-9317

Pend Oreille County

PO Box 5015
Newport, WA 99156
(509) 447-6472

Pierce County

2501 S 35th St, Ste C
Tacoma, WA 98409
(253) 798-VOTE

San Juan County

PO Box 638
Friday Harbor, WA 98250-0638
(360) 378-3357

Skagit County

PO Box 1306
Mount Vernon, WA 98273-1306
(360) 416-1702

Skamania County

PO Box 790, Elections Dept
Stevenson, WA 98648-0790
(509) 427-3730

Snohomish County

3000 Rockefeller Ave, MS 505
Everett, WA 98201-4060
(425) 388-3444

Spokane County

1033 W Gardner Ave
Spokane, WA 99260
(509) 477-2320

Stevens County

215 S Oak St, Rm 106
Colville, WA 99114-2836
(509) 684-7514

Thurston County

2000 Lakeridge Dr SW
Olympia, WA 98502-6090
(360) 786-5408

Wahkiakum County

PO Box 543
Cathlamet, WA 98612
(360) 795-3219

Walla Walla County

PO Box 2176
Walla Walla, WA 99362-0356
(509) 524-2530

Whatcom County

PO Box 369
Bellingham, WA 98227-0369
(360) 778-5102

Whitman County

PO Box 191
Colfax, WA 99111
(509) 397-5284

Yakima County

PO Box 12570
Yakima, WA 98909-2570
(509) 574-1340

WA State Elections Division

PO Box 40229
Olympia, WA 98504-0229
(800) 448-4881